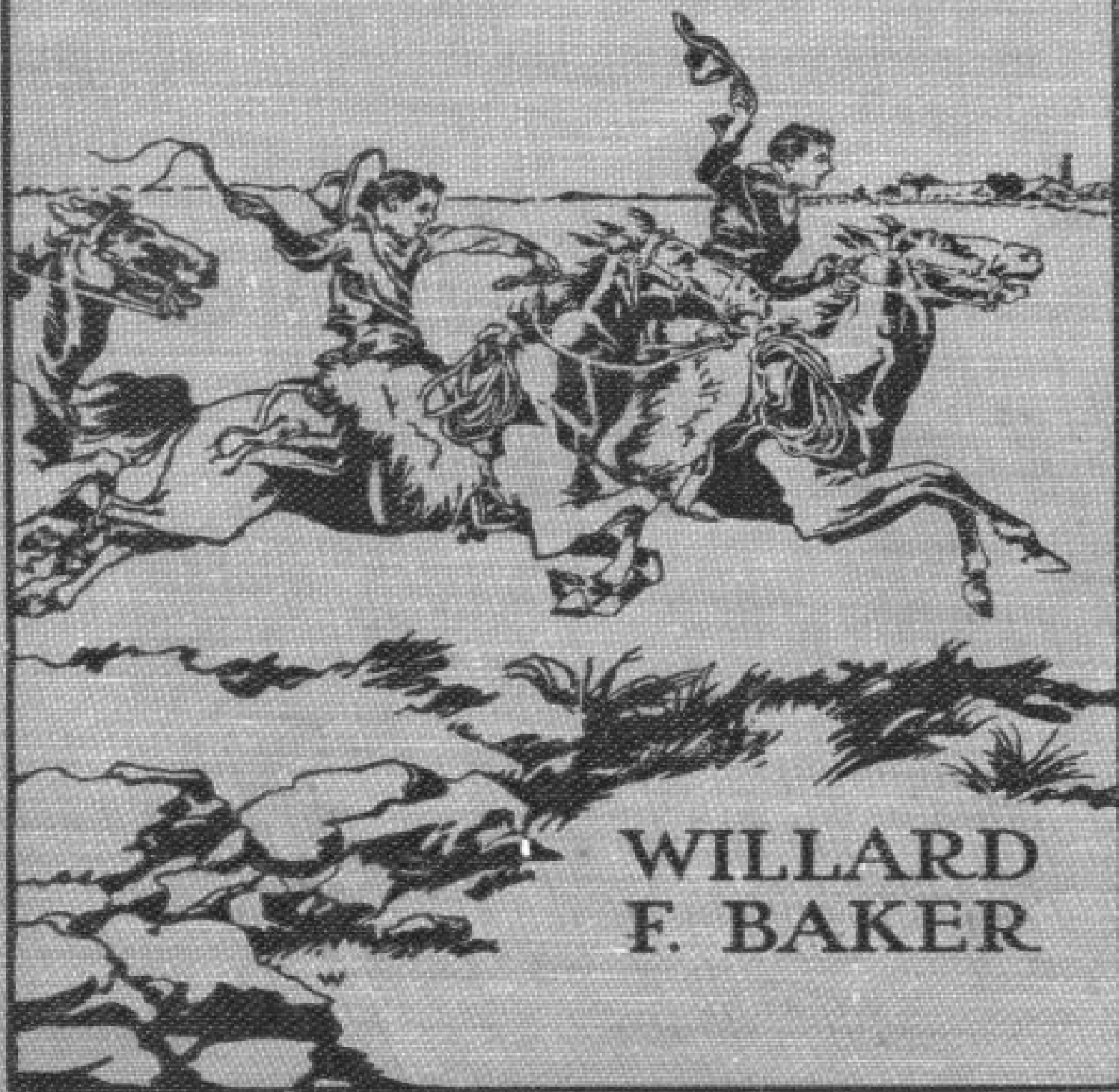
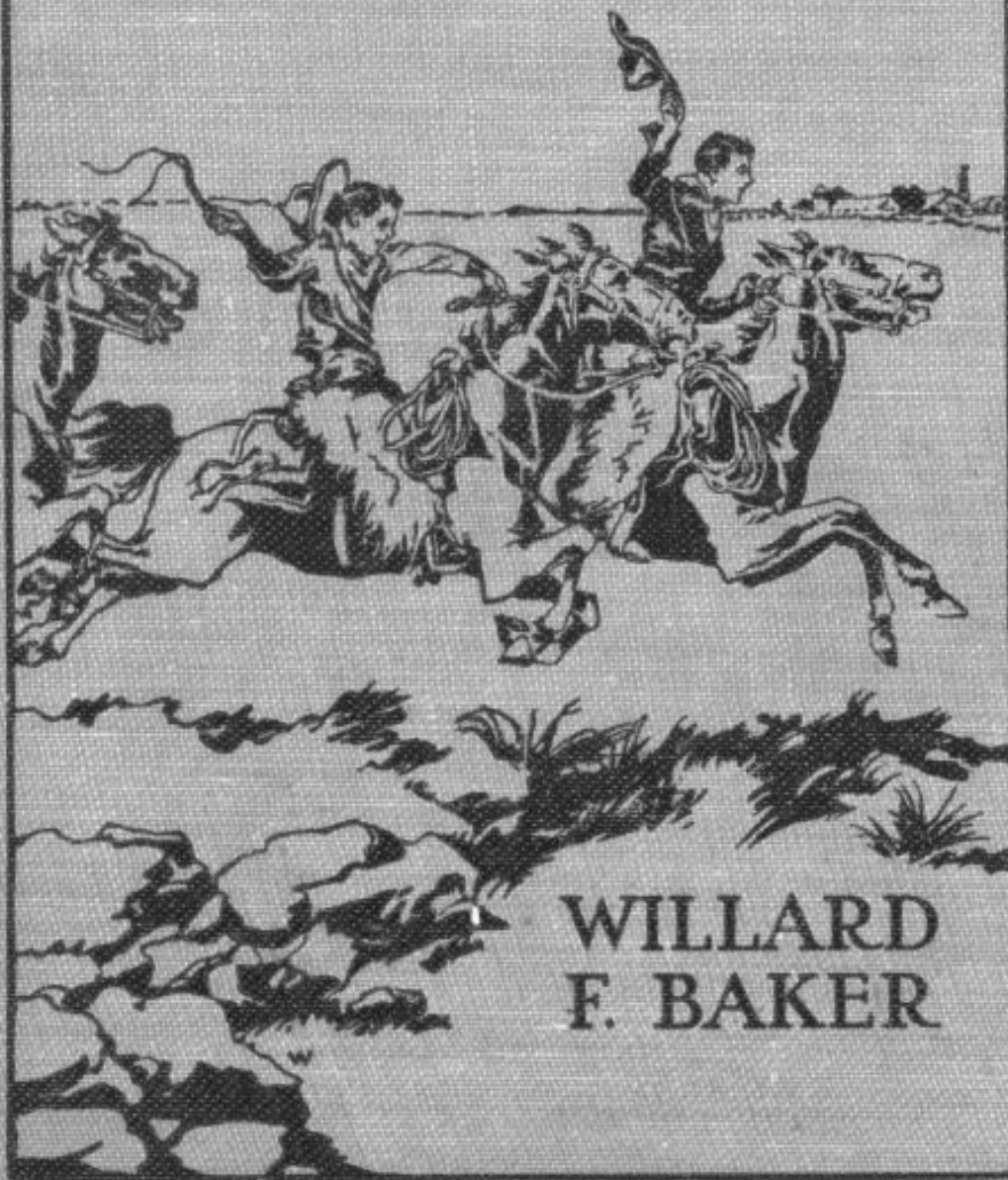


THE BOY RANCHERS AT SPUR CREEK



WILLARD
F. BAKER

THE BOY RANCHERS AT SPUR CREEK



WILLARD
F. BAKER

The Project Gutenberg eBook of The Boy Ranchers at Spur Creek; Or, Fighting the Sheep Herders

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Boy Ranchers at Spur Creek; Or, Fighting the Sheep Herders

Author: Willard F. Baker

Illustrator: Howard L. Hastings

Release date: October 29, 2008 [eBook #27095]
Most recently updated: January 4, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/27095

Credits: Produced by Al Haines

*** START OF THE PROJECT GUTENBERG EBOOK THE BOY
RANCHERS AT SPUR CREEK; OR, FIGHTING THE SHEEP HERDERS

[Transcriber's note: Extensive research found no evidence that the U.S. copyright on this publication was renewed.]

Cover art



SNAKE CAUGHT HOLD OF THE ANIMAL'S LEFT HORN.
"The Boy Ranchers at Spur Creek."

**SNAKE CAUGHT HOLD OF THE
ANIMAL'S LEFT HORN. "The Boy Ranchers
at Spur Creek."**

THE BOY RANCHERS AT SPUR CREEK

OR

Fighting the Sheep Herders

by

WILLARD F. BAKER

ILLUSTRATED

**NEW YORK
CUPPLES & LEON COMPANY**

**THE BOY RANCHERS SERIES
By WILLARD F. BAKER**

12mo. Cloth. Frontispiece

THE BOY RANCHERS
or Solving the Mystery at Diamond X

THE BOY RANCHERS IN CAMP
or The Water Fight at Diamond X

THE BOY RANCHERS ON THE TRAIL
or The Diamond X After Cattle Rustlers

THE BOY RANCHERS AMONG THE INDIANS
or On the Trail of the Yaquis

THE BOY RANCHERS AT SPUR CREEK
or Fighting the Sheep Herders

CUPPLES & LEON COMPANY, New York

**COPYRIGHT, 1923, BY
CUPPLES & LEON COMPANY
THE BOY RANCHERS AT SPUR CREEK
Printed in U. S. A.**

CONTENTS

CHAPTER

- I [SHOTS IN THE NIGHT](#)
- II [MISSING PAPERS](#)
- III [ON THE TRAIL](#)
- IV [AROUND THE CAMPFIRE](#)
- V [AT SPUR CREEK](#)
- VI [THE ALARM](#)
- VII [A PARLEY](#)
- VIII [SUSPICIONS](#)
- IX [A CALL FOR HELP](#)
- X [DEL PINZO'S HAND](#)
- XI [COWBOY FUN](#)
- XII [AFTER THE RUSTLERS](#)
- XIII [A CLOUD OF DUST](#)
- XIV [THE SHEEP ARRIVE](#)
- XV [A BATTLE OF WITS](#)
- XVI [STRANGE ACTIONS](#)
- XVII ["WE CROWED TOO SOON!"](#)
- XVIII [SKIRMISHES](#)
- XIX [OPEN WARFARE](#)
- XX [THE FLAG OF TRUCE](#)
- XXI [A LEGAL CONTEST](#)
- XXII [NORT'S PLAN](#)
- XXIII [IN DISGUISE](#)
- XXIV [THE BRONTOTHERIUM](#)
- XXV [THE END OF THE SHEEP](#)

THE BOY RANCHERS AT SPUR CREEK

CHAPTER I

SHOTS IN THE NIGHT

With a rattle and a clatter the muddy flivver stopped with a squeak of brakes in front of Diamond X ranch house. From the car leaped three boys, one of them carrying a small leather pouch.

"Here's the mail!" yelled this lad—Bud Merkel by name, and his cousins, Nort and Dick Shannon, added the duet of their voices to his as they cried:

"Mail's in! Lots of letters!"

"Any for me?" asked Nell, reaching out her hand toward Bud. "Don't tell me there isn't!" she pleaded.

"Well, I'm sorry, Sis," began Bud, teasingly, "there was one for you, but driving in we ran over a rattler and——"

"Don't you believe him, Nell!" consoled Nort, who didn't altogether agree with Bud's teasing of his sister. "Your letters are safe in the pouch."

"Oh, there are *letters*, then, are there—not just *one*?" cried Nell with shining eyes. "Thanks a whole lot."

"Don't thank me—thank the postmaster—or whoever wrote you the letters!" laughed Nort.

Bud had sat down on a bench outside the ranch house and was opening the mail pouch. His mother came to the door of the kitchen, wiping flour from her hands, for though Mrs. Merkel kept a "hired girl," and though Nell assisted, yet the mother of Bud insisted on doing much of the work herself, and very able she was, too.

"Any letters for your father?" she asked.

"Two or three," answered Bud, as he looked over the envelopes. "And one for you, Mother."

"Well, take your father's mail to him when you've finished sorting," suggested Mrs. Merkel. "He said he was expecting something of importance. You'll find him over in the bunk house looking after Mr. Watson."

"Mr. *Watson*!" shouted Bud with a laugh. "Do you mean Yellin' Kid?"

"Oh, I guess that's what you call him," assented Mrs. Merkel as she opened her letter. "But his name's Watson."

"Guess you're the only one who remembers that, Ma," chuckled Dick Shannon, for though Mrs. Merkel was only his aunt, she was almost universally called "Ma" on the ranch of Diamond X.

"Yellin' Kid isn't any worse, is he?" asked Bud.

"Oh, no, but your father wanted to change the bandages and it takes some time. You'll find him pretty nearly finished, I guess, though you'd better take his mail to him there."

There had been a slight accident the week before, in which the horse of Yellin' Kid had crowded him against a post in a corral fence, badly bruising and cutting the leg of the cowboy. A doctor had been called, and after the first dressing of the wound had said Mr. Merkel or some of the men could attend to it as much as was necessary, and the ranch owner was now in performance of this duty.

"I'll take the boys' mail, Bud," offered Old Billee, one of the veteran cow punchers of Diamond X. "Don't reckon you got any for me, have you?" he asked with a sort of wistful hope in his voice.

"Sorry, Billee, but there doesn't seem to be any," answered Bud. "Better luck next time."

"No, I don't reckon there will be," sighed Old Billee. "All my friends is dead an' gone, an' nobody else wants t' write t' an ole timer like me." He took the letters destined for the other cowboys who were engaged in various duties about the ranch, saying he would distribute them, while Bud took those destined for his father to the sleeping quarters of the men, where Yellin' Kid was forced to remain temporarily in his bunk.

Nort and Dick had letters from "home," as they called their residence in the East, though they had been west so long now that they might almost be said to live on the ranch. And while Bud's cousins were going over their missives, Mr. Merkel was doing the same with those his son handed him.

"How are you, Kid?" asked Bud of the injured cowboy as Mr. Merkel sat at a table tearing open the various envelopes.

"Oh, I'll be up and around again shortly," was the answer. "If you figure on starting off after any more Indians I could get ready in about two quivers of a steer's nose."

"Guess there won't be any more Indians around here for a while," observed Bud. "We taught those Yaquis a lesson."

"Now you're shoutin'!" exclaimed Yellin' Kid, though it was he, rather than Bud, who spoke in a loud voice—hence the Kid's name. He just couldn't seem to speak in ordinary tones, but appeared to take it for granted that every one was deaf, and so shouted at them.

Suddenly the quiet reading and attention that Mr. Merkel had been giving his letters was broken as he jumped up, scattering the papers to the floor of the bunk house. He held in his hand a single sheet that seemed to cause him great surprise, not to say anger, and he exclaimed:

"Well, it's come, just as I feared it would! Now we're in for some hot times!"

"What's the matter, Dad?" asked Bud, looking toward the door in which his cousins now stood, having finished reading their letters.

"Not another Indian uprising, is it?" asked Bud.

"Almost as bad!" his father answered. "We're going to have trouble. I might have known things were too good to last!"

"What sort of trouble?" inquired Nort.

"With sheep herders," answered Mr. Merkel.

"Sheep herders!" cried Bud, and if you know anything about the cattle business you will realize his tone of voice. For, as I will explain later, sheep herders are hated and despised by cattle men and horse breeders alike, and with good reason, in spite of the rights the sheep men have. "What do you mean?" asked Bud, fully alive to the danger implied by his father's words. "There isn't a sheep within a hundred miles of here, thank goodness!"

"No, but there soon will be," said Mr. Merkel grimly.

"What makes you say that?" and Bud clearly showed his fear and interest.

"Here's an official notice," his father said, waving the paper in his hand. "It just came in the mail yon brought. The government announces that it has thrown open to the public the old Indian lands bordering on Spur Creek, and it won't be a month before the place is over-run with Mexicans, Greasers, and worse, with their stinking sheep! Pah! It makes me sick, after all the work we've done at Diamond X to have it spoiled this way! But I'm not going to sit back and stand it! I'm going to fight!"

"That's right, Dad! I'm with you! I'll fight, too! Won't we, fellows?" he appealed to Nort and Dick.

"Sure we will!" was their answer. And it was, in a way, as much their battle as it was that of Mr. Merkel and his son. For Bud, Nort and Dick had a small ranch of their own in Happy Valley, not far from the main holdings at Diamond X.

"But why do you think we'll be over-run with sheep just because they've opened up the Indian lands?" asked Nort.

"It just naturally follows," his uncle answered. "Every low-down onery sheep man for a hundred miles around has had his eyes on these lands for the last five years, waiting for Uncle Sam to put 'em in the open market. Now the government has finally paid the Indians' claims and those fellows at Washington have decided to make it a free-for-all-race."

"Well, in that case," said Bud, "can't you and the other cattlemen around here jump in and claim the land so there won't be any danger of the sheep men coming in?"

"Well, there's just one hitch," answered Mr. Merkel. "I said it was a free and open race, but it isn't—exactly. Ranchmen who own more than a certain amount of acreage, grazing ground and range, are barred from taking any of this Indian land."

"But there may be enough good cattle men and horse breeders who will take up all the claims and so shut out the sheep," suggested Nort.

"That might happen, but I haven't told you all," said his uncle. "You see boundary lines out here are pretty uncertain. In some places there never has been a survey made. So not only may the sheep men jump in and claim the Indian land that the government has opened, but they'll over-run land that we now use for grazing cattle and horses. And I needn't tell you that once sheep have been on land it's ruined for my business."

This was very true, and though Nort and Dick had once been in the "tenderfoot" class, they had learned of the deep-seated hatred that existed on the part of a cattle man against a sheep owner.

There is a real reason for this. Horses and cattle in the West just naturally hate sheep. It may be that the cattle and horses recognize that the sheep is such a greedy eater that he practically cleans off the grass down to the very roots, whereas a steer or horse leaves enough of the herbage to grow for the next time.

Then, too, the strong smell of sheep seems to annoy horses and cattle. Often a bunch of steers or a herd of horses will stampede and run for miles, merely after getting a whiff of the odor from a bunch of sheep. They will even do this if, in grazing, they come to a place where sheep have been eating. And if sheep wade through a creek the odor of their oily wool seems to remain for days, and horses and cattle refuse to drink, unless almost dying of thirst. So much for the animals themselves, and because of this there was unending war between the horses and cattle on one side, and sheep on the other. Though it cannot be said that the meek sheep did any fighting. They never stampeded because they had to drink from streams where cows and horses had watered, nor did they refuse to nibble grass left by the larger animals.

Aside from the fact that the horse breeders and cattle men were pioneers on the old open range, and naturally resented the coming of the lowly sheep herders, there is another reason for the hatred. Sheep, as I have said, nibble the grass to its very roots. And then the small and sharp feet of the sheep cut into the turf and so chop what few roots that are left as to prevent a new crop of grass from growing—the fodder dies off. And as the sheep are kept constantly on the march, as they greedily eat their way, they spread ruin—at least so the ranchmen thought. So it was and had been war.

"This is bad news—bad news!" muttered Mr. Merkel. "We ranchers will have to get together and talk it over. We've got to do something! I want to talk to Tom Ogden." He was the owner of Circle T ranch, and a friend of Mr. Merkel.

"Shall I go for him in the flivver?" asked Bud, for since the advent of the little car he and his cousins often journeyed in it, leaving their horses in the corral. Though there were places where only a horse could be used, and of course for cattle work no cowboy would think of anything but of being in the saddle.

"No, thank you. I'll call him on the wire," said Mr. Merkel. "I'll have him bring some of the other ranchers over. We've got to act quickly."

"When does the land-grabbing start?" asked Dick.

"It's open now—has been for the last two weeks. This notice is late," said Mr. Merkel, looking at the paper in his hand. "Even now some of the sheep men may be coming up from the Mexican border. We've got to do something mighty sudden!"

Seldom had Bud and his cousins seen Mr. Merkel so moved, and the boys realized from this the grave danger.

That evening a number of wealthy and influential ranch owners gathered at Diamond X to talk the situation over. As cattle men in a small way, the Boy Ranchers, as they were called, were allowed to "sit in" on the conference.

"The worst of it for me," said Mr. Merkel, "is that the range where I breed my best steers is near this Spur Creek tract, and the sheep will naturally over-run my feeding ground."

"Can't you fence it in?" asked Mr. Ogden.

"Too late for that now; it would take weeks to get the wire here, and some of those onery sheep men wouldn't mind cutting the strands, anyhow. It only takes one night for a band of sheep to ruin a good many miles of pasture. No, what we've got to do is to fight 'em from the start—not let 'em get there."

"We'll take up the land ourselves!" exclaimed Henry Small.

"Can't, Hen," objected Mr. Merkel. "We all own our full share now, and maybe a little more. Of course, when you look at it from a legal standpoint a sheep man has just as many rights under the government as we have. But not by custom or western ways."

"Not by a long shot!" cried the other ranchmen.

"I hope your papers are all straight," observed Mr. Ogden to Bud's father.

"What papers?"

"Your deeds and documents that give you the right to land on this side of Spur Creek. If there's a legal question the sheep men may try to jump some of your claims."

"Oh, I guess not," said Mr. Merkel easily. "My papers are all in my safe, and I can prove title by them easily enough. But, gentlemen, what are we going to do? That's the question now. What are we going——"

Mr. Merkel never finished that sentence. For he was interrupted by a fusillade of shots just outside—shots in the night.

An instant later every man in the conference room, and the boy ranchers included, had leaped to his feet, and many hands sought the "guns" that were within easy reach.

"Some of your cowboys disporting themselves?" asked Mr. Ogden of the owner of Diamond X.

Mr. Merkel shook his head.

"Nothing like that," he remarked.

Some one yelled—there were more shots and then the voice of Slim Degnan, foreman of the ranch, was heard shouting:

"Get after 'em, boys! Head 'em off!"

"It's a stampede!" yelled Bud. "Come on, fellows!"

CHAPTER II

MISSING PAPERS

Nort and Dick lost no time following their cowboy cousin, Bud, outside the ranch house, and each of the three lads, as well as Mr. Merkel and his associates, had caught up one of the heavy revolvers that were never far from their hands. For, as has been said of the West, a man doesn't always need a gun out there, but when he does need it, he needs it "mighty bad and mighty sudden."

The boy ranchers were taking no chances.

"What's the matter, Slim?" asked Bud as he rushed outside and saw a group of cowboys near the foreman. They were vaulting to the saddles of their horses which had hurriedly been turned out of the home corral.

"Rustlers!" cried Nort. "Is it rustlers, Slim?"

"Might be, for all I can tell," was the answer. "I saw some men riding along out there, and when I called to know who they were they didn't answer, which was suspicious in itself. Then I told 'em to stop until I could get a look at 'em, but they turned and made off, and that was worse, so I fired a couple of times after 'em."

"Where are they now?" asked Dick.

"That's what we're going to find out; son," was the foreman's grim answer. "You there, Babe?" he called to his fat assistant, who rejoiced in the diminutive nickname.

"All there is of me," was the sighing answer. "Stand still there, you slab-sided chunk of salt pork!" he called to his horse, which was nervously swerving about. And Babe Milton was too heavy to be a quick mounter. He needed special attention on the part of his steed.

"Let's go, fellows!" cried Bud to his cousins, and, not waiting for the permission of Mr. Merkel, the lads saddled their horses and started after the foreman and his cowboys who had gotten a flying start.

"What do you imagine it is?" asked Nort as he rode between his brother and cousin, while they urged their steeds on to catch up to those ahead of them.

"Haven't any idea," answered Bud, glancing back to note that his father and the visiting ranchmen had gone into the house. Probably Mr. Merkel and the others knew the matter could safely be left to the cowboys.

Bud and his cousins rode fleet ponies, and they were more than at home in their saddles, so it did not take them long to reach the bunch of cowboys riding across the plains ahead of them, on the trail of the mysterious night visitors.

"Any idea who they were, Slim?" asked Bud, guiding his horse alongside that of the foreman.

"Not the least in the world. But they're up to no good or they wouldn't have veered off at the first hail. There's something suspicious in that."

"I should say so," agreed Nort.

"Couldn't be any sheep herders coming so soon, to turn their nibblers on our land; could it?" Dick wanted to know. He spoke of "our land," for he and his brother owned a small ranch in partnership with Bud.

"No, I don't reckon it was the sheep herders themselves," said Slim, "but it might be some of their bunch coming to size things up. The government never made a worse mistake than to throw this Indian land open to everybody. Them fellers at Washington should have barred the sheep men!"

To hear Slim talk you would have imagined that he could go to Washington and regulate matters all by himself. But if you understand the feeling of western cattle men and horse men against sheep herders it will make it easier to comprehend.

"Well, if any of 'em try to come to Happy Valley," said Bud, "they'll wish they'd stayed out."

"That's right!" chimed in Nort and Dick.

Suddenly one of the cowboys on the outer fringe of the riding posse uttered a low cry and exclaimed:

"There they are—off to the left!"

As he spoke the moon came out from behind ragged clouds and disclosed two horsemen riding at full speed across the prairie.

"After 'em, fellows!" cried Slim, and he fired some shots in the air.

The boy ranchers put spurs to their steeds—not cruelly but with a gentle touch to let the horses know a burst of speed was needed—and the race was quickly taken up.

And while it is on I will beg a moment or so of the time of my new readers to make them acquainted with the heroes of this story. As related in the first book of this series, called "The Boy Ranchers; or Solving the Mystery at Diamond X," Nort and Dick Shannon, eastern cousins of Bud Merkel, went to the ranch of his father, Diamond X, to spend their vacation. While there certain mysterious happenings occurred. Dr. Hendryx Wright, a college scientist, with a party of helpers, was discovered digging not far from Diamond X. At first it was thought he was after a lost gold mine, but later it was disclosed that he was after the bones of a prehistoric monster for the college museum.

The part that Del Pinzo, a rascally half-breed, played in this search and the activities of the boy ranchers, are fully set forth. Nort and Dick liked it so at Diamond X that they took up their home with Bud, and became partners with him, their father buying them a share in a ranch located in "Happy Valley," as the boys called it.

Following the exciting times related in the first volume, the boy ranchers went to camp, they took the trail and also helped pursue a band of Yaqui Indians who escaped from their Mexican reservation, and the details of those activities will be found in the volumes specifically named for each

line of activity. The book immediately preceding this is called "The Boy Ranchers Among the Indians; or, On the Trail of the Yaquis."

They had not long returned from helping to defeat these marauders, and rescue Rosemary and her brother Floyd, when the news came about the government lands being thrown open. Then had followed the alarm in the night, and the chase, which was now on.

Forward toward the two lone figures spurred the boy ranchers and their cowboy companions. Several more shots rang out, slivers of flame spitting harmlessly into the air, for until more was known of the character of the fugitives, no one desired to fire directly at them. Though in the West it was the custom to shoot first and inquire afterward, Slim Degnan knew it was not always a wise policy. Innocent men might be injured.

However the two fugitives were either such poor riders, or their steeds were so tired, or, possibly, it was a combination of both causes, that the outfit from Diamond X was not long in overhauling them.

"Look out for shots!" warned Snake Purdee, who was now in the lead with Slim.

But the two figures whose horses were rapidly slowing to a walk, showed no signs of fight. Indeed the larger of the two men cried:

"We surrender, gentlemen!"

In the half light of the moon Bud, Nort and Dick looked at each other on hearing that voice. It brought back to them very vividly a picture of strenuous times.

"Don't let 'em shoot, Professor!" chimed in another voice. "If I only had my long poker here——"

"Be quiet, Zeb," spoke the one who had offered to surrender. "You aren't attending the school furnace now."

"I only wish I was," came the rueful comment.

"Did you hear that?" spoke Bud to his cousins.

"It's Professor Wright!" exclaimed Nort and Dick in a sort of surprised duet.

"But what's he doing here, and at night, and why did he run?" asked Bud.

However, these questions could be answered later. Just now Slim and his bunch of cowboys were interested in discovering the object or motive of the strangers of the night—strangers in that the foremen and his helpers had not recognized the identity of the two men. And, in fact, Professor Wright—he of the pre-historic monster fame—was the only one known to the boys, and then only by his voice. Who "Zeb" might be they could only guess.

"Except that I'd say, first shot, he was janitor in some small college where the professor taught," remarked Nort, and this proved to be the case.

"What do you want?" queried Slim of the two former fugitives, though really they were that no longer, being now surrounded by the cowboys.

"We were looking for the ranch of Mr. Merkel—Diamond X it is called, I believe," said the taller of the two strange riders.

"Well, you're running away from it," commented Snake Purdee.

"And why did you fire at us?" asked Slim.

"Gentlemen, I didn't fire. I am Professor Hendryx Wright, and this is my helper, Zeb Tauth. He is the janitor at my school, and I have brought him out west with me. I have a small party accompanying me and we are going to make another search for fossil bones as I did once before at Diamond X ranch. I was looking for the place in the darkness, having left my other men and supplies some distance back, when you suddenly set after us. I took you for horse thieves——"

"Just what we sized *you* up as," laughed Slim, who now had recognized the professor, though Zeb was a stranger. "Mighty sorry to have troubled you," went on the foreman, "but we couldn't take any chances."

"Especially with the sheep herders likely to swoop down on us and spoil everything," added Bud.

"Hello, boys! Are you there?" exclaimed Professor Wright as he recognized the voice of the lad. "You say someone had been stealing your sheep?"

"Shades of Zip Foster! Never that!" cried Bud, calling upon a sort of mythical patron saint whose identity he jealously concealed from his cousins. "When we start herding sheep, Professor, the world will turn the other way."

"We'll explain later," suggested Nort. "If you're going to stop with us, Professor, turn around and come back."

"Gladly," answered the scientist. "But I have left my men and the outfit some miles back, awaiting word as to whether or not I could locate your ranch, and——"

"I'll send a man to bring 'em up," offered the foreman. "Mighty funny, though, about you not firing at me," he added, as the horses were turned back toward Diamond X. "Are you sure your friend didn't?" he asked the professor.

"Zeb doesn't know one end of a gun from the other," said the scientist. "As for me—I have none."

"Mighty queer!" muttered Snake. "Somebody fired all right."

"Must have been another party," suggested Bud. "Maybe you chased the wrong bunch, Slim."

"Maybe I did, Bud," admitted the foreman, "though I didn't think there was two bunches. If there was——"

He did not finish what he intended to say, for his mind was busy with several thoughts engendered by the news that the hated sheep men might come to a land so far held sacred to horses and cattle.

"Yes, it's mighty queer," said Slim musingly, as they turned in toward the corral not far from the ranch house. "Some one fired at me just as the chase began, and if it wasn't the professor——"

Mr. Merkel, followed by some of his ranchmen neighbors, came hurrying from the house. Framed in the lighted doorway stood Ma Merkel and Nell.

"That you, Slim?" asked the owner of Diamond X.

"That's me," was the reply.

"Did you get 'em?"

"Well, in a way, yes," came the slow reply. "They turned out to be friends of yours."

"*Friends?*" questioned Mr. Merkel sharply.

"It's Professor Wright," explained Bud.

"Then you've got the wrong parties!" cried Mr. Merkel. "There's been a robbery here!"

"A *robbery!*" chorused the boy ranchers.

"Yes! In the excitement somebody got in the ranch house and ransacked my safe."

"Did they get much?" Dick asked.

Amid a silence Mr. Merkel answered:

"They took the papers that prove my right to lands along Spur Creek!"

"Spur Creek!" fairly shouted Bud. "That's where they're going to open the Indian holdings—where the sheep men will first head for, and if we can't control that opening our range won't be worth a hill of beans! Are you sure the papers are gone, Dad?"

"I'm only too sure, son," was the grim answer.

CHAPTER III

ON THE TRAIL

Leaving Zeb Tauth to look after his own steed and that of Professor Wright, Bud and his cousins ushered the scientist into the living-room of the ranch house, whither Mr. Merkel and his fellow ranchmen returned, followed by his wife and daughter. Slim Degnan also entered, having turned his horse over to Babe, who, with the other cowboys, went to the corral.

"Now let's get the straight of this," suggested the owner of Diamond X ranch, when the party was again sitting down, and Professor Wright had been made welcome. "Slim, you saw what happened outside. Suppose you tell us about that."

"Seems to me that something more important happened in here," spoke Bud. "If your papers were stolen, Dad, why——"

"They sure were, *son*," interrupted Mr. Merkel, "but I have an idea that what went on outside had a very important bearing on what took place in here. That's why I wanted to hear Slim's account first."

"Well, there isn't an awful lot to tell," said the ranch foreman. "I was sitting outside the corral with the boys, sort of planning up the work for tomorrow. We were talking about this new move of the government, opening the Indian lands, and we were sort of guessing how soon the onery sheep men would bust in on us, when one of the boys—Snake Purdee I reckon it was—said somebody was coming up the trail that leads to Happy Valley.

"First we didn't pay much attention to them, thinking they was some of Bud's boys, but they acted so funny that I hailed 'em, and instead of

answering like they should, they fired. Course I fired back—up in the air—and then we boys got busy and took after 'em."

"Yes, I can understand it from there on," said Mr. Merkel. "But you didn't get the ones you went after; did you?"

"Apparently not," admitted the foreman with a grim smile. "It was pretty dark and we must have missed 'em. But finally we did see two horses streaking it over the plains, and we took after 'em, only to find they were the professor here, and his friend."

"Then the other parties, whoever they were, got away," commented Mr. Merkel.

"Must have," said the foreman. "They'd 'a' had time while we was saddlin' up. But what their object was I can't guess."

"And then we come back here to find you've been robbed," commented Bud. "Say, doesn't it look as though those first parties came around just to draw us off, so someone else could sneak in and rifle the safe?" he asked quickly.

There was a moment of silence, to give the idea time to filter through the minds of all present, and then Mr. Merkel said:

"Son, I believe you've struck it! That was a game to draw our fire on the front, while they sneaked up in the rear to frisk my safe! And the professor _____"

"I hope you don't think I had anything to do with your unfortunate loss!" exclaimed the scientist.

"Of course not!" said Mr. Merkel quickly. "I was about to remark that you being on the scene was purely a matter of accident, though it may have had the effect of drawing Slim and his bunch farther away from the real thieves than was desirable."

"Shouldn't be a bit surprised," admitted the foreman. "It was so dark, before the moon came out, that we couldn't tell much where we were going. But as soon as we picked up the professor and his friend we took after them. Probably this gave the real rascals the chance they wanted."

"Perhaps I had better explain how I happened to be in this neighborhood," said Dr. Wright. "Our discoveries of the prehistoric fossils, at which you helped us so much," he added, nodding toward the boy ranchers, "our discoveries gained us such scientific honors that I have been asked to come back and search for more bones. I had no time to write and tell you I was coming, and that I hoped you would allow my party to make some location on your ranch our headquarters," he said to Mr. Merkel.

"You will be very welcome," the ranchman remarked.

"I am glad to know that," resumed Dr. Wright. "Well, I hurriedly got a party together, taking as my personal helper Zeb Tauth, the janitor of part of the college building where I am stationed. I know Zeb's ways, and he knows mine.

"We rather lost our way in the darkness," continued the scientist, "and, leaving the main party, Zeb and I journeyed on to look for the ranch. We heard shots and saw a party of horsemen riding after us, and Zeb at once concluded we were going to be held up and made the victims of horse thieves. So we did our best to get away."

"You rode mighty well, Professor! Yon rode mighty well!" complimented Slim Degnan.

"But what's the next thing to be done?" asked Bud, as there came a pause in the conversation. "Did they take everything out of the safe, Dad?"

"Well, I didn't have much money in it, luckily, but they did get some valuable papers—documents that prove my claim to land along Spur Creek—land that is the key to the situation in this new tract the government is opening, or, as a matter of fact, has already opened."

"It means the sheep herders can come in then; does it?" asked Nort.

"Practically that, unless I can get back those papers and prove that I am the real owner of the land, and that I owned it before this government opening took place," answered Mr. Merkel.

"It must have been someone interested in sheep herding who knew about the papers, who knew you had them here and who wanted them," commented Dick.

"Yes, that's probably true," assented the ranchman.

"Well, there's only one thing to do," declared Bud.

"Get after 'em!" cried Nort and Dick.

"That's it!" exclaimed their cousin. "We must take the trail after these sheep-herding thieves and get back Dad's papers!"

Bud started from the room.

"You aren't going to take the trail to-night, are you?" asked his father.

"Why not?" demanded Bud. "The longer we wait the better lead they'll have on us."

"I know, but you can't do anything in the dark."

"Yes, we can!" cried Bud. "Come on, boys!" he called to his cousins. "It won't be the first time we've ridden a trail at night. Please pack us up a little grub," he called to his mother and sister.

"Oh, Bud, I hate to have you go," said Ma Merkel.

"Can't be helped!" he laughingly assured her. "We'll be back in a little while, unless we get on the trail of these chaps and run 'em down. While the grub is being packed, Dad, tell us just how they got in and frisked your safe."

"Well, they just naturally got in the back door while we were all out in front watching you boys ride off after those who put up a game to draw us

out," was the answer. "When we went back in the house, after you'd gone, I saw my safe open and a lot of papers scattered about. The combination is very simple. What little money was in it—not much—was taken, and the Spur Creek deeds."

"Well, we'll get 'em back!" cried Bud. "On the trail, fellows!"

And catching up bundles of hastily prepared "snacks," the boy ranchers started on the trail after the thieves, for much depended on their success and an early start was essential.

Bud and his cousins had not ridden far beyond the corral when they heard behind them shouts of:

"Wait a minute! Wait! Come back!"

"What's up now?" questioned Bud, drawing rein.

CHAPTER IV

AROUND THE CAMPFIRE

Naturally impatient, the boy ranchers did not want to return once they had started on the trail of the robbers. They thought they should be allowed to rush off, and perhaps they had an idea they could soon "meet up" with the suspects and bring them back. But Mr. Merkel and the other ranchmen, as well as the veteran cowboys, had no such delusions. However, this was no time to discourage impetuous youth.

"What's the matter, Dad?" asked Bud, as he recognized his father's voice among those bidding him and his cousins to return. "Has someone telephoned in that they've rounded up the thieves?"

No surprise need be occasioned when I speak of telephones in connection with ranching in the far west. Times have changed since the early days of the buffalo and Indians. Both are almost extinct, though the Indians have lasted longer than the bison.

But the West has progressed with other parts of the country, and the advent of the cheap automobile and the spread of telephone wires, and even wireless now, has brought far distant ranches close together. So Bud knew it could easily have been the case that some distant ranchman might have telephoned to Diamond X that he had made a capture of suspicious persons. He may not have known of the theft of Mr. Merkel's Spur Creek papers, for this robbery had not yet been broadcast.

"No telephones, son," said Mr. Merkel easily, as he strode out to where the horses of the boys were pawing the ground, almost as impatient to be gone as were their masters. "But I want you to take one of the men with you."

"Oh, Dad! I don't want to do that!" protested Bud.

"We've hit the trail alone before," added Nort.

"It isn't a question of your ability," went on Mr. Merkel. "But you may have to split—very likely you will, and for this purpose four are better than three. Then you can pair it off."

"That's right," slowly admitted Bud. "Two of us might have to follow one trail, and it would be lonesome for just one to take the other. How about Old Billee?"

"You couldn't pick a better companion," agreed Mr. Merkel.

Billee Dobb was only too glad to get away from the routine work of the ranch—riding herd and helping in the round up and shipping—and quickly saddled to accompany the boys on their ride through the night, in an endeavor to pick up the trail of those who had committed the robbery at Spur Creek.

"Well, I guess we're off this time," remarked Dick, as once more they turned their horses' heads in the general direction supposed to have been taken by the robbers.

It was, as you may surmise, pretty much guess work, and yet there were some clues on which to work, and the boys hoped to pick up others as they went along, by stopping at different ranch houses and making inquiries. Then, too, cowboys would be met with here and there, and they might have seen some trace of the fugitives.

In the olden days, before the West was as much traveled as it is now, it might have been possible for pioneers, such as those featured in the novels of James Fenimore Cooper, to have followed and picked up the trail by the mere physical evidences left on the ground—a footprint here, a hoofmark there, the pressed down grass and so on.

But this was out of the question now, though some slight marks might be discovered in the daytime by the sharp eyes of Billee Dobb, who was a veteran cowboy and plainsman. In this Bud and his companions would have to rely on Billee, as the boys themselves had not had much experience in this line.

"Well, Billee, what do you think of it all?" asked Bud as he rode beside the old man, while Nort and Dick loped along in the rear.

"You mean what happened to-night, Bud?"

"Yep." Bud was clipping his words short to save time.

"Well," said the old man slowly, "I don't know just what to think. It's all mighty queer, but one thing I'll say—this didn't all happen just to-night."

"You mean it was planned in advance?" asked Dick.

"Sartin sure, son! It was a put-up job if ever there was one. Why, just look back over it. Here we all were in peace and quiet, and Mr. Merkel was entertainin' his friends, when up rides a bunch of onery Greasers, if I'm any judge."

"What makes you think they were Greasers?" asked Bud.

"'Cause no decent white men would act like they did. Up they rides, pretending to be sneakin' in on us, maybe to lift a few horses or else stampede a bunch of our cows. But that wasn't their intention at all."

"If it was, Slim and the rest of 'em spoiled their plans," observed Nort.

"Don't worry, they had no notion of takin' anything," declared Old Billee. "They just wanted to take our attention while some of their confederates sneaked in and got Mr. Merkel's papers; and they done that same."

"I'll say they did!" exclaimed Bud in disgust. "It was all too easy for them. But how did they know Dad's papers were in the safe?"

"Well, it's common knowledge that your paw claims the land around Spur Creek," observed Billee. "That's common knowledge. And it wouldn't take a Kansas City lawyer long to figger out that he had papers to prove his claim, an' that he kept these papers in his safe; it bein' equally well known that we haven't much time to fool with banks around here, 'specially in the busy season.

"So all the rascal had to do was to get the house clear, by creatin' some excitement away from it, and then he walked in an' skinned the safe. It didn't help matters any that th' perfesser happened along at the same time, either, and I don't care who knows it!" declared Billee Dobb emphatically.

"You don't mean to say you believe Dr. Wright had any hand in this?" cried Bud.

"Well, maybe *he* didn't 'zactly have a hand in it," grudgingly admitted the old cowpuncher, "but he played right into the hands of th' scoundrels."

"On purpose, do you mean?" asked Nort.

"Well, that's to be found out," remarked Billee musingly.

"Billee, you're 'way off there!" cried Bud. "Professor Wright is as right as his name—we proved that before when he was here after the prehistoric Triceratops bones."

"He may have changed since then," declared Billee. "What did he want to come in and lead us off on a false trail for, when we was hot after the robbers?"

"He didn't do it purposely," asserted Nort, who, with his brother, shared Bud's views as to the integrity of Professor Wright. "It was because he got lost."

"Yes, to hear him tell it," sneered Billee.

"Why, look here!" cried Bud. "What good would it do Professor Wright to get hold of Dad's papers proving ownership to the Spur Creek lands? Why would he want the land? If anybody wants it they must be those who are coming in under the new government ruling—sheep herders maybe, and it's to them we have to look."

"That Wright is just the kind of a chap who'd go in for sheep herding, and spoiling a cattle country," complained Billee, as he pulled up the head of his horse, when the animal showed a tendency to stumble over a prairie dog's hole.

"You're away off!" laughed Bud. "It may have been sheep herders who got Dad's papers, hoping thus to be able to claim a lot of land for their woolly feeders, but Professor Wright had no hand in it."

Billee's only answer was a sniff.

However, as the boy ranchers rode along in the darkness they realized that they could have had no better companion than Old Billee Dobb, for his very vindictiveness, though it might be wrongly directed, made him eager to keep after the robbers. That Professor Wright was other than he claimed to be, none of the boys doubted for a moment.

But who was behind the plot which had just succeeded so well? That was a question which needed answering.

The ranch buildings of Diamond X were soon left behind in the darkness, their pleasant glow fading as the four horsemen of the prairies rode along in silence, looking, as best they could under the faint glow of the moon for the outlines of other horsemen to be shown on the horizon as they topped some rise in the undulating ground.

In general the boy ranchers and Billee were following the trail on which Slim and the cowboys had started after the shots were fired—the trail that was crossed by Professor Wright, causing the pursuers to turn back.

"It would have been better if some of us had kept on when we had the start," commented Nort when, after an hour's ride nothing had been seen.

"Yes, it would," agreed Billee.

"But we didn't know, then, that there had been a robbery," went on Nort.

"That's right," assented Bud. "We just thought it was an ordinary bunch of cattle or horse thieves, and if they had been there would have been nothing else to worry about, as we drove them off."

"Well, we may get 'em yet, but 't isn't very likely," said Billee.

And as the night wore on and they kept their slow pace over the plains, this prediction seemed about to be borne out.

The boys and Billee had stopped at ranch houses here and there to make inquiries about some fleeing band of horsemen, but no one had seen them. The proprietors of most of the ranches were over at Diamond X and had not yet returned. Some of them had telephoned to their foremen or other members of the ranch households, telling about the robbers and saying that Bud and his companions might call.

But beyond this no trace was found of the robbers.

It was long past midnight when Old Billee pulled his horse to a stop, and "slumped" from the saddle.

"What's the matter?" asked Bud. "See some sign?" By this he intended to ask if the old plainsman saw any indications that they were hotter on the trail of those they sought.

"Nope!" answered Old Billee. "But we're going to camp and make coffee and frizzle a bit of bacon. No use keepin' on any longer. We can't do anything more till mornin'."

"Camp it is!" exclaimed Bud, "and I'm not sorry, either."

Shortly a fire was going, made from twigs and branches picked up under a few trees near where the party had stopped, and soon the appetizing aroma of coffee and bacon spread through the night air.

"Um! But this is jolly!" cried Nort.

The horses were picketed out and after the midnight supper the wayfarers rolled themselves in their blankets and prepared to pass what remained of the night in the glow of the campfire, and beneath the fitful light of the cloud-obscured moon.

CHAPTER V

AT SPUR CREEK

Dick was dreaming that he was at a football game, and that his brother Nort had hold of him and was trying to pull him through the line of opposing players to make a touchdown. Then the dream seemed to become confused with reality, and Dick felt some one tugging at the blanket in which he had rolled himself so snugly.

Half awake and half asleep Dick's brain struggled to clear itself and get the right impression of what really was going on. Then he became aware that his blanket was actually being pulled—this was no dream.

"Here! Who's that? What you doing?" he cried, and instinctively he began groping for his gun, which was in its holster in the belt he had taken off for the night.

Something cold and clammy touched Dick on the cheek, causing a shudder to run through him.

"Snakes!" he yelled. "Rattlers! Look out!"

His frantic cries roused the others, and Nort and Bud struggled to free themselves of their enveloping blankets as they sat up near the smouldering blaze of the camp fire.

"What is it?" cried Bud, who had only half heard what his cousin shouted.

"Snakes!" again yelled Dick.

"Snakes nothing!" disgustedly grumbled Billee Dobb, who did not relish having his slumbers broken. "It's too cold for snakes to be out to-night." Then the plainsman tossed on the fire a bit of wood which, when it blazed up, revealed the cause of the disturbance.

"It's your horse!" cried Nort with a laugh. And it was Dick's faithful pony who, having slipped his tether, had wandered over near human companionship, and had been pulling at Dick's blanket with his teeth. Then the animal rubbed his cold and clammy muzzle on Dick's face, giving the lad the impression that a scaly rattlesnake had tried to crawl over him.

"Well, I'll be jiggered! Blackie!" gasped Dick, when he saw that it was his horse. "Whew, but you gave me a fright!"

"You oughter look fust an' yell afterward," commented Billee as he turned over to go to sleep again.

The boys laughed and again wrapped up in their blankets, after Dick had secured his horse with the others. A dim light was now showing in the east, indicating that morning was not far off. But it was cold and cheerless, even with the fire, for it was not a very large blaze, and Dick was glad to follow the example of his brother and cousin and roll up for a final doze before daylight.

"Well, now we'll see what happens," commented Nort, as they were preparing a simple breakfast, over the replenished campfire. "Think we might catch 'em to-day, Billee?"

"It all depends," was the old cow puncher's answer. "We can't spend too much time chasin' these scamps. There's work to be done at the ranch. Hang that perfesser, anyhow!"

"Why?" asked Bud.

"Well, if he hadn't crossed the trail last night when we fust started out, we'd a' had them as we was after by now!" declared Billee.

"Maybe and maybe not," remarked Bud. "It wasn't the professor's fault, anyhow. He just got lost."

"Well, he picked a mighty inconvenient time to do it in," snapped Old Billee, who was always a bit raspy before breakfast.

The sun soon shone warm and glorious, a little too glorious in fact, for it was very hot after 9 o'clock when the trail was again taken up. Daylight did not make the "signs" any more plain—in fact, there was absolutely no trail to follow. All they could do was to keep on, making inquiries here and there at different ranches about suspicious characters.

"We haven't seen any signs of the professor's party," remarked Nort, when they stopped at noon for a "snack."

"No, I fancy they're off in the other direction," remarked Bud. "They will probably be at the ranch when we get back."

"Speaking of getting back, I don't see much use in keeping on," commented Billee. "Those rascals have given us the slip."

"Guess we might as well hit the back trail," agreed Bud. "Dad will have to tell Hank Fowler about this, and Hank can rustle up a posse and see what he can do."

Hank Fowler was the local sheriff and on him, and such men as he might swear in as deputies, devolved the duty of looking after law and order in that part of the west where Diamond X was located, not far from the Mexican border.

The boy ranchers and Billee kept on for another mile, to top a certain high piece of land, over which they could have a good view, as they thought from this vantage point they might see some signs to guide them. But from the eminence they only viewed an endless rolling prairie with here and there a clump of trees. They saw bands of roving cattle and a few horses—their own stock or that of some neighbor, and Billee decided that nothing could be gained by going any farther along the cold trail.

Turning their horses' heads, the members of the little party swung back toward Diamond X. On the way they stopped at the ranch of Bud and his boy partners in Happy Valley, learning that everything was in good shape there, being in the efficient hands of a capable foreman and some cowboys. News of the robbery of Mr. Merkel's safe had already been telephoned to Happy Valley, but though the cowboys had ridden out for several miles in a number of directions, they had seen nothing and no one suspicious they reported.

"No luck, boys?" asked Mr. Merkel as his son and nephews turned their weary horses into the corral and entered the house.

"No luck, Dad," answered Bud. "What's new here?"

"Nothing much. Professor Wright's party came up and he has taken them into camp over near the place where they dug up the monster fossil bones some time ago."

"You didn't hear anything about the fellows who took your papers then? What are you going to do, Dad?"

"Well, I don't know what I can do. It isn't as if this was the east, where such things are a matter of record, and where you have the courts and judges right at hand to put a stop to anything unlawful. It's almost as if an unregistered government bond was stolen. I've got to prove my property against those that have it, and I can't do it very easily, because the men I bought it of originally are all dead or moved away. It's just as if the Spur Creek land was owned by no one, and the first comer has a chance to take it, now that the government has thrown open the tract."

"But you aren't going to sit down and let 'em frisk you that way, are you, Dad?" cried Bud, surprised at what he thought was the supine and non-combative attitude of his parent.

"I should say not, son!" was the vigorous answer. "I'm going to fight!"

"That's more like it!" cried Bud.

"Huray! We're with you!" exclaimed Nort.

"When does the fighting begin!" Dick wanted to know, and almost unconsciously he looked at his "gun."

"We're going to start a camp at Spur Creek right away, and keep some one on guard there constantly," declared Mr. Merkel. "If signs and past performances go for anything, some Mexicans, a few Greasers and a bunch of sheep herders will pour in through the pass and pre-empt everything along Spur Creek any time now. Certain land along Spur Creek did belong to the Indians and as such the government can throw it open to those whose other holdings don't bar them—as I am barred.

"But I don't intend any Greasers or sheep herders shall take the land I bought and paid for, even if they have managed to steal my title deeds and other papers, without which I can't prove my claim. I'm going to fight!" said the ranch owner vigorously.

"And we're with you!" cried Nort, as he tapped his gun.

I do not wish you to understand that the boy ranchers were a blood thirsty trio of "gun-men." As I have explained, you don't always need a gun in the West, but when you do require it the need is generally urgent. Nor are the "guns" (by which term are meant revolvers of large caliber) used in desperate fights against human beings. In the main the guns are used with blank cartridges to direct a bunch of cattle in the way it is desired they should go. Frequently a fusilade of shots, harmless enough in themselves, will serve to turn a stampede which stampede, if not stopped, would result in the death of hundreds of animals who would blindly hurl themselves over a cliff.

Of course there are bad men in the west now, as there used to be, though perhaps not so many, and near the Mexican border roving bands of Indians or half-breeds often try to run off bunches of cattle. In such cases guns with bullets instead of blank cartridges are urgently needed.

Then, too, enemies other than human are occasionally met with. In winter wolves may prowl about, driven desperate by hunger. There is an occasional rattlesnake to be shot up, and so, all in all, a cowboy without a gun would not fit in the picture at all. Though I don't want you to get the idea that the boy ranchers were desperate characters, willing to "pull a gun" on the slightest provocation. The guns were for service, not for bravado.

"Are you going to start a regular camp at Spur Creek, Dad?" asked Bud.

"That's my intention," his father answered. "We've got to be ready to fight these sheep herders who, I feel sure, will pour in here. They have been waiting to get possession of some range near the water, and this is their chance. But they shan't ruin my feeding ground. I've got too much money invested in it to lose it."

"And though we're farther off, in Happy Valley, we might be harmed by sheep, too," said Nort. "So we've got to fight also!"

"That's right!" chimed in his brother.

I have indicated to you, briefly, why the cattle men so hated the sheep herders. Sheep are innocent enough in themselves, and are much needed. Without them a large part of the world would go hungry and only partly clothed.

"But let the sheep herders stick to their own pastures!" was the cry of the cattle men and the horse breeders. "Don't let them foul our streams and cut up our grass."

As I told you, no western horse or cow, unless under dire need, will drink from a stream where sheep have drunk, or through which sheep have passed. And there is no grass left, once a herd of sheep have fed over a tract, while for years afterward there is only a stunted growth of green, if, indeed, any.

So it is no wonder that those at Diamond X prepared to fight the sheep herders, and Spur Creek was the natural place at which to make a stand.

Situated as it was near the Mexican border, the ranch of Diamond X was near the head of a great valley—a natural pass between the two countries. Through this pass flowed Spur Creek, branching out into one or more streams in different places.

You probably know that to successfully raise cattle, horses or sheep two things are needed—food and water. Food is supplied by the various rich grasses that grow naturally on the western plains. Water is not so plentiful in that sometimes arid region, and for that reason is jealously guarded. A ranch with a natural water supply is worth ten times what one is without fluid for the cattle to drink. Driving herds long distances to quench their thirst runs off their fat, and as cattle are now sold by the pound, instead of by the piece, as formerly was the case, the heavier a steer is the more money he brings.

Spur Creek, then, was a valuable asset to Mr. Merkel, and he determined to fight for it to the "last ditch," so to speak. This water was only a part of the courses that were valuable to his ranch. As for the boys, they had a water supply of their own in Happy Valley, though they had had to fight to secure that, as related in the book named "The Boy Ranchers in Camp."

"Well, if there's to be a fight, the sooner the better," commented Bud as he and his cousins washed up at home after their night in the open. They told of their experiences, which really amounted to nothing as far as getting a trace of the fugitives was concerned, and then. Mr. Merkel sent word to Sheriff Fowler of the theft.

"And now we'll build a fort at Spur Creek," said the ranchman.

"A *fort*!" cried Bud.

"Well, it will be a sort of fort," his father went on. "There is one place there just right for defensive operations and we'll put up a shack there and mount guard until the danger is over. Once the sheep men see that we mean business they may throw up their hands and go back where they belong—in Mexico."

There were soon busy times at Diamond X. The flivver was called into requisition, and on it and on wagons was transported to Spur Creek lumber to make a rough shack as a shelter for those who would be kept on guard against the advance of the sheep herders.

"And we're going to form part of that guard!" declared Bud. "Our ranch can run itself for a while. We've got to stick by Dad!"

"That's right!" agreed Nort and Dick. Secretly they rejoiced at the chance of a coming conflict, even though they had so recently had a hard time campaigning against the Yaqui Indians.

It did not take long to throw up a rough shelter at Spur Creek. This could be improved upon as time passed, but it was necessary to make a stand there at once. So, two nights after the alarm and robbery at Diamond X, behold the boy ranchers, with some of their cowboy friends, on guard at the edge of the stream which marked one of the boundaries of the land Mr. Merkel claimed—but land to which he could not now show a legal title because of the theft of his papers.

"Well, all serene so far," observed Bud, as night settled down on them in their new environment.

"Yes, I don't reckon we'll be disturbed," observed Billee, who was there with them.

"It'll give me a chance to pick up, an' get back in th' saddle again," observed Yellin' Kid in his usual loud voice. He had been allowed to form part of the "fort" guard, as it was thought the duties there would not be strenuous for a while, at least, and he could make a better recovery than at Diamond X.

"Well, it's a good place for a fight, if one comes," said Nort, as he looked about the place. It readily lent itself well to fortification, and advantage had been taken of this by Mr. Merkel. The rough shack was an outpost fort in the land that was destined to be battled for by the sheep men on one side and the cattle men on the other.

Quiet evening was settling down, "grub" had been served and the ponies were rubbing noses in the improvised corral when Yellin' Kid, who was venturing to walk around a little to "exercise his game leg," as he expressed it, came to a halt and gazed earnestly across Spur Creek in the direction of Mexico distant several miles.

"What is it, Kid?" asked Billee, who was smoking his pipe.

"Somebody's comin'," was the answer, "an' he's sweatin' leather," which meant that he was riding fast.

The boy ranchers looked in the direction indicated. A lone horseman was approaching from the side of the creek where the enemy might be expected first to appear.

CHAPTER VI

THE ALARM

Gathered in front of their "fort," as it laughingly had been christened, the boy ranchers and their cow puncher comrades watched the approach of the lone horseman. He had come up through the valley—the pass that, like the neck of a bag tied about the middle with a string, connected two great lands—Mexico and the United States. But one land represented law and order to a degree, while the other was woefully lacking in these essentials to progress.

For a time the stranger rode on at the fast pace Yellin' Kid had at first observed, and the atmosphere was so clear that his progress was easily noticed without glasses, though Bud brought out a pair after a moment or two.

Then, suddenly, the approaching horseman seemed to become aware, for the first time, of the new structure at Spur Creek—the "fort" of Diamond X.

For he began to slacken his pace and when a quarter of a mile from the place where Mr. Merkel had determined to make a stand, the horseman pulled up his steed. Then he sat in the saddle and gazed long and earnestly at the shack and those who stood grouped in front of it.

"Look out!" suddenly cried Bud, who was watching the horseman through the glasses. "He's going to draw!"

This meant gun play, and the cowboys realized this, for they lost no time in "ducking" behind shelter. Bud, too, was taking no chances, but as he continued to look, from a vantage point, he said:

"I made a mistake. He's only using glasses, same as I am. He didn't pull a gun."

"Who is he?" asked Nort.

"Anybody we know?" Dick inquired.

"Never saw him before, to my knowledge," remarked Bud. "He's a Mexican or a Greaser, I take it." These terms were almost synonymous,

except that a Mexican was a little higher class than a Greaser half-breed, as the term, was sometimes applied.

"Let me take a look," suggested Yellin' Kid. "I know most of the class on the other side of the Rio Grande."

Long and earnestly the cowboy gazed through the glasses at the lone figure on the other side of Spur Creek—a gaze that was returned with interest, so to speak.

"He's Mex all right," said Yellin' Kid, handing the glasses to Billee, "but what his game is I don't know."

"Looks like he just came to size us up," observed Billee, after an observation, at the conclusion of which the stranger turned his horse and rode slowly off in the direction whence he had come.

"That's right," assented Bud.

"Do you think he's a sheep herder?" asked Nort.

"Might be. Looks mean enough," said Yellin' Kid. The cattle men could say nothing too strong against this despised class of breeders and their innocent charges. Sheep herders were the scum of the earth to the ranchmen, and to say that a man has "gone in for sheep" was to utter the last word against him, though he might be a decent member of society for all that, and with as kind and human instincts as his more affluent neighbor raising cattle or horses.

"Well, he knows we're here and on the job, at any rate," commented Bud as the horseman slowly disappeared from sight in the distance.

"Yes, and he'll very likely tell his band and we'll have them buzzing about our ears before we know it," remarked Billee.

"Then we'll fight!" cried Bud.

"That's right!" chimed in Nort and Dick.

"I wish my leg was in better shape," complained Yellin' Kid. "But I can make a shift to ride if I have to."

However, the next two days passed with no signs of any activities on the part of the enemy. No sheep were sighted being driven up through the pass to the lands that were now, by government proclamation, open to whoever wanted to claim them, barring only those already having large holdings of grazing range.

"But this is only the calm before the storm," declared Bud, when he and his chums talked it over. "We'll have a fight yet."

And it was very likely that this would happen. While waiting, though, every opportunity was taken to better fortify that part of Spur Creek where Mr. Merkel's land began.

The shack was made more comfortable, a telephone line was strung to it from the main ranch at Diamond X, and it was well stocked with provisions.

"And we'd better run in a pipe line so we can pump water directly from the creek into the shack," said Billee when certain improvements were being talked over.

"Why that?" asked Nort.

"Well, it's terrible thing in this hot weather to be cut off from your water supply," said the old frontiersman. "And it might happen that the Greasers and sheep men would get between our fort and the stream. Then we couldn't get out for water without losing our scalps, so to speak. But if we have a pump in here, and the pipe line concealed so the scoundrels can't locate it, we can be assured of a never-ending supply of water."

"It's good advice," decided Mr. Merkel when it was told to him, and, accordingly the pump was installed. During this time no more was seen of the solitary horseman, or, indeed, of any visitors or spies on the Mexican side of Spur Creek. I say the Mexican side, though, as a matter of fact the Mexican border was some miles away, and I merely mention that country to

identify the two sections, one on one side and one on the other of the stream, which was wholly within the United States.

Meanwhile Sheriff Hank Fowler had endeavored to trace the thieves who had robbed Mr. Merkel's safe, but there had been no results. Professor Wright and his men were busily engaged in further search for fossil bones, and they were considered out of suspicion.

Mr. Merkel had engaged the services of a lawyer to take up with the authorities in Washington the matter of his stolen deeds in an effort to hold to his land. There were rumors that a number of the new government claims had been taken up on the land that was once the property of the Indians, and among them some of the claim holders were sheep herders, it was said.

"Well, they'd better keep away from Spur Creek—that's all I got to say!" cried Yellin' Kid in his usual loud tones.

So far, however, there had been no advent of the hated "woollies" as they were sometimes called. But the boy ranchers and their friends did not relax their vigilance. The sheep and their human owners might drift in across the creek at any hour, day or night, so a constant guard was maintained.

It was one rainy, disagreeable night that the alarm came. It was the turn of Bud and Nort to stand watch, and they were keeping wary eyes turned toward the creek boundary through the mist of rain.

"This is no fun," mused Nort as he wrapped his poncho closer about him.

"I've seen more jolly times," agreed Bud with a laugh. "But it can't last forever. Wonder what time it is, anyhow?"

Before Nort could answer there suddenly flashed in the southern sky a glare of fire.

"Lightning!" exclaimed Nort.

"A rocket!" cried Bud, all excited. "It means something, Nort! Maybe the sheep herders are coming!"

CHAPTER VII

A PARLEY

For a moment the two boys remained motionless and quiet, waiting for what might develop. But the dying sparks of the rocket—if such it was—were followed by no other demonstration.

"We'd better call Billee and the others," murmured Bud.

"That's right," agreed Nort in a low voice, though there was no need for this, as the rocket-senders must have been several miles away.

Billee Dobb awakened at the slightest whisper near his bunk, and in a few moments Dick, Yellin' Kid and the other cowboys, of whom there were half a dozen at the "fort," as it was called, were awake. It did not take them long to hustle into their clothes, and then, draped in ponchos, for it was still raining hard, they stood out in the darkness, waiting for what might happen next.

"Couldn't have been a rocket," murmured Old Billee, as the rain pelted down. "It's too wet for that."

"Must have been some Greasers around a camp fire—though how in the name of a maverick they got one to burn I don't see," observed Yellin' Kid, making his voice only a little lower than usual. "Must 'a' been that one of 'em chucked a brand up in the air."

"It wasn't like a fire brand," declared Nort.

"It was just like a regular rocket," added Bud.

Old Billee was about to say something, probably to the effect that it was a false alarm, and that they'd all do better to be back in their warm bunks

when the blackness of the night was suddenly dispelled off to the south by a sliver of flame, followed by a trail of red sparks.

"There she goes again!" cried Bud.

"The same as before," added Nort.

"That's a rocket right enough," admitted Billee.

"Like the time we was after cattle rustlers," said Yellin' Kid, referring to an occasion, not fully set forth in any of the books, when, as the Diamond X took after a gang of cattle thieves, rockets were used as signals by the marauders to communicate with separated bands.

"What do you reckon it means?" asked Dick, who often dropped into the vernacular of the plains.

"Well, it *might* mean almost anything," admitted Old Billee. "Can't be any of Uncle Sam's soldiers that far south, or we'd 'a' heard about it. As near as I can figure it there must be some crowd down there trying to give a signal to some crowd somewhere else."

This was sufficiently vague to have covered almost anything; as sport writers spread the "dope," in talking about a coming football contest between Yale and Princeton.

Yellin' Kid must have sensed this, for with a chuckle he said:

"You're bound to be right, Billee, no matter which way the cat jumps. It sure is *some* crowd signallin' to *another* crowd."

"Do you suppose they're trying to signal us?" asked Dick.

"Don't believe so," remarked Bud. "I think it's some of the sheep men getting ready to rush in here. That rocket is a notice to some of their friends around here that they're going to start."

"Well, if they come we'll stop 'em!" declared Bud, and the others murmured their agreement with this sentiment.

They waited a little longer after the sparks of the second rocket had died away, but the signal—and it seemed positively to be that—was not repeated.

"No use standing here," murmured Old Billee. "It will soon be morning, and if anything happens we'll be ready for it. Let's get our rest out. Is your trick up, Bud?"

"Not quite, Billee."

"Well, Dick and I go on next," remarked Yellin' Kid, "and we might as well jump in now as long as we're up. Turn in, Bud and Nort."

Our young heroes were glad enough to do this, though they never would have asked to be relieved before their time. Accordingly, after a few moments of looking in vain toward where they had seen the rocket, for a repetition of the signals, Bud and Nort went inside the cabin, and stretched out for a little rest before day should fully break.

The remainder of the night—really a short period—was without alarm or any sign that hostile forces were on their way to take possession of land claimed by the owner of Diamond X.

"Grub's ready!" was the musical call of the cook, and soon those who were holding the line at Spur Creek were gathered about the table.

"Well, nothing happened, I see, or, rather, I don't see," remarked Bud to Dick and the Yellin' Kid who had come in off guard duty.

"Nary a thing," answered he of the loud voice. "Didn't hear a peep out of anybody and they wasn't no more fireworks."

"But we'd better keep pretty closely on the watch to-day," suggested Dick. "Those rockets meant something."

"You're right," said Billee Dobb. "We'll stick right close to our little old fort to-day, and, boys, be sure your guns are in quick working order. There may be no shootin' and then, ag'in, there may be," he drawled.

I suppose I need not tell you that the boy ranchers in their secret hearts rather hoped there would be shooting. They had been under fire before, and while they were not foolhardy nor inclined to take risks, they felt that if there was to be a fight on the part of the sheep men to get unlawful possession of Diamond X land, the sooner such a fight took place the better. Suspense was worse than actual conflict.

So after the "chores" had been attended to about the Spur Creek fort (and there were not many duties), it became a matter of waiting. Spur Creek made a bend at this part of Mr. Merkel's holdings, and the fort was situated on what was a sort of triangular peninsula, with the stream flowing on two sides of it. In this way it was what, during the World War, was called a "spearhead" into the country to the south, and it was from this country that the Mexican, Greaser or other sheep herders might be expected to invade the range long held sacred to horses and cattle. But this land, by government proclamation, was now thrown open to all comers.

Because of the peculiar formation of the land it lent itself readily to defense, and also gave a good post for observation. The "fort" had been hastily built on the extreme point, as near the creek as was practical. Back, on either side, extended the banks of the stream, and when breakfast had been served Old Billee, who was in command, selected those who were to patrol the banks on each side of the cabin, for a distance several miles back along the edges of the "spearhead."

The morning passed. The first contingent of scouts had come in to eat and another body was about to go out to relieve them when Bud, who had gone down to the edge of the creek, to clean a particularly muddy pair of shoes, looked across the stream, and uttered a cry of alarm.

Riding up from the southland, Mexico if I may so call it (though the actual country of the Montezumas was distant many miles), was a lone horseman. He was coming along, "sweating leather," and was seen by others of the Diamond X forces almost as soon as observed by Bud.

"Some one's coming!" yelled Bud, and he stood up on the edge of Spur Creek looking at the approaching horseman until Yellin' Kid shouted:

"Better duck back here, boy. No telling when he may unlimber a gun!"

It was good advice and Bud took it, to the extent of getting back nearer the cabin fort. On came the rider, seemingly fearless, until he pulled rein on the other side of the stream and sat there on the back of his panting horse, a most picturesque figure.

"Mex from hat to stirrups," murmured Snake Purdee.

"An' wicked from outside to inside," added Yellin' Kid in a lower voice than usual.

The Mexican rider, for such he seemed to be, raised one hand, smiled to show two rows of very white teeth in the expanse of a very dark face, took off his broad-brimmed and high crowned hat and said:

"Parlez, señors?"

It was in the form of a question, and as such Old Billee answered it.

"Talk?" grunted the veteran cow puncher. "What about?"

"The land," replied the stranger, with another smile evidently intended to be engaging, but which seemed rather mocking. "I come to ask why you are here in such force, evidently to stop any who might wish to cross to feed their stock on open range?"

"Well, it'll save trouble in a way, if you recognize the fact that we are here to stop you," said Billee. "An' we're goin' to! *Sabe?*"

"But for why?" asked the other, speaking English much better than his appearance seemed to indicate he might be able to. "It is land open to all who come, and I have come——"

"Then you may as well go back where you came from!" interrupted Yellin' Kid, "'cause there's going to be no onery sheep pastured here, an' you can roll that in your cigaret an' smoke it!" he added, as the stranger calmly made himself a "smoke" from a wisp of paper and some tobacco he shook into it from a small cloth bag.

There was no answer to this implied challenge on the part of Yellin' Kid, hardly even the flicker of an eyelash to show that the stranger heard and understood.

Yet he must have heard. Yellin' Kid was not one to leave a matter of that sort in doubt. His tones were always above the average.

And that he has made himself plain was evident to all—even to the stranger it would appear. For there was that in his air—something about him—which seemed to say that he had absorbed what the cowboy had intimated.

Whether he would profit by the remarks—well, that was another matter—something for the future.

But if he was at all apprehensive it was not manifested by any tremor of his hands; for not a grain of tobacco was spilled.

CHAPTER VIII

SUSPICIONS

For several moments the situation remained thus; the boy ranchers and their friends were on one side of Spur Creek, determined to repulse any attempt on the part of the strange horseman, who was on the opposite shore, to cross and make a landing. In this case it might be considered a legal taking possession of disputed land, and open the way for a band of sheep men to enter. On the other side was the lone horseman calmly puffing at his cigaret, as if literally taking the advice of Yellin' Kid.

The three boys, and the older cowboys also, had their guns in readiness for action, but it was easy to guess that the lone horseman, unless he was extremely foolhardy, would not attempt to do anything in the face of such odds.

More than two minutes passed, and if you want to know how long this is in a tense situation take out your watch and count the seconds.

Then the stranger on the Mexican side of Spur Creek tossed away his smouldering cigaret stub, took a deep breath and exhaled the smoke. Next he spoke softly.

"You will have no sheep, *señors*?" he asked.

"Nary a sheep!" declared Billee Dobb, "an' you can tell them that sent you!"

A half smile—a contemptuous smirk of the lips—seamed for a moment the bronzed, weather-beaten and wrinkled face of the lone horseman. He tightened the reins and his steed made ready to gallop off.

"I shall see you again, *señors*. *Adios*!" he cried, and, with a graceful wave of his hand he wheeled and rode off as fast as he had approached.

For a few seconds longer there was silence in the ranks of those holding Fort Spur Creek as it might be called. Then Bud broke out with:

"What do you make of that?"

"Can't make much," admitted Old Billee. "If he came to find out whether we were ready, he went away satisfied."

"Regular stage and moving picture stuff!" commented Nort.

"I believe the fellow was an actor," laughed Dick. "The way he flipped his cigaret and waved to us—he must have been in the movies sometime."

"I'll movie him if he comes on this side of Spur Creek!" muttered Snake Purdee. "Him and his '*adios*!' Nothin' but a Greaser, I'll wager!"

"He had his nerve with him," said Old Billee. "But, boys, we mustn't let him get ours. He came to spy out and see what he could pick up."

"Well, he found us ready for him!" exclaimed Yellin' Kid.

"Yes, but maybe he'll go back and report that we aren't ready enough," said Billee.

"What do you mean?" asked Bud.

"I mean he has sized up our force, and he and his gang may be able to bring up enough to beat us back. You see, boys, this land is a rich prize, not only for sheep men but for any who want to use it for grazing. It has water and good grass."

"Well, what's the matter with 'em stayin' on their own side of Spur Creek?" asked Snake, growling out the words.

"That's where they should stay, by rights," said Billee, "and it's where we intend to keep 'em. The other land is open to those who stake it out, I suppose, but on this side it belongs to your father, Bud."

"The trouble is he has to prove it," answered the boy rancher.

"Yes, and that's going to be hard with his papers stolen the way they are," admitted Billee. "Of course it was a put up job, and I have my suspicions of who did it. But this land would be a rich prize for a sheep herder or anybody else, and we've got to fight 'em off."

"Who are you suspicious of?" demanded Bud.

"Never you mind," was the enigmatical answer, given with a shake of the head, "but I have 'em all right. However, that's another matter. What we have to do now is to get ready to meet any of these sheep men if they come up and try to cross the creek."

"You reckon he's gone back to his gang to tell 'em to get ready to come here?" asked Snake.

"Shouldn't wonder," admitted Billee. "But it'll be some time before they can bring up the woollies."

"Sheep travel fast, they eat fast and they ruin water and pastures faster'n Sam Hill!" exclaimed Yellin' Kid, and this was true. If you have ever

watched a flock of sheep feeding you would know this. They eat as though they feared some one was going to take all the grass away on a moment's notice.

"Well, he's ridin' fast," observed Snake, as, shading his eyes with his hat, he gazed in the direction taken by the lone horseman. The fellow was almost out of sight now, and soon was lost to view.

Danger now seemed more imminent than it had been, and, as behooved efficient cowboys, our friends at once began going over the situation and making sure that they had done all that was possible to fortify their position.

Of course, while I have referred to the shack hurriedly erected as a "fort," it was nothing of the sort. There were no heavy walls, and of course no artillery, though the boys wished they did have a machine gun. But, on the other hand, no artillery would be brought up against them, so this evened matters up. If it came to a fight there would be only revolvers used on both sides at first, though later rifles might come into play. However, not even the most rabid of the cowboys from Diamond X really wanted a bloody fight. They would much rather the sheep men kept away, leaving the rightful owners of the land in possession.

But, as Billee had said, the stealing of Mr. Merkel's papers seemed to indicate some deep-laid plot to cheat him of his land that was so valuable.

"We're in as good shape as we can be, until it comes to a showdown and a fight," remarked Billee, when the noon-day meal was served, after they had gone carefully over the defense. "Did you get your dad?" he asked Bud.

"Yes, I had him on the wire," answered the son of the owner of Diamond X. "Nothing new has developed back home, and I told him about this fellow. He thinks, as we do, that he was a spy."

"And, the more I think of it, the more I think I have seen that fellow before," remarked Nort, with a puzzled air.

"Seen him before—what do you mean?" asked Dick.

"Well, his face seemed familiar at first, and then when he lit his cigaret and threw it away, he reminded me of some one."

"Some one in the movies, maybe," said Bud.

"Well, that's what I thought at first," admitted Nort, "though the more I think of it the more I'm certain that I've seen him out here—some time ago. I wish I could recall it."

"I can't place him," said Dick. "Stop thinking of it, Nort. It may come to you all of a sudden."

"It may not amount to anything, anyhow," Nort admitted. "But I have a feeling that I had a run in with that man before."

There was little to do at Spur Creek except await developments, and this waiting was really harder work than actual fighting would have been. It was also more nervous, keeping them all on a strain.

The approach of the enemy and by "enemy" I mean sheep men who might try to pasture their flocks on Mr. Merkel's land, or men who might try to take possession of it—these enemies would appear on the southern side of Spur Creek first, as it was well known there were the largest sheep ranches—just across the Mexican border. And pretty well cropped off were the vast fields, too. That is why there was such an eagerness to get into new and fertile ranges.

In consequence of this, watch was kept on that side of the stream where the lone horseman had appeared. To the north, east and west little danger was apprehended.

On the second day after the parley with this "spy," as he was dubbed, a moving cloud of dust was observed approaching from the north.

You may be sure it did not go long unnoticed, and Dick raised a cry as soon as he saw the indication of someone, or something, coming.

"Get out your guns!" he shouted.

"Maybe it's somebody from Diamond X," spoke Nort.

And a little later it could be seen that the dust was caused by three steers rushing over the dry prairie.

"Must have been a stampede up at your place, Bud," remarked Snake Purdee, as he and the other cowboys rode out in answer to Dick's alarm. "These got away from the main herd. We'll round 'em up."

With their usual loud cries the cowboys rode toward the fleeing cattle, which seemed maddened by some fear, for they never slackened pace. But by skillful rope-throwing two were downed and secured. The third, and fleeter of the trio furnished a bit of amusement for the holders of the fort.

"I'll bulldog him!" shouted Snake Purdee. "Lay off, Kid!" he called to the yeller, for now that his leg was mending Yellin' Kid began to take an active part in all that went on.

"Bulldogging" is a term used in the West to indicate sort of wrestling match with a steer, and the completion of the act sees the animal thrown prone to the ground by the strength and skill of the cowboy.

Urging his pony to a fast pace, Snake rode up alongside the rushing steer and then, when near enough, the cowboy leaped from his horse and raced on foot alongside the steer. Snake reached out and shot his right arm around the animal's neck, reaching over and under until he could grasp the loose, bottom skin. While he was doing this he had to keep pace with the steer, and at times Snake was lifted clear from the ground, while, now and again, he had to throw his legs out to keep them clear of the knees of the now maddened beast.

But Snake had performed this feat before, and was one of the most expert at the *rodeo* games whenever they were held.

His right arm now over the steer's neck, and with his right hand firmly grasping the loose lower, neck-skin, Snake reached out his left hand and caught hold of the tip of the animal's left horn. This was the position he had been working to secure, and the instant he had it, Snake lunged his body

downward against his own left elbow, which brought almost his entire weight, at a powerful leverage, against the brute's horn. At the same time Snake was pulling with his right hand and the effect of this was to twist the steer's neck so that the animal lost its balance.

Its speed slackened and, a moment later it toppled over on its side, and lay there quite exhausted by its run. Though this may sound cruel it was not, and the steer suffered no harm. In fact it was benefited, for its mad race was ended, and there was no telling what might have happened if it had kept on.

The instant Snake saw the steer about to topple over he released his hold and sprang away.

"Well done!" cried Bud. "That was a dandy!"

"Wish I could do that!" sighed Dick.

"Oh, you will, some day," consoled his cousin.

The three runaway steers were thus secured, and as there was no place to care for them at the Fort one of the cowboys was delegated to haze them back to the main herd at Diamond X.

Another day passed in quietness, with no sign from the south of Spur Creek that any hostile band of sheep herders was on the way to lay waste, in a sense, the fertile lands of Mr. Merkel. In the meanwhile there was telephone communication twice a day, or oftener, between the Fort and the main ranch house.

Nothing new had transpired at Diamond X, and the boy ranchers were told that matters in Happy Valley were peaceful.

Of course there were the usual occurrences as there were always such on a big ranch. One or more of the cowboys was continually getting hurt, more or less seriously, and being doctored in the rough and ready fashion that, perforce, prevails in the unsettled part of the West.

For though the life of a cowboy may seem very picturesque when you view it from a seat in a tent or say from Madison Square Garden, in New York, the real facts of the case are vastly different.

No one can ride horses in the slap-dash style the cowboys ride them, and they can not handle cattle—often vicious ones—the way the beasts are handled, without accidents happening.

Nor are cowboys the ones to favor themselves for the sake of avoiding risks. Rather they go out of their way to look for trouble, as it were.

They are filled with bravado.

So it was that while I have said matters were quiet at the two ranches, yet small accidents were continually happening. But, as the boys reported, after a talk over the wire, nothing of great moment had taken place.

"Your dad hasn't heard anything about his stolen papers, has he?" inquired Billee.

"Nary a thing," answered Bud in the vernacular of the west, "and he's beginning to wonder if anything is going to happen down here."

Almost as Bud spoke there came a hail from one of the cowboys who was on the watch, and his cry was instantly taken up with the shout:

"Somebody's coming!"

At once there was an exodus, and as our heroes and their cowboy friends lined up in front of the shack, they saw, coming toward them on the opposite side of Spur Creek, several horsemen, and at the sight of one rider Bud cried:

"It's Professor Wright!"

CHAPTER IX

A CALL FOR HELP

This announcement, calling attention to the approach of the scientist, rather overshadowed other matters for a moment. But the interest was made more intense when the identity of the men accompanying the professor was made known.

"He's in with a bunch of Greasers!" cried Snake Purdee.

"And look who one of 'em is!" added Nort. "It's the *spy*!"

Without doubt one of the approaching party was the same Mexican who had so airily bidden our friends "*adios*," on the occasion of his first visit.

"Well, what do you know about that!" exclaimed Bud.

"What do you reckon the professor is doing, or was doing, over there?" asked Nort.

No one answered him, but Bud turned toward Old Billee.

The veteran cow puncher had spoken of "suspicions." Bud wondered if they were along a line that might connect with the professor. But if Old Billee had anything to say he was keeping it to himself. Though there was a quizzical look on his face as he observed the approaching horseman, of whom Professor Wright appeared to form the nucleus.

"If those fellows think they can cover up their game by getting one of our friends to accompany them, they've got another guess coming," said Bud grimly.

"That's right—don't let 'em cross!" cried Dick.

But the "spy," as he was called for want of a better name, and his Mexican companions, seemed to have no intentions of fording Spur Creek which, though rather wide, was not very deep in some places. Reining in

their horses when yet several hundred feet from the southern bank of the stream, the Mexicans halted, and the one who had ridden up alone several days before, waved his hand toward the waiting cowboys, and then motioned to the professor as if saying:

"There are your friends."

As a matter of fact that is what he did say, for Professor Wright said so when, a little later, he had urged his horse across the creek, and had joined the boy ranchers and their friends.

Watching the scientist cross the stream, the Mexicans stood for a moment, rather picturesque figures on the southern bank and then, when the "spy" had again lighted a cigaret, and waved his hand as if in mocking farewell, the band rode off.

It was a very silent contingent from Diamond X that watched the lone approach of Professor Wright. The scientist seemed worn to weariness, and looked worried as he smiled at his acquaintances and said:

"Well, here I am."

"So we see," observed Billee Dobb, dryly, not to say sarcastically.

"Where have you been?" asked Bud.

"Did they capture you and hold you for ransom?" Nort wanted to know.

"What happened?" asked Dick.

"With my usual stupidity I became lost again," explained Professor Wright. "I have been out looking around, 'prospecting,' I believe it is called, seeking a new deposit of fossil bones. I wandered farther than I intended, and got across the creek. I found I was on the wrong trail, and that there was nothing much of interest there, so I turned to come back. But I must have turned the wrong way, and have gone south instead of north, for I began to note signs that I was approaching the Mexican border.

"I started back then, when these gentlemen overtook me. They were very kind and when I told them where I wanted to go they agreed to accompany me."

"Passing over for the time being the use of the word 'gentlemen,' and realizing that you probably don't know them as well as we do, I'd like to ask if they said why they were coming this way?" asked Billee.

"No, they didn't, and I didn't ask them," replied the professor. "They just seemed to be riding for pleasure."

"Pleasure of their own kind," chuckled Snake.

"Did you see anything of sheep in your wanderings?" asked Yellin' Kid.

The professor thought for a moment before replying. He was always careful to give a correct and exact answer to a question.

"I saw no sheep," he declared.

"That's queer," murmured Billee. "From what news we have it's practically certain they're going to try to rush sheep in here soon, and yet they aren't in sight."

Then Bud bethought himself of something.

"Did you *smell* any sheep, Professor?" the boy asked.

Again the scientist thought before answering.

"Yes, I *smelled* sheep very strongly, though I saw none," he said. "I distinctly remember the smell of sheep, for it brought back to my mind my youthful days when I used to go to the county fair. I *smelled* sheep all right."

"That's more like it!" cried Yellin' Kid.

"Where were they?" asked Billee eagerly.

"That is more than I can say," answered the professor. "We were in a hilly section, when those gentlemen overtook me and kindly offered to escort me here, and it was when the wind blew that I smelled sheep most strongly."

"In what direction was the wind?" asked Nort, for he thought he might get a clue in this way, as he realized the scientist was likely to have noticed natural effects like wind or rain.

"The wind—ah, yes—the wind was blowing from the south," said Professor Wright, after thinking it over for a moment.

"Well, that's where I'd expect 'em to be," declared Old Billee. "They're probably working their way up slowly. Did you see anything else suspicious, Professor—or smell anything?"

"Suspicious!" exclaimed the college man. "What do you mean? Is there anything suspicious in the smell of sheep—or the sight of them, for that matter?"

"I guess you don't understand," spoke Bud. "You have probably been so busy with your research work that you haven't had a chance to hear the news about the opening of the new range land, and the danger of sheep coming in."

"I heard something of this—and the theft of your father's papers—the night I arrived, and caused you so much trouble," the professor admitted. "But, truth to tell, it slipped my mind, and I gave no further thought to it. So you fear the advent of sheep; do you? Are they likely to spread some disease among your cattle?"

"Disease? They'll drive the cattle away!" cried Old Billee, and then it was briefly explained to the professor what a menace the sheep were, though very necessary in their own station of life.

"I'm sorry I didn't observe more closely," said Professor Wright. "As I told you, my mind was filled with thoughts of new fossil deposits I might

discover, and I wandered too far. Then these gentlemen found me and showed me the way back."

"They were glad enough of the excuse," murmured Nort.

"Excuse for what?" the scientist wanted to know.

"Excuse for getting back here to have a peep at us," answered Bud. "They wanted to see if we were still on guard," and he explained about the "fort."

"Well, they found us here and waiting," commented Dick grimly.

Professor Wright consented to stay for lunch at the outpost of Diamond X, but declined an invitation to remain over night, saying he must get back to his colleagues who would be wondering over his long absence.

"Are you sure you can find your way back to your camp?" asked Bud, for the scientists were established not far from Mr. Merkel's ranch houses.

"Oh, yes, I can make it all right," was the reply. "Thank you."

And when he was gone, many curious glances followed him. He was always a matter of curiosity to the cowboys for they could not understand his deep interest in digging up the bones of monster animals that had walked the earth millions of years ago. However, Bud and his cousins could appreciate this scientific interest, knowing what it added to the sum of human knowledge.

But now there was a new source of curiosity regarding the professor, and I am frank to say there was no little suspicion. In spite of the fact that (as I have told you in the first book of this series), the professor was cleared of certain suspicions there still remained, in the mind of some persons, suspicions and lurking thoughts.

Why had the scientist returned to Diamond X at the very time when the government opened the land to claimants? Why had he led astray the pursuit of those who fired the shots that night? And now was his

explanation of how he happened to be in company with those believed to be sheep herders a good explanation?

These were questions that needed answering, though it may be said that the older cowboys were more concerned about them than were the boy ranchers. They were young enough to be naturally unsuspicious of their scientific friend.

"But I wish I knew what he really crossed the creek for," said Billee.

"Then you don't believe his story?" asked Snake Purdee.

"Not by a long shot!" exclaimed Billee. "Do you?"

"'Twas kinder fishy," admitted the other. "But what would his object be, and what was his game?"

Billee had no chance to answer, for just then the telephone bell jingled, and the veteran cow puncher answered it. He had no sooner given the customary "hello," than the expression on his face changed and he cried:

"You don't say so! That's too bad! All right, some of us will be right over."

"What's the matter?" asked Bud anxiously, coming up just in time to hear Billee's remark.

"There's trouble back at the ranch," was the grim answer. "They have just called for help!"

"Trouble! What sort?"

"Oh, nobody's hurt, as far as that goes," Billee hastened to assure the boy. "But there's been a raid on your cattle. Rustlers up to their old tricks, I reckon. It's a call for help from Diamond X!"

CHAPTER X

DEL PINZO'S HAND

Instantly all were astir in the shack that had been erected as a fort on the bank of Spur Creek, and a rush was made for saddles and the usual trappings of a cowboy. Nor were guns forgotten, for if these would not be needed in fighting off the rustlers, they would be of service in driving back a herd of frightened animals determined to put as much distance as possible between themselves and the source of their alarm.

Billee was overwhelmed with questions.

"Who were they?"

"What did they do?"

"Who was on the wire?"

To all of these the veteran raised a hand for silence.

"I'll tell you all I know," he said.

"Maybe you'd better tell us on the run," suggested Yellin' Kid. "If we're goin' t' help we'd better be moseying along, and *pronto* at that."

"Good idea," chuckled Old Billee. "Well," he resumed as they hurried toward the corral where their horses were kept, "it was the boss himself speaking on the wire. He didn't say much except to let it out that we'd better get back as soon as we could. He didn't say who it was that caused the ruction, so you know about as much of it as I do. Then he hung up. But I could hear there was some excitement in your place, lads," he went on to the boy ranchers, "for I could hear some of the boys standing around your dad murmurin' an' talkin', an' I heard somebody ask if they got th' bullet out yet."

"Then there must have been shooting!" cried Dick.

"I reckon!" assented Old Billee.

"Cracky!" cried Nort. "This is like old times!"

"You said it!" voiced Bud.

They were all in the saddles now, pulling their ponies sharply around to head for the trail that led back to Diamond X. Then Old Billee bethought him of something.

"I say!" he sung out. "This won't do!"

"What won't?" asked Nort.

"All of us going off this way. We've got to leave some one here to hold the fort, boys. Them onery sheep herders may steal in on us while we're away, and take possession. An' you know," went on Billee with a momentous shake of his head, "possession is nine points of th' law. Somebody's got t' stay here," he decided. "You two fellers'd better do it," and he pointed to two cowboys who had recently come from Diamond X to augment the guard at Spur Creek.

"Aw, Billee!" objected one. "We don't want t' stay here!"

"Have a heart, old man, an' let us come with you!" pleaded the other. "They won't be nothin' doin' here! Them sheep herders have just seen that we're on guard an' they've gone back home t' report. They won't arrive an' be able t' git any sheep here 'fore we can mosey back if we have to."

"That's right!" joined in the first newcomer who had spoken. "Take us along, Billee!"

"Wa'al," said Billee slowly, as if in doubt, "I don't know how much help they'll need back at Diamond X——"

"Better not take any chances," said Snake Purdee.

"I don't believe the sheep men will come back here again very soon," was Yellin' Kid's usual loud-voiced opinion.

"All right—come along then," conceded Billee, and the two cowboys who were on the verge of being left behind rode with the others. It was fast riding, too, for when word comes in that cattle stealers are in the neighborhood of any ranch, it behooves those charged with the safety of men and animals to be on the "jump." There is always more or less theft going on among the western cattle ranches but most of it is on such a small scale that drastic action is not often taken. No ranchman missed an occasional animal, which may be "lifted" because of dire hunger, perhaps, on the part of some needy person.

But when a "bunch" of valuable steers is driven off and when there are indications that an organized attempt is being made to steal more, this shows the presence of cattle rustlers, and concerted action must be taken against them.

It was this thought that was in the minds of all who thus rode "sweatin' leather" from Spur Creek toward Diamond X ranch, and from the glances that each member of the party cast, now and then, at the weapons swinging at their sides in the big holsters, it was evident that if shooting was to be a part of the game, they would be ready for it.

"Things are livening up a bit, aren't they?" remarked Nort to Bud as the boys rode side by side.

"That's the way they ought to be," declared Dick. "I hate sitting around and waiting for something to happen."

"We didn't have to wait very long," chuckled Bud.

"That's right," agreed Nort. "Wonder who it is that's been after your dad's cattle now?" he ventured.

"Maybe some of the old gang—maybe a new one," replied Bud. "You never can tell."

"You mean Del Pinzo's old gang?" asked Dick.

"He's the worst of the lot—always was and always will be," declared Bud.

"But how does he keep out of jail?" Nort wanted to know.

"That's one of the mysteries of it," went on Bud. "We've had him sent up more than once, but he gets out again by some sort of lawyer's trick. Either that or he breaks jail. The jails around here aren't anything to boast of," he said with a laugh. "They're more a joke than anything else."

"Do you reckon Del Pinzo is out now?" asked Nort.

"Shouldn't wonder a bit," Bud assented. "We can tell whether he had a hand in this or not as soon as we hear dad tell what happened."

Musing on the wily, mean and desperate tricks of this renegade Mexican half-breed, if such was his nationality, the Boy Ranchers and their friends galloped along over the trail to Diamond X. On the way they looked for signs of any cattle raids, but saw none. And these signs are very plain when they do occur.

Generally they were in the shape of the half-eaten carcass of some steer, for the raiders were generally desperate and hungry men, and before driving off a bunch of cattle they would kill one and cut off enough to roast over a hastily built fire.

But there were no indications of that now, and, in fact, there were none of Mr. Merkel's cattle pastured in the section our friends rode over to get to the ranch headquarters.

"Most of the herds are farther north," explained Billee, "an' I reckon that's where th' rustlin' took place."

This proved to be the case when they arrived at Diamond X and had a chance to get some information. Mr. Merkel was out at one of the corrals, talking to some of his men, when his son and nephews rode up with the cowboys from Spur Creek.

"What's the good word, Dad?" greeted Bud.

"Sorry there isn't any good word—it's mostly bad," was the reply. "I didn't like to pull you off from down there," he went on, "but as you didn't seem to be very busy, and as we needed you up here, there didn't seem to be anything else to do."

"Oh, we were glad to come!" Nort hastened to say.

"What's doin'?" asked Billee.

"They're after us again—the rustlers," announced Mr. Merkel.

"Same old gang?" asked Bud.

"I reckon so," his father answered. "It looks like the hand of Del Pinzo. You have to give that rascal credit for knowing just how and when to strike."

"Then he's out of jail again?" asked Yellin' Kid.

"That's what some of the boys seem to think," replied Mr. Merkel. "Here's what happened."

Briefly he told how during a time when many of his men were driving to the nearest railroad station a bunch of choice steers for shipment to Kansas City, a raid was made on an outlying herd that was being fattened in a sheltered valley for future shipment. Not only were a hundred or more steers driven off, but one cowboy of Diamond X was killed and another wounded.

"And didn't our boys shoot back?" demanded Bud indignantly.

"Oh, yes, they gave a good account of themselves," his father replied. "They got three of the Greasers. That's how we made pretty sure it was Del Pinzo again. They were just his type of rascals."

"And so, because I didn't have men enough here to take after the crowd and get my cattle back, and, at the same time, run things on the ranch, I had

to send for you. We'll have to let Spur Creek look after itself for a while."

"I reckon it can, Dad," said Bud. "The sheep herders won't come up for a few days yet, I guess," and he told of the latest development in which Professor Wright was concerned.

"Hum! So he was lost again, was he!" mused Mr. Merkel. "Seems to me he's getting into a regular habit that way."

"Does look so," chuckled Nort. "He's all right in his own way——"

"But he doesn't weigh much!" laughed Bud, perpetrating an old joke at the expense of the professor's thin frame, for he did not have much flesh on his bones. More than one cowboy privately recommended to Bud that his father "pasture" the professor out on some good grass for a season.

"Well, now you know as much as I do," went on Mr. Merkel. "Our cattle have been stolen, and the gang—Del Pinzo's, I'm pretty certain—is driving them south. It's up to us to get after them."

"And we will!" cried Bud. "As soon as we have a bite to eat and can pack up some grub——"

He paused, for the telephone began ringing violently.

CHAPTER XI

COWBOY FUN

Bud, being the nearest to the instrument which was sending out its call from a small shed near the corral—an extension line having been established there—Bud sprang to answer it.

"Hello! Hello!" he called, in his excitement his voice resembling that of Yellin' Kid. "This is Diamond X," Bud went on. "What's the trouble?"

He listened for a moment and then called:

"We'll be right over!"

Hanging up the receiver with a bang on the hook, Bud hurried out of the shed and cried:

"They're at it again! Rustlers just cut out a bunch at North Station and they're hazing 'em off!"

"Whew!" whistled Mr. Merkel. "This is getting serious!"

Little time was lost. Instead of stopping for a "bite," the boy ranchers and their companions hastily swallowed some coffee that "Ma" Merkel and Nell made ready for them. Some "grub" was hastily packed, for the expedition might be out all night—very likely would—and then, saddles, girths and guns having been hastily inspected, the cowboys set forth.

To the bunch that had been on guard at Spur Creek was added some other punchers from Diamond X—as many as could be spared. This was not a large number, for, as Mr. Merkel had said, he had sent some of his men to drive his shipment of steers to the railroad.

This latest raid, word of which had been telephoned in from a distant place by a cowboy who had witnessed it, had taken place at what was called "North Station." This was a sort of auxiliary ranch Mr. Merkel had started when he secured more range land in the spring. By pasturing some cattle around there, several miles were saved in shipping his steers after fattening them up. And, as I have told you, nothing so soon takes valuable fat off cattle as driving them long distances to feed, to water or to a shipping point.

The boy ranchers knew little of North Station, having been there but once, though the trail to it was plain. And as they rode they talked of what might have taken place there.

"Guess whoever was in charge wasn't keepin' a very good lookout, or he'd have stopped the rustlers," observed Snake Purdee.

"Oh, you can't tell," said Billee Dobb. "Accidents will happen, and Del Pinzo is as slick as they come."

They all knew this to be true.

"Well, there's one thing in our favor," remarked Bud, as he urged his horse up between the steeds of Nort and Dick.

"What's that?" asked the latter.

"We're after the rustlers right quick," went on Bud. "Red Dugan, who telephoned in, said the gang driving off our cattle was still in sight as he was talking. So we ought to overtake them by dark."

"Not much fun fighting after dark," observed Dick dubiously.

"That's right," agreed his brother. "You can't tell who you're shooting at or who's shooting at you. How did Red come to be on the job so quickly?" he inquired of Bud.

"Well, you know dad has a lot of telephones set up at different places over his range," the owner's son explained. "He says it doesn't cost much to string a line of his own, and it's mighty handy when you want to send word back to headquarters. It proved so in this case. For Red was out on a distant part of the range, where there happened to be a branch telephone in a box on a pole, and he shot in word of the raid."

"Mighty lucky he did," observed Nort.

"Yes, for we're on the trail almost as soon as the rustlers took it," said Bud.

And indeed the boy ranchers were on the trail, riding hard; for they were some miles from where the raid had taken place, and they knew the rustlers would not spare the cattle they were driving away. For the thieves cared little about running fat off the stock they had "lifted." All they desired was

to get what animals they could, to be sold to some other unscrupulous band, or used for food. Little consideration would be given to the steers.

After keeping to the main trail for some distance, the pursuers struck off to the right, heading more to the south, for it was in this direction they might expect to overtake the rustlers.

Old Billee, who was riding ahead with Yellin' Kid, keeping an anxious lookout for any signs of the rustlers, suddenly raised his hand as a signal to stop. Those following him, including the boy ranchers, pulled in their steeds.

"What's the matter?" called Bud. "See something?"

"No, but I feel something," was the somewhat strange answer.

"What do you mean?" asked Yellin' Kid.

"I mean I'm hungry!" and Old Billee chuckled. "If, as they say, an army fights on its stomach, the same is true about a cowboy. If we're goin' to do any fightin'—an' I reckon we are—then I got to eat!"

"I'm right glad to hear you disperse them there sentiments!" chuckled Snake Purdee. "I was goin' t' tighten up my belt another hole or two, to make my stomach take up less room, but if you're goin' t' eat——"

"Might as well, an' rest the hosses a bit," said Billee. "We'll do all the better afterward."

Accordingly they halted, the horses were turned out to graze, and a fire was built over which bacon could be sizzled and coffee made. These two staples formed the basis of most meals when the cowboys were on the trail, as they were now.

No time was wasted, but Billee knew how to handle his men, and he did not insist on an immediate start after the meal. He knew the value of a little rest after food had been taken. The horses, too, would be fresher for a wait.

But while the afternoon was still young they were on their way again, and before dark they had reached the headquarters of North Station, an auxiliary to Diamond X ranch.

"You fellows got here pretty quick," observed Sam Tod, the foreman at North Station.

"Well, we didn't stop to play mumble-th'-peg along th' way," chuckled Billee. "Now let's hear the yarn straight."

It was hastily told, bearing out what had already been learned of it over the telephone.

"Pack us up a little more grub and we'll keep on," said Billee Dobb to Sam, when the narration was ended.

"You'd better call it a day and stay here for the night," counseled Sam.

"Nothin' doin'!" declared Billee earnestly. "We're goin' t' hit th' trail hard!"

"Now listen a moment," begged Sam. "I know this part of the country better 'n what you do, Billee, though I give in to you on lots of points. This section is pretty rough, an' them rustlers won't be able to make any kind of speed with th' cattle. You can catch up t' 'em better if you make an early mornin' start than if you keep on now."

"You think so?" asked Billee, who was not "sot in his ways," as he often said.

"I'm sure of it," declared Sam.

"Wa'al, mebby you're right," conceded the veteran cowboy. "What say, fellows?" and he appealed to Bud and the others.

"I say let's stay here for th' night," decided Yellin' Kid. "As Sam says, we can make better time in th' mornin'. Th' rustlers can't drive cattle only so fast, anyhow."

"Unless they stampede 'em," put in Bud.

"That's what they did t' get away from where we had 'em pastured," declared Sam. "But if they get 'em that wild now the animals is likely t' break away, an' that isn't what this bunch of Greasers is countin' on."

"I guess you're right," admitted Bud. "It's about a fifty-fifty proposition, and we'd better wait here over night."

This decided, little time was lost in taking saddles from the horses and turning them into the corral, while their riders made ready to wash up, prepare for the evening meal and rest.

As Snake Purdee turned his pony in and hung the saddle over the fence he noticed a small enclosure in one corner of the corral, in which were two rather sorry-looking specimens of horseflesh.

"What you got there, Sam?" he asked, nodding toward the two sequestered steeds.

"Oh, couple a' outlaws," was the answer.

Snake's eyes seemed to sparkle with new light.

"Reg'lar man-killers?" he asked eagerly.

"Might call 'em that," assented Sam with a smile.

"Can't nobody ride em?" went on Snake.

"Th' last man what did has a broken leg on one side, an' a lot of skin chewed off on th' other," answered the foreman grimly.

"Whoopee!" yelled Snake, "I'll ride 'em! I'll fan 'em! Wow! Now for some fun!"

"Fun!" exclaimed Dick, who knew what was in prospect. "Oh, boy!" he added to his brother, "now for some rough riding!"

CHAPTER XII

AFTER THE RUSTLERS

"Rough riding," as it is called, made up more than half the fun the cowboys indulged in among themselves. There has, of late years, been so much of this done in public, in traveling "wild west" shows, and in exhibitions of some features of the *rodeo* in New York and other large cities, that I believe most of you are familiar with the feats of cowboys on these trained and untrained "broncks," or outlaw horses—"mankillers" some of them are dubbed.

I might say that there are two classes of this rough riding. One is the real thing, on horses or cow ponies that are naturally bad, and never can be broken or trained to behave. The other is on what might be called "professional buckers." That is, horses which have trained to try and unseat their riders as long as they are expected to do this.

I venture to say most of you have seen exhibitions of rough riding in a wild west, traveling show, or in some *rodeo*, as an imitation round-up is called after its Spanish title. And most of you, I believe, have been impressed with the fact that as soon as the man got off the back of the bucking steed the said steed became as gentle as a lamb. This is what those that are trained to it do purposely, but it is not what a real dyed-in-the-wool outlaw does. For he does not let up in his attack on the man even after the latter is out of the saddle.

Perhaps some of you, at a *rodeo*, have seen a rider come bursting out of the pen on the back of a rearing, bucking, leaping steed. After the first burst two cowboys would ride up, one on either side of the buckers, and take off, on their own stirrups or saddle the fearless rider. And then the so-called "outlaw" would let himself be led meekly back into the pen to be ready for the next performance, when it would all be gone through with again.

But occasionally you may have seen one of these horses lash out viciously with his heels, in an endeavor to kick anyone he could reach, not even excluding his fellow steeds. This is a specimen of a real outlaw, who never lets up in his fight against man. But few of these horses are taken about in a traveling show. They are too dangerous.

However, the two that were fenced off in the corral at North Station were of the real "bad" variety. They had been partly tamed, but their tempers had been spoiled and they were really dangerous to approach. Hence they were confined in a small space, and not allowed out.

However, cowboys are by nature reckless, and to them bucking horses are but a source of amusement and rivalry. Each cowboy thinks he can ride some steed no one else can mount. And for the purpose of contests or exhibitions, to relieve the monotony of "riding range," there are facilities for saddling and bridling these horses without danger to those doing it.

This method consists of putting the horse in a long narrow place like a stall in a stable, through the bars of which the boys can reach in, throw on the saddle and tighten it. Then a rider can climb into the saddle over the top rail of the fence and at a signal a gate can be opened, allowing the maddened steed to rush out.

Then the fun begins.

"I'm goin' t' ride!" yelled Snake.

"Take th' big one then," advised Sam. "He ain't quite so bad as th' other."

"I want th' meanest one!" insisted Snake, "an' if it's th' smallest I'll ride him!"

"Better not!" advised the foreman, but Snake was not to be persuaded against it. And the other cowboys, scenting fun, were not very anxious to have Snake change his mind.

Accordingly some of the men who had handled Red Pepper before—Red Pepper being the name of the horse—arranged to get a saddle on him, and

to slip a sort of bridle over his head. But he had no bit, for it was as much as a man's hands were worth to try and force the bar of steel between the teeth of this outlaw.

"Now you watch me!" cried Snake when, after hard work, the saddle had been strapped on and pulled tight. "I'm goin' t' fan him."

I might explain that it is considered cowboy ethics to ride with only one hand on the reins, whether a bit is used or not, and in the other hand, usually the left, the cowboy carries his hat with which he hits the steed on either side of the neck, "fanning him," it is called. And no rough rider would ever think of sitting on the worst buckner in the world without thus riding with one hand and "fanning" with the other. Meanwhile, of course, he keeps up a wild whooping sound, just to show his spirits.

The feeling of a man on his back—a feeling he hates, the wild whooping, the jab of the spurs and the flapping hat around his head serves further to madden the buckner and it is a wonder any human being can stay on his back a second. Yet cowboys do, and ride until they are tired of the sport.

"Are you ready?" called the cowboys who had saddled the "mankiller," as Sam dubbed the small horse.

"Let him out!" yelled Snake.

The fastenings of the gate were loosed and out rushed the animal with the cowboy bobbing about on his back. Red Pepper seemed a whirlwind of fury. He rushed forward, his nose almost touching the ground, and then he began to go up in the air. Up he would leap, coming down with all four legs held stiff and his back arched, to shake, if it were possible, Snake from the saddle. The cowboy rose in his stirrups to take the shock as much as possible from his frame, and with a yell, began "fanning" Red Pepper.

This added to the fury of the beast, and it fairly screamed in rage and, reaching back, tried to bite Snake's legs. But they were protected by heavy leather "chaps," and the animal soon realized this.

He now began leaping sideways, a form of bucking that often unseats a rider, but Snake was proof against this. And all the while the animal was dashing around the larger corral, on the fence of which sat the boy ranchers and their friends, watching this cowboy fun. As they watched they laughed and called such remarks as:

"Fan him, Snake! Fan him!"

"Whoopee! That's stickin' to him!"

"Tickle him in the ear, Snake!"

"Want any court plaster t' hold you down?"

Snake paid little attention to this "advice" of his friends. In fact he had little time, for he discovered that his "work was all cut out for him," before he had been many seconds on the back of Red Pepper. The steed in very truth was an outlaw of the worst type.

Finding that the methods usually successful—those of bucking and kicking out with his hind feet—were of no avail, the animal adopted new tactics. He reared high in the air, with a scream of rage—reared so high that there was a gasp of dismay from the spectators. For surely it seemed that the horse would topple over backward and, falling on Snake, would crush and kill him.

But the cowboy had ridden horses like this before, and with a smart blow between the animal's ears Snake gave notice that it would be considered more polite if his steed would keep on all four feet.

Down came Red Pepper with a jar that shook every bone in Snake's body, but he remained in the saddle, and with more wild yells brought his broad-brimmed hat down again and again on the animal's neck.

Again Red Pepper dashed forward, bucked again, worse than before and still finding the hated rider on his back began to play one of his most desperate tricks.

This consisted of lying down and trying to roll over his rider. If successful, it would crush the rider almost as badly as if he had been toppled on from a backward fall.

"Look out, Snake! He's going to roll!" warned Sam.

But Snake was ready.

Suddenly Red Pepper stopped bucking. But before Snake could catch his labored breath the horse knelt down and started to roll over, at the same time opening his mouth to bite whatever portion of Snake first came within reach.

Snake, however, had been through an experience like this before. In an instant he had leaped from the saddle and was out of danger. That is, out of danger in a way. But he and the others realized that as soon as he could Red Pepper would get to his feet again and run after the cowboy. It was that which made this particular animal so dangerous. He never gave up fighting his rider, even when the latter was unseated; and he had killed two men.

"Watch yourself!" cried Sam.

But Snake was ready, and so were some of the other cowboys, for they had feared just this ending of the attempt to ride Red Pepper. No sooner was Snake out of the saddle than two of his friends dashed toward him, picking him up between them so that he rode with a foot on either of their inner stirrups.

Meanwhile some other cowboys rode up to get the outlaw back into the corral. This was no easy work, but they had given him little chance, and with two lariats about his neck, so that he could be held from either side, he was, after some time, gotten back in his pen.

"Well, I rode him," chuckled Snake, when it was all over.

"And you came out of it luckier than lots of 'em," added the foreman. "Red Pepper sure is a bad one!"

"Oh, shucks!" laughed Snake. "That jest gave me an appetite."

And, really, it seemed to. But perhaps Snake was hungry, anyhow.

After the meal there was a general talk about the raid of the rustlers. And then as the cowboys sat about in the evening they indulged in various forms of sport and fun, in which the boy ranchers joined.

Bright and early those who were to take the trail after the cattle thieves were on their way, taking with them enough food to last for several days. They were now better prepared than when they had first started out from Diamond X.

It was comparatively easy to pick up the trail left by the rustlers and soon our friends were riding after them, though of course several hours behind them. But as had been said, the ground was of a nature that did not lend itself well to haste, and if the thieves stampeded their animals they would, very likely, lose them. They could only go so fast and Billee and his cowboys hoped soon to come up to the raiders.

It was nearly noon when one of the cowboys who was riding on ahead, came to a stop on a little rise of land and, shading his eyes from the sun, looked long and earnestly off to his left.

"See anything?" asked Bud, who with his cousins rode up.

"I think so, but I'm not sure," was the reply. "But doesn't it look like a bunch of cattle there?" and he pointed.

The boy ranchers gazed earnestly.

"It sure does look like 'em to me!" declared Nort.

"Could it be one of our regular herds?" Dick asked.

"None of our cattle are down that way," the cowboy said.

"Then they're rustlers!" cried Bud. "After 'em, boys!"

CHAPTER XIII

A CLOUD OF DUST

Flappings of heels to the flanks of horses, the tightening of reins, firmer seats in the saddles and glances at the heavy revolvers swinging in their holsters at the sides of the riders came as a prelude to the burst of speed which immediately followed the sight of the distant herd of cattle being hazed across the prairie.

"Whoop-ee!" cried Yellin' Kid. "We'll show 'em what's what! Whoop-ee!"

"Reckon you can stand a fight?" asked Nort, looking at the leg of the cowboy, which had been severely injured.

"Shucks, yes! I'm all right now! I'd a leetle mite ruther lick a bunch of sheep herders than jest plain onery cattle rustlers," went on Yellin' Kid, "but anythin' for a fight!"

"You said it!" chimed in some of the other rough but ready and earnest punchers.

"I s'pose there will be a fight," mused Dick.

"Unless they quit and run," said Bud. "You don't mind a little thing like a fight, do you?" he asked his cousin. "Of course not! I was only joking!" he quickly added as he saw a look on Dick's face.

"It won't be the first time we've had a scrap," remarked Nort.

All this while they were riding hard toward the distant group which, at first had been but a cloud of dust, but which now resolved itself into forms of horsemen and cattle.

And as the outfit from Diamond X approached nearer, it could be seen that the drivers of the cattle were not regulation cowboys from any ranch north of the Rio Grande. There was an air and manner about the horsemen urging on the weary cattle which betokened them as irregulars—rustlers, in other words.

The advantage—such as it was—appeared to be with the boy ranchers and their friends, for they were on fresh horses, and could ride hither and yon without having to drive before them, and keep from stampeding, a bunch of cattle. As for the rustlers the success of their raid depended on keeping the cattle they had stolen. Once the small herd got beyond their control, they might as well cut and run for it, since it would be a case of everyone save himself, and every man for himself.

"Some of you cut out the cattle, boys," advised Old Billee, as he spurred along with the youngest rider. For though this veteran more than doubled the years of the boy ranchers, he was almost as "spry" as any of them. "Cut out the cattle, and we'll look after these rustlers."

There were members enough in the outfit from Diamond X to provide for a division of forces—enabling them to execute a flank movement, as it were, though this does not exactly describe it.

"What's the best thing to do?" asked Bud, willing to take advice from his father's able helper. Bud was willing to learn, a most commendable spirit in a youth.

"Wa'al, this would be about as good a plan as any," remarked Old Billee, as he still continued to ride on, but at the same time he was, with his keen eyes, looking over the lay of the land. "Bud, you and your cousins ride off to the left, with Hank and Sam, and see if you can cut out the steers. If you can circle 'em around and bring 'em up behind where we are now—or as near as you can. I'll take the rest of the boys and see if we can't speed up and close with the rustlers."

Bud at once saw that this was giving him and his boy chums, as well as Sam and Hank, the other two cowboys, quite the safest end of the battle. The cattle could be cut out without coming into very close contact with the

desperate rustlers. The fight with them would be taken care of by the more experienced Billee and his men.

Bud thought it over for a moment. He was not afraid of danger, but he was not foolhardy, and he knew the veteran had been in many more engagements like this than had Bud himself. Also Bud was too good a soldier to object to taking orders.

"All right," he finally said. "Suits me, Billee. How about you fellows?" he asked Nort and Dick.

With short nods they agreed to Billee's plan, and a few minutes later it was put into execution. The outfit from Diamond X separated, and while Bud and his party spurred ahead to cut out the cattle, the others circled around to make a "flank" attack, as it might be called.

"Here we go!" cried Bud who, naturally, was the leader of the "cutting out" sally.

On rushed the horses, the boys clapping heels to them and "fanning" them with their hats to urge them to greater speed. They were quite close, now, to the band of cattle being hazed away, and on some of the lagging steers could be made out the branding marks of the Diamond X ranch.

"Those are ours all right!" cried Bud to his cousins.

"And we'll have 'em back soon," added Dick.

"We'd better begin shooting," called out Hank, one of the two cowboys who had been assigned to duty with Bud.

This was not as serious as it sounds, for the shots were not to be directed at the rustlers but fired in the air to startle the cattle. In cutting out, or, rather, in separating from those who had stolen them the steers from Diamond X, it was necessary to get the animals on the run. They could then more easily be driven where they were wanted.

By this time, of course, the rustlers knew they were in danger not only of losing their ill-gotten cattle, but of losing their own freedom and perhaps their lives. They could be arrested and sent to jail for theft if they were caught.

For a few minutes after the pursuit became close, the rustlers made an attempt to get the cattle into one of the many small valleys with which the country around there abounded. But they soon saw that it was a losing fight. The animals were too wearied to be driven at much speed.

Then some order seemed to have been given by the leader of the rustlers, for the nondescript bunch of cattle thieves swung off, and practically abandoned their four-footed charges.

This made it easier for the boy ranchers, though the task of urging the cattle away from the line they were traveling was hard enough at best.

"Come on!" yelled Bud, when he saw what was happening. "We've got 'em going!"

This was true, as regarded the rustlers. They were about to save themselves if they could.

With drawn guns, firing rapidly and yelling as loudly as they could, the boy ranchers rode in among the frightened steers, endeavoring to turn them off to the right. For a moment it seemed as if they were not going to do this, but eventually their tactics succeeded, and the leaders of the herd swung off. Then the others followed and it was now a comparatively easy matter to drive them along where it was desired they should go.

"Poor things!" murmured Dick sympathetically, as he saw the weary cattle. "We'll have to let 'em rest, Bud."

"Guess you're right," agreed the son of the Diamond X owner. "They won't be much good for shipping to market until they get some fat back on their bones." Many of the cattle were in woeful shape, and all suffered from lack of water, since the rustlers had driven them so hard, endeavoring to get

far away with them as soon as possible that they had not stopped to water them.

"There's a little stream over there," announced Sam, one of the cowboys who knew this part of the country well. "We can haze 'em over there and keep 'em for a while."

This was considered the best thing to do, and soon the weary cattle were drinking their first water in many hours. Afterward they all lay down to rest, not even eating until some of the weariness had passed.

Meanwhile the cowboys under Old Billee had come to close quarters with the rustlers and the fight started immediately. There was nothing unusual about it, the rustlers merely desiring to get away and the outfit from Diamond X wishing to capture them to make them pay for their lawlessness.

One rustler was captured, for he was so wounded that he fell from his horse. The others got away, one badly hurt, it seemed, for he had to be taken in charge by one of his companions who lifted him to his own saddle.

As for Billee and his forces, they suffered somewhat, two of the cowboys being painfully wounded by bullets. But, on the whole, the affair ended much better than might have been expected. The stolen cattle had been recovered, in as good condition as could be hoped for, and the rustlers had been driven off, with the exception of the wounded one.

It was planned to take him to the nearest jail, but this trouble was obviated for the man died in the night.

Riding back after having driven off the rustlers, Billee and his men found the cattle quietly resting, while Bud and his friends were doing likewise, as they had ridden hard.

"We'll camp here for the night," decided Billee. "Too bad there isn't a telephone here that we could use to send word back to your dad, Bud. But we can't have everything."

"No," agreed Yellin' Kid with a chuckle. "I'd like a room an' a bath with plenty of hot water, but I don't see any growin' on no trees around here!"

However, the cowboys were used to this sort of life and they counted it no unusual hardship. A fire was made, those who had been scarred by bullets were looked after and then the ever-welcome "grub" was served.

The next day, after the hasty burial of the dead rustler, on whom little sympathy was wasted, and concerning whose identity no one cared much, the march back to Diamond X was begun, the cattle being slowly driven toward their former pasture. As not all the cowboys were needed for this, a sufficient number were told off by Billee, and the remainder, including the boy ranchers, made better speed back to headquarters.

There the news of the successful chase after the rustlers was received with satisfaction, and Mr. Merkel said he hoped it would be a lesson to other thieves.

"I wish we could give the same sort of lesson to any sheep herders that might be around here," remarked Bud.

"That's so," said his father. "And perhaps you'd better be getting back to Spur Creek. No telling what might have happened while you've been away. We didn't leave anyone on guard."

"I don't know as it was necessary," said Bud. "But, all the same, we'd better get back."

They made the start early the next morning—the boy ranchers, with Yellin' Kid and Snake, and there was the promise of more cowboys to help them hold the "fort" should it be considered necessary.

"Well, everything seems to be all right," remarked Bud as he and his party rode up to the shack on the edge of the stream. "No signs of the sheep yet."

"And no smell, either," chuckled Yellin' Kid, as he sniffed the air.

"It takes the perferesser for that!" said Snake with a laugh.

"I wonder what Professor Wright is doing?" said Nort.

"Oh, digging up a lot of old bones, I reckon," Bud answered. "But let's get grub and rest. I'm tired."

The events of the past few days had been strenuous enough to make them all welcome a period of rest. And they had it, for a few hours. And then something occurred to start a series of happenings that lasted and created excitement for some time.

It was toward the middle of the afternoon when Nort, who had gone down the stream a little way, looked across Spur Creek and saw hanging in the hazy air a cloud of dust.

"Wonder if that's a wind storm," he mused. But as there was not a sign of vapor in the clear blue sky he gave up that theory. "Guess I'd better let 'em know," he thought, turning back toward the fort.

And when the others came out to look at the cloud of dust, on the Mexican side of the river—a cloud which had grown larger—Bud exclaimed:

"Sheep, I'll bet a hat!"

CHAPTER XIV

THE SHEEP ARRIVE

Among the saddles, horse-gear, weapons, grub and other equipment that had been put in the fort at Spur Creek was a telescope. Remembering this, Bud rushed in to get it, while his companions stood in front of the place, gazing across the stream at the ever-increasing cloud of dust.

"Something's comin' on, anyhow," observed Yellin' Kid.

"Can't be cattle," remarked Snake Purdee. "They ain't spread out enough for cattle."

This was one way of telling, for, as the cowboy said, cattle, meaning by that steers or a herd of grazing horses, separate much more than do sheep, which stick in a bunch as they feed. Still there was no being certain of it until Bud should take an observation through the glass.

"Might be another bunch of Greasers—or rustlers," said Snake, musingly.

"There's plenty of both kinds down there," agreed Nort, with a wave of his hand in the general direction of Mexico, the border of which misruled, unhappy and greatly-misunderstood country was not far away.

Bud came running out with the telescope, pulling shiny brass lengths to their limit before focusing it.

"We'll soon tell now," he said, as he raised the objective glass and pointed it at the cloud of dust, while he squinted through the eye-piece. A moment later, after he had made a better adjustment of the focus, he cried: "It's sheep all right! A big bunch of 'em!"

"Any men with 'em? No, I shouldn't call 'em men," hastily corrected Dick. "No decent man would raise sheep."

In this, of course, he was wrong. Sheep are needful and many a rancher is making a fortune out of them, but at this time, and in this part of the west, a sheep herder was despised and hated by his fellows.

"Yes, there's a bunch of Greasers or some one hazin' 'em on," reported Bud. "Here, Kid, take a look," and he passed the glass to the older cowboy.

The latter could but confirm what Bud had seen and then, in turn, the other three had a look through the telescope, which brought the details of the oncoming herd of "woollies" startlingly near.

"Well, what we goin' to do about it?" asked Yellin' Kid, after they had made sure the sheep were headed toward the east bank of Spur Creek.

"We're going to stop 'em from coming over here," declared Bud determinedly.

"Maybe they don't intend to come," suggested Nort.

"What are they heading this way for, then?" demanded his cousin.

"To get better pasture."

"Well, what pasture there is on that side of Spur Creek won't last the sheep very long!" exclaimed Snake Purdee. "They'll be over here in a couple of days at the most. Reckon they think they have a right to this range."

"Which they haven't," said Bud, "though how dad is going to prove his claim, with the papers gone, I don't see."

"We'll prove it with force—that's what we'll do!" shouted Yellin' Kid. "That's what we're here for. That's what we got our guns for!" and significantly he tapped the one on his hip.

"Yes, I reckon we'll have to fight," conceded Bud with a half sigh. He was not afraid, but he knew in a fight some would be hurt and perhaps more than one killed. And this was not as it ought to be. Still with each side standing on what it considered its rights, what else could be expected?

"How many Greasers they got?" asked Yellin' Kid, after a pause, during which Bud took another observation through the glass.

The boy rancher looked, seemed to be counting and then, as he lowered the glass from his eye, he answered:

"There's a dozen of 'em!"

Significantly Nort silently, but obviously, counted those of his own party. There were but five, for some of the cowboys had been left at Diamond X

after the defeat of the rustlers.

"We'd better let your dad know—what say?" asked Kid of Bud.

"I think so—yes. And he'd better send out a few more men. We don't want to take any chances."

This was considered a wise move. But before going in to telephone to his father—for that was the most rapid method of letting him know the situation so he could send help—before going to the instrument Bud asked:

"Say, I'm wondering how, if those fellows intend to take this open range pasture—how are they going to get their sheep over?"

"You mean over the river?" asked Nort.

"Yes. How they going to get the animals across so they can feed on this side?"

For a moment no one answered, then Yellin' Kid replied:

"Why, they'll just naturally haze 'em over; that's all."

"You mean drive 'em through the creek?" asked Bud.

"Sure."

"The water's too deep."

"Maybe there's a ford," suggested Kid.

Bud shook his head.

"I tried to find one for my horse the other day," he said. "I thought I had but it was a quicksand and I was glad enough to get out without being stuck. There's no ford now for miles up and down the Creek from here—that is, none that I know of, especially not since high water."

For the level of Spur Creek had risen in the last few days, since the professor crossed, caused, it was learned later, by the diversion into the creek of a larger stream by some irrigation plan company further north.

"Well, if they can't make the sheep wade over they can swim 'em, can't they?" asked Dick.

"'Tisn't so easy to make sheep swim," declared Yellin' Kid with a shake of his head. "Sheep are scary critters at best. You might get them in the water if you had a good leader, but if I was a sheep man—which I never hope to be—I'd think twice 'fore I'd float 'em across a stream, 'specially if it had quicksands in."

"Well, this has," affirmed Bud. "They come and go, the quicksands. They weren't here the other day but they're here now."

"Maybe they're going to ferry 'em across," suggested Nort.

"Where they going to get boats?" asked Snake, and that seemed to dispose of this question.

"Though maybe they carry collapsible craft," suggested Dick, but this, of course, was not reasonable or practical.

"No," said Bud, "they either know some way of getting the sheep over here, or else they aren't going to cross."

"They'll cross all right," asserted Snake. "Better let your father know how matters are," he suggested.

Bud went in to ring the home ranch up on the telephone, but he had no sooner given a few turns to the crank—for this was the old-style instrument—than he called out:

"Telephone wire is cut!"

CHAPTER XV

A BATTLE OF WITS

This news came as a distinct shock not only to Bud, who discovered it, but to the others of his party.

"Are you sure it's cut?" asked Nort, hurrying into the shack after his cousin, who had come to the door to make the announcement.

"Well, it's dead, anyhow," Bud answered. "I can't raise Diamond X. And it sounds as if it were cut. Or, rather, it doesn't sound at all. It's just dead."

"Maybe the battery's given out, or there's a loose connection somewhere," suggested Dick. "Let's take a look. I know a little about telephones."

They tested the battery, to find that it was sufficiently strong to have transmitted signals provided everything else was in working order.

But this remained to be seen. However, as the boys made test after test, in their limited way, they came ever nearer to the conclusion that the wire was, indeed, cut. For no answer came to the repeated turnings of the crank, though Bud did succeed in making his own bell ring. The reason for his first failure had been a loose wire connection, which Dick remedied.

But, even after this, no answer came to the repeated turnings of the crank.

"Well, we've got to find the break and mend it!" declared Bud, following several unsuccessful trials to get into communication with the home ranch.

"'Tisn't cut right around here," said Nort, who went out to take a look at the thin length of wire, strung on makeshift poles, that formed a connecting link between the fort at Spur Creek and the home ranch of Diamond X. "I can trace the wire as far as I can see it."

"No, 'tisin't likely they'd cut it so near the shack, for we'd spot that first thing," said Bud. "We'll have to trace it, that's all. I'll get my horse."

"Are we all going?" Yellin' Kid wanted to know. "What about the sheep?" and he waved his hand toward the ever-nearing cloud of dust which floated over the backs of thousands of sharp-hoofed animals.

"Oh, that's so!" exclaimed Bud. "Somebody's got to stay here."

"Reckon Snake and I can handle whatever comes up here," said Yellin' Kid grimly, as he tapped his gun. "They won't get here for half a day, anyhow, and by then it'll be night. They can't do anything after dark, and two men will be plenty here."

This seemed reasonable enough, and after talking over plans this one was decided on.

Bud and Dick, the latter knowing most about telephones, would ride along looking for the break, and would try to mend it. Meanwhile Nort would ride on to Diamond X ranch, since it was important to let Mr. Merkel know what was about to happen—that the dreaded sheep had come and might soon overrun the open range he claimed as his own property. Also help was needed—more cowboys to hold the fort—and it was risky to depend on the broken telephone for summoning them.

So Nort was intrusted with the work of carrying the unwelcome news and of bringing up reinforcements.

Meanwhile Bud and Dick would do their best to find and repair the break, and Snake and Yellin' Kid would be on guard at Spur Creek. As Kid had said, there was little danger of the sheep men bringing up their woolly charges before dark, and after that not much could be done in the way of crossing the river, if, as Bud had said, there was no ford at this place, and the danger of quicksands further to keep unwelcome visitors on the Mexican side of the stream.

"Well, I'll see you when I get back," remarked Nort as he rode off with a wave of his hand to his brother cousin and the two remaining cowboys.

"Think you'll make it to-night?" asked Dick.

"I don't see why I can't," was the answer. "If there's going to be a fight in the morning you'll want help here. And if the other boys ride back from Diamond X I'll be with 'em."

"Oh, the boys will be ridin' back all right, as soon as they hear there's a prospect of a fight!" chuckled Kid.

"You said it!" added Snake.

Pausing to watch Nort ride off on his mission of carrying news and summoning help, and taking another look at the still approaching cloud of dust that betokened the flock of sheep, Bud and Dick rode along the back trail, following the telephone line.

As has been said, the wire was not cut near the cabin. It could be seen, a tiny line against the clear, blue sky, stretching its slender length on top of the poles.

"They were too cute to cut it near the shack. They figured we wouldn't notice it for a long time, maybe, and they'd have a chance to get up closer," said Dick.

"You mean the sheep herders?" asked Bud.

"Sure! Who else?" asked his cousin. "You reckon it was them that cut the wire, don't you?"

"Don't know's I thought much about it, but, now that I have, why, of course, they did it," Bud agreed. "Unless it was the cattle rustlers," he added.

"You mean the ones we just had a fight with?"

"That's who."

"No, I don't reckon they did," Dick remarked. "In the first place we licked 'em pretty badly. They scattered, I'm sure, and they didn't head in this

direction. And what good would it do 'em just to cut a wire after we'd gotten the cattle away from 'em?"

"Oh, general meanness, that's all," answered Bud.

"They wouldn't do that out of spite and run the risk of being caught—not after what happened to 'em," declared Dick, and Bud answered:

"Well, maybe you're right."

Then they rode along in silence for a while, making sure, as they progressed, that they did not pass a break in the telephone line. The thin copper conductor was intact as they could see.

"They must have gone about half way back—between the creek and our ranch, and snipped the wire there," said Bud, after a period of silence.

"I reckon so," agreed Dick. "That would be what we'd do if we had it to do; wouldn't we?"

"Why?"

"Because we'd want the break to come as far away as possible from either end, to make it take longer to find and mend it."

"That's right, Dick. I never thought of that. Then there isn't really much use looking along here. We might as well ride fast to a point about half way. We'll find the break there."

"No, we don't want to do that, Bud. We'll just ride along as we have been going, and we'll look at every foot of wire."

"But I thought you said——"

"I said if we had to cut an enemy's telephone line, we'd probably do it about half way between the two main points. But we can't take any chances. These fellows may have reasoned that we'd think they cut it half way, and, just to fool us, they may have gone only a quarter way."

"Oh, shucks! If you think onery sheep herders have brains to do any of that sort of reasoning, you're 'way off, Dick!"

"Well, maybe I am, but we won't take any chances. We'll inspect every foot until we come to the break."

And this plan was followed.

It was not until after they had ridden several miles that they saw, dangling between two poles, the severed ends of the wire.

"There it is!" cried Dick.

"Good! I mean I'm glad we've found it!" voiced Bud. "It may be all sorts of bad luck that it's cut. For they may have figured that we'd divide forces to mend the break, and they may take this chance to rush Kid and Snake and get possession of the land."

"I don't think so," remarked Dick as he dismounted to approach the pole and look at the severed wire. "Those sheep can't travel as fast as that, and we'll have reinforcements at the fort when they try to cross Spur Creek."

"But they may send a bunch of Greasers on ahead of the woollies," objected Bud.

To this Dick did not answer. He was busy looking at the end of the dangling wire.

"Is it cut or broken?" asked Bud, for there was the possibility of an accident having happened.

"Cut," was the answer.

"What you going to do?"

"Splice it," was the answer. "That's all I can do now. I brought some extra wire along."

Not pausing to climb the pole and re-string the cut wire, which plainly showed marks of cutting pliers, Dick simply connected one severed end with the other, using a piece of copper he had brought from the shack for this purpose.

"Too bad we haven't one of those portable sets so we could cut in and see if everything was working," observed Bud, when the break was mended.

"Yes," agreed Dick. "We'll have to wait until we get back to the fort to make a test and see if we can talk."

"It's nearer to go on to our ranch," said Bud. For the break in the wire had been discovered more than half way to Diamond X.

"Yes, it's nearer, but we can't take any chances," objected Dick. "We may be needed to help Snake and Kid."

"That's so," agreed Bud. "I forgot about that. We'll go back to the fort and see if we can call up the ranch."

They made better time on the return trip, for they did not have to ride slowly along looking for a break in the wire. On the way they speculated as to what might have happened during their absence in chasing the cattle rustlers.

"All we're sure of is that they cut the telephone wire," said Bud.

"But there's no telling what they may have laid plans for," added Dick. "I guess those sheep men are smarter than we gave them credit for."

"It does seem so," admitted Bud. "We'll have to match our wits against theirs when it comes to a show-down—seeing who's going to keep this rich grazing land."

"One thing in our favor is that we're in possession," said Dick, as he patted his pony's neck.

"But one thing against us—or against dad, which is the same thing," said Bud, "is that his papers proving possession are stolen. And these sheep men seem to know that."

"Yes," agreed Dick, "they seem to know it all right."

They returned to the fort on the bank of Spur Creek just before dark, and, to their delight, found the telephone in working order. For the ranch had called the cabin, Mr. Merkel wanting to know how matters were at Spur Creek.

He complained of having tried several times to get into communication with the fort, and he had guessed there was a broken wire but he had not suspected it was cut. Then, when he tried again, he found communication restored. This, of course, was after Dick and Bud had found and mended the break.

Nort had not yet reached the ranch at the time his father finally found the telephone working. But the need of help was told of over the restored wire, and several cowboys were at once dispatched, not waiting for the arrival of Nort.

"I'll send Nort back to you as soon as he gets here," promised Mr. Merkel.

These matters having been disposed of, Bud and Dick had a chance to ask what had transpired at the fort since they left.

"Jest nothin'—that's all," answered Snake.

"But I think there's goin' t' be somethin' doin' right shortly," observed Yellin' Kid.

"What makes you think so?" asked Bud.

In answer the cowboy pointed across the river. The cloud of dust had settled, revealing more plainly now thousands of sheep. And as the

defenders of the fort watched they saw, separating from the sheep, a number of men who approached the Mexican bank of the stream.

What were they going to do?

CHAPTER XVI

STRANGE ACTIONS

Until there was what in law is termed an "overt act," the boy ranchers and their friends could do nothing against the sheep herders who were there in plain sight, with their woolly charges on the far side of Spur Creek. "Overt act" is a law term, and practically means an open act as distinguished from one that is done in secret and under cover.

Thus if the sheep herders should openly attempt to cross the creek, and drive their animals up on Mr. Merkel's land—or land which he claimed—then Bud and his associates could proceed against them, driving them off—"repelling boarders," as Dick expressed it, having in mind some of his favorite pirate tales.

But until the sheep men had done something—had committed an overt act—they could not be molested as long as they remained where they were.

"It's like this," explained Bud, for his father had made matters plain to him over the mended telephone line. "We got to wait until they set foot on our land—or until some of their onery sheep begin to nibble—and then we can start something."

"What, for instance?" asked Dick.

"Well, we can order 'em off—that is, order the Greasers off," replied Bud. "Not much use talking to sheep, I reckon."

"Nor to a Greaser, either," murmured Snake. "One is about as bright and smart as the other."

"Anyhow," resumed Bud, "we can't do anything until they start something."

"Not even if we know they're going to do it?" asked another of the cowboys who, meanwhile, had arrived from Diamond X ready for a fight.

"Not even then," answered Bud. "But once they cross the creek and land here, then we'll begin," and he looked to his gun.

"What'll we do with the sheep?" asked the cowboy. There seemed to be no doubt in the minds of the men as to what they would do with the Greasers.

"We'll have to dispose of 'em," said Bud regretfully. "It seems a pity, too, for the poor things haven't done any harm. But it's either their lives or those of our cattle. The two can't live on the same range, and the sheep have no right here."

"Shoot 'em and drive 'em back into the water if they try to swim across—is that it?" asked Dick.

"Yes, but hang it all!" cried Bud, "I hope that doesn't happen. I sure hate to do it!"

And to give them credit, the others felt the same way about it.

Meanwhile the sheep having settled down to a quiet but fast feeding—which is their characteristic—the actions of the band of Greaser and Mexican herders who had them in charge was eagerly watched by the boy ranchers and their friends.

They saw two horsemen ride down to the bank of the creek at one spot and urge their steeds in. For a time all seemed to go well, but suddenly, when a few yards out in the stream one of the Mexicans frantically called to his companion, who shouted an inquiry as to what was wrong.

Something very dangerously wrong seemed to be the trouble, for the first Mexican was now frantically appealing for help, and a moment later his companion sent his lariat hissing through the air, the coils settling around the frightened man who grasped the rope and leaped into the creek.

But the horse remained in the water, though the animal was wildly struggling to turn and go back to the southern shore, along which the sheep were feeding, some of them slaking their thirst in Spur Creek.

Pulling his companion along by the lariat, the still mounted Mexican made for the shore he had so recently quitted, leaving the lone horse to struggle by itself.

"What does that mean?" cried Dick.

"Quicksands—just what I told you about," answered Bud. "There are a lot of places where the bed of the creek is pitted with quick sands, and this Greaser struck one."

"One did and the other didn't," observed Snake, for it was evident that the rider who had used his lariat had found firm footing for his steed.

"That's it," Bud explained. "You can't tell where the sands are and where they aren't. I happen to know some places that are free," he went on, "but, even there the water is too deep for the sheep to get across, on account of the current."

The two Mexicans, one on his horse and the other swimming at the end of the lariat, had reached the shore they so recently quitted, on what object could only be guessed. Then there was very evidently a conference among the sheep herders during which the excited men who had taken part in the adventure pointed to the spot where the horse was struggling.

"I hope they aren't going to leave that poor brute to suffer," murmured Yellin' Kid, his voice low for one of the few times in his career.

But it was evident that whatever were the faults of the sheep herders they did not number among them too much cruelty to a horse. For when it was

evident that the animal could not free himself, a number of the Greasers rode as close as was safe, and tossed their lariats about the animal's neck. Then they began pulling.

But the quicksands had too firm a grip on the animal's legs. He had sunk lower in the stream, and his struggles were less, simply because he was now so nearly engulfed in the powerful suction of the water-soaked and ever-shifting sands.

"They'll never get him out," said Dick.

"Have to pull his poor head off if they do," agreed Bud.

And this was so evident that the Mexican sheep herders soon gave up the attempt. They dared not even go close enough to the horse to release their ropes, but, casting them off from their saddle horns, had to see them sink down in the quicksands with the poor beast.

For this is what happened. The unfortunate animal, unable to extricate himself from the terrible grip of the sands, being too firmly held to permit of being dragged out, sank lower and lower. The water came half way up his sides. It closed over his back, but still his head was free.

With all his power the brute struggled, but with four legs gripped he could do little more than shudder convulsively. Then as the waters came closer and closer to his head, caused by the fact that the horse was sinking lower and lower in the soft sand, the beast gave a terrible cry—terrible in its agony.

A moment later it was gone from sight forever.

A hush fell upon the assemblage of cowboys in front of the Spur Creek fort of Diamond X ranch. And a hush, no less, came over the bunch of Mexican sheep herders on the far side of the stream. But that the man could leap off and swim to shore, aided by his companion's lariat, the fate of the horse in the quicksands might have been his fate.

"What's going on?" asked a voice behind Bud and Dick.

They turned quickly to behold Nort, who had ridden back from the ranch headquarters.

"What you all looking at?" he asked, for the cowboys were gazing silently at the spot in the stream where the tragedy had just taken place.

They informed Nort in a few words.

"Well," he remarked, "that's the best protection we could have against the sheep coming over—quicksands in the creek."

"The only trouble is," said Dick slowly, "that the quicksands are only in certain places. They can cross safely elsewhere."

"The point is, though," observed Bud, "that they can only guess at those places. And, not knowing where they are, may make them stay away altogether."

"I hope so, but I don't believe it," remarked Snake. "You'll see they won't give up so easily."

Nor did the sheep herders thus forego an attempt to graze their flocks on the rich pasture claimed by Mr. Merkel. It was too late that day to attempt anything more. Night settled down, but with an augmented force of cowboys at the fort the boy ranchers were not apprehensive.

Tours of duty were arranged, so that two or more cowboys would be on guard all night. However, the hours of darkness passed with no further activity on the part of the Mexicans.

In the morning, however, the forces from Diamond X ranch observed strange actions on the part of their enemies.

"What in the world are they up to?" asked Nort, as he and his brother and cousin looked across the river.

Well might he ask that.

CHAPTER XVII

"WE CROWED TOO SOON!"

Not only the boy ranchers, but their more experienced cowboy companions were puzzled by the actions of the sheep herders. It was the period after the morning meal, the smoke of which fires was still rising toward the sky. The sheep men appeared to have slept in the open, with nothing more than their blankets for a bed and their saddles for pillows. But they were accustomed to this, and so were our friends, though they were glad of the fairly comfortable bunk house, or "fort," as they dubbed it.

But all interest was centered in what the Greasers were doing. Some of them separated themselves from the sheep, which really did not require much more attention than that given them by some intelligent dogs, and a bunch of the hated and despised men were approaching the river, carrying long poles.

"What do you reckon they're going to do?" asked Dick.

"Make a raft, maybe," answered Nort. "Though how they can float a lot of sheep over on a raft made of a few bean poles is more than I can understand."

"It would take them a month or more to float the sheep over, one at a time, on a bunch of poles," objected Bud.

"That isn't what they're going to do," declared Dick, after closely watching the actions of the Mexicans. "They're going to leave, that's what they're planning."

"Leave? What do you mean; go away?" asked his brother.

"That's it—yes. They're going to make those dinguses the Indians use trailing after their horses—a pole fastened to either side of the animal, and the ends dragging on the ground. Between the poles they carry their duffle."

"Nonsense!" laughed Bud. "In the first place these aren't Indians, though they're as bad, I reckon. But they didn't come with those pole trailers; so why would they make 'em to go away with? All they own they can pack in their hats."

"I guess you're right," admitted Dick, after thinking it over. "But they're going to do something."

They were all watching the Mexicans now. The men with long poles—which they must have brought with them as none grew in the vicinity—now closely approached the edge of the creek. They could not be going to make a raft—the nature of the poles precluded that.

Then, as one after another of the sheep herders thrust the end of his pole into the water, wading out a short distance to do this, Bud uttered an exclamation.

"I have it!" the lad cried.

"You mean you're on to the game?" asked Dick.

"Yes."

"What is it?" cried the two brothers.

"They're feeling around to find the places where the quicksands are," announced Bud.

"You mean so they can jump in and get rid of themselves?" grimly asked Snake Purdee.

"I mean so they can tell where *not* to cross," said Bud, though this was unnecessary, since they all grasped his meaning when he spoke of the quicksands.

"I guess you're right, son," observed Old Billee, who had come back to the fort with the return of the cowboys. "They're looking for safe fords and I shouldn't wonder but what they'd find 'em."

"I wouldn't be too sure of that," said a tall lank cowboy.

"What do you mean?" Billee wanted to know.

"Wa'al, they may find the places where it's safe to cross—I ain't sayin' but what they is sich places," went on "Lanky," as he was called, "I know this creek putty well, an' I've crossed it more'n once, swimmin' a hoss over an' sometimes drivin' cattle. But th' trouble is sometimes when you find a safe place it doesn't stay safe very long."

"What do you mean by that?" asked Bud, who thought it his duty to learn all he could about matters connected with his father's ranch.

"I reckon he means the quicksands shift—is that it, Lanky?" asked Billee Dobb.

"That's it—yep! A place that may be safe to cross to-night may be the most dangerous in the mornin', or even in less time."

"Oh, so the creek is going to favor us after all!" exclaimed Bud. "If it's as treacherous as that it will keep those Greasers on the far side."

"Not altogether," said Billee. "They may have just enough fool luck to strike a safe place and get over here."

"Well, if they come we'll be ready for 'em!" grimly said Nort, and the others nodded in accord with this sentiment.

Then, as there was nothing else to do for the present, they watched the actions of the Mexicans—actions that were not so strange and mysterious as they had been before Bud hit upon the right solution.

And that it was a correct guess no one could doubt who watched the sheep herders. With their long, thin poles they went up and down the bank of the stream, thrusting the ends into the mud, or whatever formed the

bottom of Spur Creek. At times, as I have said, the Mexicans would wade out, perhaps until the water came as high as their middle, in order to thrust their poles farther out into the stream. But when a man thus waded another stood near with ready lariat.

"They're taking no chances on being caught as the horse was," said Nort.

"Right-o!" exclaimed his brother.

The sheep men, however, seemed to find so many places where there were quicksands—or indications of them—in the vicinity of the place just across from the fort—that they soon moved more than a mile down stream. That is, some of them did. Others moved up, the party separating and leaving a few men guarding the sheep.

"As if we'd cross and try to catch any of the woollies!" laughed Bud, motioning to those on guard.

It was late in the afternoon when the survey or test of the creek seemed to be completed. The two parties with their poles came back to what might be called the "camp," and a consultation seemed to be taking place.

In the still, quiet atmosphere the excited voices carried across the creek, though what was said could not be made out.

"They seem to be having a dispute," observed Nort.

And this was evident. One bunch of the Greasers evidently held to one opinion, and a minority disagreed. However, in the end the majority ruled and then, to the surprise of our friends, the Greasers broke camp, leaped to their saddles, and started driving their flocks back toward the south, whence they had come.

For a few moments our friends, watching this move, did not know how to interpret it. But as it dawned on them that the sheep men were "pulling up stakes," and departing, Billee cried:

"We've got the best of 'em, boys! Or, rather, the quicksands worked for us. They've gone back where they came from."

"And I hope they stay," sang out Yellin' Kid.

This was the hope of all, and it seemed likely to be carried out. As night settled down, the mass of sheep and their herders grew more and more indistinct as greater distance was put between them and those holding the fort.

"Well, we'll wait a day or so to see if they don't come back," said Billee, "and then we'll mosey to Diamond X. There's a pile of work waitin' for us there."

"And we'd like to get back to Happy Valley," observed Bud.

"That's right," agreed Nort and Dick.

For the first time since the alarm about the sheep men rest was easier in the fort that night. The danger appeared to be disappearing. The treacherous nature of Spur Creek, with its shifting bottom of quicksands—that might be here one day and a mile farther off the next—had served our friends a good turn.

At least it seemed so, until the next morning. Then, as Billee Dobb arose early and, as was his custom, went out for a before-breakfast survey, he uttered a cry.

"What's the matter?" asked Bud, coming to the door of the fort.

"We crowed too soon, that's what's the matter," answered Billee. "We crowed too soon!"

CHAPTER XVIII

SKIRMISHES

Bud did not need an interpreter to understand what the old cow puncher meant. If he had been at all doubtful, a glance toward where Billee pointed would have solved the mystery.

For, some miles down the creek was a cloud of dust, and, not only a cloud of dust, but that which caused the haze—the sheep and their herders.

"They've come back!" cried Bud. "And just where we didn't expect 'em."

"'Twould have been mighty poor policy on their part to come back where we did expect 'em," dryly observed Billee. "It was their game to fool us, and they did it."

"Then it was all a trick!" cried Bud.

"Reckon it was," agreed Billee with a grin, as Nort, Dick and the others strolled out in readiness for breakfast.

"That poling of the river was all a bluff," said Nort.

"Oh, not exactly," declared Billee. "They used the poles to try to find a place free from quicksands. Not findin' it opposite our fort, they decided to try farther down. Then some smart Aleck among 'em—an' we got to give 'em credit for it—thought of makin' it look as though they were givin' up—retreatin', so to speak.

"That's the way it looked to us, and we crowed too soon, jest as I said a minute ago. They kept on goin', circled around an' now there they are, ready to cross Spur Creek farther away."

"But we can stop 'em there, same as we could here," said Dick.

"Yes, but we got to move our base of supplies an' that takes time," said Billee. "An' while we're doin' that they may make a crossin'—that is, if they can avoid the quicksands. They may even find a ford down there, so the

sheep can walk over without havin' to swim." In his excitement Billee dropped most of his final g's, and clipped his other words.

"There is a ford there," declared Lanky, the tall, thin cowboy.

"Any quicksands?" Nort wanted to know.

"That I can't say. The sands shift so you can't tell where they are."

"Well, there's only one thing to do," declared Bud. "Some of us have got to go down there and stop 'em from crossing. This is the first skirmish of the fight."

"We'll come with you," offered Nort and Dick.

"Hold on a minute—don't be rash," counseled Old Billee. "It'll take more'n you three lads to stop them Greasers and the sheep."

"Well, we're under your orders," Bud admitted, saluting the veteran.

"Well then, you three go," advised Billee, "and Snake and Kid will go with you. We'll bring some grub down to you."

For it might be too late to wait until after breakfast, simple as that meal was, and as quickly served as it could be. There was no time to be lost. Bud and his boy-rancher cousins realized this.

Soon they were in their saddles, riding down the creek toward where the sheep had been herded together on the southern side of the stream. There were the same bunch of Greasers—the boys easily picked out and recognized certain characters, even across the creek, which was wider here and more shallow.

If Bud and the others expected to engage in a sharp fight as soon as they reached the scene, they were disappointed. True, the sheep herders became aware of their arrival, and there was some talk, and not a little excitement, among the Greasers. But there were no hostile acts, and no attempt was made to drive over any sheep.

"I wonder if there is a ford here?" said Yellin' Kid.

"I reckon there is," said Snake Purdee. "You can see where it has been used," and he pointed to marks on their bank of the stream.

"They either know about this place, or they've made some tests and are satisfied that it's safe," declared Bud.

"But if what Lanky says is true, though it may have been safe early this morning, it might not be safe now," said Dick.

"That's true, but I think they'll take a chance," Bud declared. "There isn't fodder enough on that side to last the sheep very long."

This was perfectly true, and it was evident that the herders would endeavor to get their woolly charges on the other side of the stream as soon as possible, to take advantage of the rich grazing on the open range, newly made available to all comers.

"But I thought when the government opened new land it could only be taken by citizens, or those about to become citizens," questioned Dick, when, as they watched the sheep herders, they talked over the situation.

"That is the law," said Bud. "But down here you'll find the law doesn't amount to much when a man wants a thing. He generally goes and gets it, and thinks about the law afterward. That's why Dad has to do what he is doing. If the law was as tight here as it is in the east, he could get out an injunction, or something, against these herders, and stand them off until he could find his papers proving his claim."

"Think he'll ever find 'em?" asked Nort.

Bud shook his head.

"It's hard telling," he answered.

Meanwhile there appeared to be "nothing doing" among the sheep herders. They had gathered their flocks together and were making a rough camp, as if they intended to stay for some time.

Then, about an hour later, Billee arrived with a couple of his cowboys, bringing food for Bud and his comrades—food that was greatly appreciated, for it was a long time since supper the night before.

The boy ranchers ate and waited. Still there was no action on the part of the Greasers. They appeared content to wait for something to "turn up," as Mr. Micawber would say.

"What are we going to do when they start to cross?" asked Nort.

"That's so—we'd better make a plan," added Dick.

"Shall we fire at the men, their horses or the sheep?" Bud wanted to know.

"Fire at everything and everybody!" decided Snake vindictively. "We've got to break up the first rush."

"And yet it seems too bad to kill innocent animals," went on Bud. "Do you know, I have an idea!" he cried.

"No? Really?" asked Dick with a playful attempt at sarcasm.

"Sure I have," Bud went on. "What we want to do is to drive them back, isn't it?"

"That's it," said Billee. "We not only want to drive 'em back, but we want to discourage 'em from coming over again."

"Then I think I know what will do the trick!" went on Bud. "It won't be powder and bullets, either," he added. "We won't have to kill anything or anybody."

"How you going to do it?" asked Snake, a bit skeptical.

"I'll show you," said Bud. "Wait until I make one."

His companions wondered what his scheme might be. The older cowboys were great believers in the efficacy of the .45, and they had their

guns ready.

But Bud busied himself with some things he took from a bundle he carried on his saddle. Dick and Nort saw their cousin had some strong rubber bands, bits of cord, squares of leather and a Y-shaped branch he cut from a cottonwood tree.

"Say, are you making a sling shot?" asked Dick.

"That's just what I'm making," answered Bud. "If we each have a slingshot, and a supply of stones, I think we can turn the Greasers and their horses, as well as the sheep back without killing any of 'em!"

For a moment they regarded Bud in silence. Then Nort cried:

"I believe it'll work!"

And as Bud finished his sling shot and sent a stone zipping into the creek with a vicious "ping!" Billee cried:

"That's the best trick yet. I think it'll work! I hated to shoot to kill, but I didn't see any way out of it. Now we can sting 'em enough with stones to turn 'em, especially as they'll be in the water. Bud, I think it'll work."

"I don't want to throw a monkey wrench in the gears," said Snake softly, "but it 'pears to me that while we're shootin' harmless stones they'll be firin' real bullets. An' where will we be then?"

"We don't run any more risks than if we were firing bullets, too," said Bud. "And I think with them having to guide their horses in the water, look out for quicksands and drive the frightened sheep over, we can demoralize 'em with these slingshots."

"Sure you can!" cried Billee Dobb. "Come on," he ordered. "Every man make a slinger. It's like the old Bible story of David and Goliath. But how'd you happen to have those rubber bands, Bud?"

"Oh, I got 'em to make a model airship," the boy confessed, "but I didn't find time. I've been lugging 'em around this last week. Now they'll come in

handy."

In a short time each cowboy had made himself a slingshot, of the style you boys have, doubtless, often constructed. With strong rubber bands they send a stone with great force.

The slingshots were no sooner made, and a supply of ammunition secured from the edge of the creek, than an unusual movement was observed among the sheep herders. Some of them separated from the main body, and began driving a flock of the lambs, rams and ewes toward the creek.

"Ready for the first skirmish!" cried Old Billee.

"Let her come!" sang out Yellin' Kid.

Nearer to the edge of Spur Creek approached the sheep herders. The animals bleated and tried to turn back, but the dogs barked at them and snapping whips whirled viciously over their backs. Then, too, they were urged on with horses at their heels.

"They're coming right over," said Dick to his brother and cousin, the three boy ranchers being close together.

"And not one of 'em has a gun out," added Bud. "I reckon they are making this a sort of test so they can claim we fired on 'em first if it comes up in a law court. Well, we aren't exactly *firing* at 'em," he chuckled. "We're just *stoning* 'em."

"And we'd better begin to stone!" cried Nort.

He drew back the strong rubber bands of his sling. In the leather piece was a round pebble. Nort took aim at one of the approaching Mexicans.

The skirmishing was about to begin.

CHAPTER XIX

OPEN WARFARE

"Zip!" a stone from Nort's sling cut the air with a vicious ping, and not only that, but it caught one of the Greasers on the side of his head. He uttered a cry, dropped his reins and clapped a hand to the smarting place.

Another instant and he had lost control of his horse, which first swam down stream and then turned to go back to the shore he had left. One reason for this was that Nort had let fly a stone that took the horse on the flank. And Nort was careful not to shoot as hard at the horse as he had at the rider. In fact the horse was not hurt at all—merely frightened, for the stone was like a fly-bite.

But it was enough.

Meanwhile the other defenders of Spur Creek had been using their slings to advantage, first stinging the Greaser riders with vicious stones and then, more lightly, tapping the horses to demoralize them rather than to hurt them.

This sort of warfare proved most effective, for by turning the horses and sending them back, in spite of all the efforts of their riders, the forces of the sheep herders were thrown into confusion.

And this, really, was the object of Bud and his companions. They did not want to kill so much as a single sheep. All they desired was to keep inviolate the land rightfully owned by Mr. Merkel. And he felt that he still owned it, in spite of the action of the United States Congress, and even though his papers had been stolen.

In this initial skirmish, which soon developed into a fight, the advantage, at first, was all on the side of the Diamond X force as the Greasers did not fight back. Some of them carried guns, but did not draw them.

It might be reasoned that they wanted to go into court with "clean hands," as the legal term is. That is, they could claim they were fired upon

when attempting to make a peaceable crossing of the creek in order to pasture their sheep on the new government open range land. One part of their contention might be true, but the one implying that Mr. Merkel's land could be taken by any chance comer, was not true.

At any rate, first along, the Mexicans did not fire back. Meanwhile Bud and his comrades were fairly peppering the Greasers with stones from the rubber slings. No one was badly hurt—indeed, bruised faces and hands were about the only injuries, but if you have ever faced a fusilade from a battery of putty blowers or bean shooters you know how disconcerting it is.

Then, too, the horses proved allies of our friends. For the light "peppering" the animals received from the slings made the animals nervous and disinclined to face the shower of stones.

Some few sheep were driven into the stream, and it was evident that, for the present at least, this was a good crossing—shallow enough and with no quicksands. But once the sheep began to hear and see the stones "zipping" in the water around them, some of the woollies feeling the pebbles—though only slightly—a new problem was presented to the Mexicans. Their sheep, like the horses, turned about and made for the southern shore.

So that, in less than five minutes after the attempt to make the crossing was started, it had failed, and the hostile forces withdrew.

"Guess we made it too hot for them," chuckled Bud.

"For a while, yes," agreed Nort. "But it isn't over yet."

"No," added his brother. "If they give up now I miss my guess. They'll try again."

And so the Greasers did.

Withdrawing to a safe distance from the slings—which could only just about carry across Spur Creek, a conference was held among the sheep herders. Then they came on again, trying in the same place.

But Bud and his friends were ready, with an unlimited supply of ammunition. Stones were plentiful along the creek, and each cowboy had his pockets full.

One advantage of the sling shots was that they could be "loaded and fired" much more rapidly than the guns—by which I mean the .45 revolvers. And of course on humanitarian grounds there was no comparison—no one was killed or even severely wounded by the stones. They were only painfully hurt.

But this was part of the game. It was open warfare and had to be endured. Besides, from the standpoint of Bud and his comrades, they were in the right and the sheep herders were in the wrong.

I have no doubt but that the herders of the sheep reasoned just the other way—holding that they had a right to cross the creek and pasture their charges on the rich grass beyond, and arguing that the Diamond X outfit was in the wrong.

And in this conflict lies my story, such as it is.

After the third attempt to cross the creek with their sheep, being driven back each time, the Mexicans seemed to lose patience. There were angry voices as most of the Greasers gathered about one man who seemed to be their leader, and who had, it was evident, counseled pacific measures. Now these came to an end.

For on the "fourth down," as Dick laughingly referred to it, the Greasers began shooting bullets as they rode their horses into the stream.

"Now it's a fight in earnest!" cried Bud.

"Draw your guns!" ordered Billee sternly.

The real battle was about to open.

CHAPTER XX

THE FLAG OF TRUCE

The advantage in the fight was on the side of the Diamond X outfit, even though it was outnumbered. For the Greaser sheep herders nearly doubled the force of the cowboys. But this, in itself, was not such a handicap as would at first appear.

Naturally any cowboy held himself more than a match for any two Greasers, and if this were not enough, the sheep men had the disadvantage of having to cross a stream in the face of fire. This is always likely to result in disaster, even in more modern warfare than that which I am writing about. There are several reasons for this, whether the attacking party, crossing the stream, is afoot or on horses.

Progress through water is always slow. If you have ever tried to run while wading in a millpond or at the stream adjacent to the "old swimming hole," you realize what I mean. It is easier to swim than to run through water, even where it is not very deep. The same holds true for horses. And to attempt to swim was out of the question, for the Greasers, as they must keep their guns out of water.

The only thing for them to do was to start their horses across, with the men in the saddles. And the Mexicans probably knew, from a test, that the water was not deep enough to sweep the animals off their legs.

So then, with the handicap of rushing water against them, the horses could not make much progress, and, while crossing, the enemy force would be subject to the fire of the boy ranchers and the cowboys from Diamond X ranch.

"Well, boys, I guess we'll have to let 'em have it," said Billee regretfully as he saw the advancing sheep men. Nearly all the Greaser force was concentrated on crossing Spur Creek, only a few being left in charge of the

animals. "But shoot at the horses first," advised Billee. "I hate to do it, but it's better to have the killing of a horse on your mind than the murder of a man. Though this isn't murder—defending your property against a band of thieves. So shoot at the horses first!"

This, cruel as it may sound, had to be done. It was a case of the lives of the animals or the lives of our friends. For it could not be doubted that, once the Mexicans had gained a footing on the northern side of the stream, they would drive the defenders away—shooting to kill if need be—and then the way would be clear for bringing over the sheep.

Several shots rang out from the ranks of the cowboys, and there was a wild flurry and scramble among the horses in the stream. Two of them were hit and spilled their riders into the creek. But these men grasped the tail of other horses and kept on.

"They aren't going to give up easy," murmured Dick.

"But it's up to us to make 'em," said Bud fiercely. "If they get over it will be all up with us, for they're twice as many as we are."

"They shan't get over!" declared Nort. And it was with the same spirit that the intrepid Frenchman muttered:

"They shall not pass!"

If the boy ranchers and their comrades hoped to escape scathless they were painfully disappointed. For though the sheep herders were under the handicap of having to cross the stream, manage their frantic horses and shoot—all at the same time—they managed to do enough of the latter to wound several of the cowboys, one seriously, as developed later.

And, just as Dick was reloading his gun, he gave a cry and the weapon dropped from his hands.

"Hit?" cried Bud.

"A little," Dick answered, and he tried to smile, though it was not a very good attempt.

"Get back under cover," advised Nort, for there was cover, of a sort, behind where the cowboys were fighting, a range of low hills that would effectually screen the bullets of the Greasers.

"Oh, it doesn't amount to anything," Dick insisted, holding his left hand over his right, for it was the latter that was hit. "It's only a scratch."

"Well, get a bandage on it and come back in the game—if you can, boy," advised Billee, who had ridden up on hearing Dick's cry. "We'll look after it later—when we drive these skunks back where they belong."

This, from Billee, amounted to an order, and Dick obeyed, wheeling his horse and taking refuge behind a hill. There, in anticipation of some casualties, a sort of emergency dressing station had been laid out, with water, lint and bandages. There was water not only for man but for beast, since it was impossible to let the horses go to the creek in the face of the fire from the sheep men. So Dick and his steed drank thirstily and then Dick bandaged, as best he could, his wounded hand. It was more than a scratch, being, in fact, a deep flesh wound, but the bullet had struck a glancing blow and had gone out again, for which Dick was thankful.

Meanwhile he could hear the shooting going on at the scene he had left. The cowboys, riding up and down the bank of the creek on their fleet horses, offered very poor marks for the indifferent shooting of the Mexicans, or the casualties on the part of the Diamond X forces would have been much heavier than it was. Even then several were hit, and Billee's hat was carried off his head by a bullet, which, if it had gone a few inches lower, would have ended the career of that versatile cowboy.

But the quick and accurate firing of the cowboys was having its effect, and it was an effect that was telling not only on the morale but on the fighting ability of the sheep men. For several horses were killed, and a number of men put out of the game.

For a few minutes, though, it seemed that, after all, the attackers would make a landing. But with a burst of furious yells Snake and Kid led a charge against the foremost of the sheepmen and turned them back.

They could not stand the withering fire that was poured in on them and they wheeled their plunging horses in the swirling stream and made for the opposite shore whence they had come.

"Hurrray!" cried Bud as he saw this.

"We've got 'em on the run!" shouted Nort.

Just then Dick rode back to join the fray, having bound up his wounded hand as best he could unaided.

"What's doing?" he asked.

For answer his brother and cousin pointed to the retreating Greasers.

"Good!" exclaimed Dick. "Do you think they'll come back?" he asked.

"No telling," remarked Bud.

"I don't believe we'll have gotten rid of them so easily," was Nort's opinion.

There was some confusion now amid the ranks of the sheep men. Those who were wounded were being cared for, and they all gathered around what had been their central camp fire.

"They're debating whether to give up or not," was Snake's view of it.

And if this was the subject of the talk it ended in a decision not to give up the fight. For presently another attempt was made to cross the creek. This time the Greasers divided forces, separating about a quarter of a mile, and thus necessitating a division in the ranks of the cowboys. This, of course, made the odds against the Diamond X outfit rather heavier.

But again the Greasers were repulsed, with several wounded, though the same might be said of Old Billee's forces. Again the sheep men withdrew across the creek.

Again was there a conference, and then the same tactics were tried as at first—the main body came directly across the stream.

But now a new element entered into the battle. For, no sooner had the fight started for the third time than some of the Mexicans began driving into the water, at a point perhaps half a mile from the fray, a flock of sheep.

"Look at that!" cried Yellin' Kid.

It was evident that something must be done. It called for another division of the defending force, now somewhat reduced in numbers because of injuries. But the crossing of the sheep had to be stopped, as well as the passage of the armed men.

And, after a hard struggle, this was accomplished. The sheep were the easier driven back, for the animals were soon frightened and thrown into confusion. But the Mexicans themselves were desperate, and some of them even succeeded in reaching the opposite shore, setting their horses on Mr. Merkel's land.

However, there was a fierce rally against them on the part of the cowboys and they were driven back.

This was not without desperate work, however, and several on each side suffered minor injuries. The trouble was that the cowboys held their enemies too lightly. It was easy, and perhaps natural, for them to despise the sheep herders.

But, after all, these were men, and rough and ready men at that. They had something to fight for—their lives and their charges, and to lose one was to endanger the other. So, for a time it looked, as Bud said afterward, "like touch and go," so near was the tide of battle to turning against the cowboys.

Both sides were now pretty well exhausted, but the disadvantage of having to cross the stream still hampered the Greasers. They must have felt this, for after another consultation among themselves something new and unexpected happened.

A lone rider was seen to separate himself from the hated band on the Mexican side of the creek, and he slowly approached the ford.

"Watch him!" cried Billee, who had picked up his hat with a hole in the brim.

"He's up to some trick!" declared Bud.

"Shouldn't wonder, son," agreed Billee.

A moment later they saw what the "trick" was, if such it could be called. From under his coat the man produced a white flag and waved it vigorously toward the boy ranchers and their friends.

"A truce!" cried Bud. "Guess they've had enough!"

CHAPTER XXI

A LEGAL CONTEST

Holding the flag of truce above his head with both hands, the better to indicate that he was unarmed, the man, a bearded Mexican to all appearances, rode his horse half way across the stream. He was then within easy talking distance of the cowboys and Old Billee called:

"That's far enough, Greaser! Stay right where you are and speak your little piece. Keep him covered, boys," he went on in a low voice to those around him.

"Oh, he's covered all right," replied Bud. And, indeed, half a dozen guns were trained, more or less conspicuously, on the bearer of the flag of truce.

"Well, say what you've got to say," ordered Billee grimly.

"*Señors*, we have had enough of fight—for the time," came from the herald.

And at the sound of his voice the boy ranchers, with one accord, exclaimed:

"Del Pinzo!"

"At your service, *señors*," came the mocking retort, and Del Pinzo, for he it was, smiled, showing his white teeth through his black, curling beard. It was the beard which had prevented his recognition up to now. Though there was something vaguely familiar about the actions of the leader of the sheep men. And he who bore the flag of truce—Del Pinzo no less—had been the leader in the attempts to cross the creek.

"Well, what do you want?" demanded Billee. "We might have known it was some of your dirty work, though I must say you've got a pretty good false face on with all them whiskers. What do you want?"

"To cross the creek, of course, *Señor* Billee, and pasture our sheep on that land which belongs to us."

"Belongs to you! How do you make that out?" demanded Bud, unable to keep still longer.

"Ah, the young *señor* speaks," mocked Del Pinzo, smilingly. "Then he should know that this land has been thrown open to all who may wish to graze sheep on it."

"This land was never intended for sheep, Del Pinzo, and you know it!" cried Billee. "Even if it was, it belongs to Mr. Merkel, though you'll never see the day he raises sheep—the stinking critters!"

"You say the land belongs to *Señor* Merkel?" asked Del Pinzo, lowering his hands and the flag of truce, perhaps unconsciously.

"Keep 'em up!" snarled Snake Purdee, and the flag went up again in a trice.

"You know this land belongs to Mr. Merkel," went on Billee.

"Doubtless, then, he can prove it in a court of law," mocked the half-breed Greaser.

"Sure he can!" asserted the old cowboy earnestly and with conviction, though he knew in his heart this was not so. But, as he said afterward, he wasn't going to let Del Pinzo do all the "bluffing."

"Then we shall go to law about it," said the Mexican leader. "And we shall have action against you for shooting at us when we peaceably tried to cross and pasture our flocks on the open range land that is given away by the so grand government of the United States."

"They wouldn't give any to *you*!" cried Billee. "All the land you'll ever own in the good old U.S.A. will be six feet to hold you after somebody shoots your head off, as ought to be done long ago. You're not a citizen and you know it, and you can't claim a foot of land, even if Mr. Merkel didn't own it!"

"I claim it not for myself—but for my friends, the so poor sheep herders," said Del Pinzo, in what he meant for a humble voice. "I but act as their leader and adviser. I seek nothing for myself."

"First time I've ever known *that* to happen!" chuckled Billee. "You're generally looking out for number one first of all. Well, if you want to give your friends good advice, tell 'em to go back home and start making *frijoles* for a living. They'll never earn their salt raising sheep—that is, not on this side of Spur Creek."

"That is to be seen, *Señor* Billee," mocked Del Pinzo, still smiling. "Once more I demand of you that we are permit to pass the stream and let

our so hungry sheep feed."

"And once more I tell you there's nothin' doin'!" snapped Billee. "Your sheep can starve for all of me!"

"For the third time I ask and demand that you let us pass," called Del Pinzo, who seemed to have more patience than Billee, whatever else might be said in disfavor of the Greaser.

"And for the third and last time I tell you to take your gang and your sheep back where they came from!" cried Billee. "Now what are you going to do—fight?"

"Yes, *señor*," was the calm answer. "I shall fight, but not no longer with guns. I fight you in the courts. My friends, they are of citizens of the United States. They have of a rights to the land and of their rights I shall see that they get. *Adios!*"

He bowed courteously—he was a polite villain, I'll say that for him—and, lowering the flag of truce, he rode back to join his comrades on the other bank.

For a time there was silence amid the boy ranchers and their friends, and then, as movements among the sheep men indicated that they were getting ready to depart, Bud asked:

"What do you think is up, Billee?"

"Wa'al, I think, just as Del Pinzo said, he and those with him have had enough of powder and lead. Now they'll try the courts. I'm afraid your father is in for a legal battle, Bud."

CHAPTER XXII

NORT'S PLAN

Silently the cowboys from Diamond X ranch watched the sheep herders and their innocent, though undesirable, charges fade away to the south. The Greasers took their wounded with them, and several spare horses they had brought along made up for those that regretfully were shot by the cowboys.

"I hope we've seen the last of that bunch," remarked Dick, tenderly feeling of his wounded hand.

"No such good luck," declared Nort. "Do you really think they mean to try and get pasturage here, Billee?" he asked.

"I sure do," replied the veteran. "They can't feed their sheep much longer on the other side of the creek—they'll have to come here—if they can."

"But we stopped 'em," said Snake.

"Only for a time," said Billee. "As Del Pinzo boasts, now they'll try the courts."

"But that Greaser won't have a standing in any decent court," exclaimed Bud. "He's a jail bird—he isn't even a citizen!"

"How does it come he is working for the interests of these Greasers, some of whom may be citizens?" asked Nort.

"Del Pinzo will do anything by which he can get a dollar or have a little power," was Billee's opinion. "How he got out of jail I don't know. Maybe it's by some power over a government official, and maybe he hopes, by that same hold, to influence the courts against us. Anyhow, he's out of jail and he's cast his lot in with the sheep men for his own advantage, you can gamble on that—not theirs. He has stirred them up to demand certain things which they regard as their rights under the new law.

"Well, maybe they are their rights, on land that hasn't already been claimed, but that doesn't apply here. Your dad owns this land, Bud, and we're going to see he doesn't lose it by any tricks of Del Pinzo."

"He seems to have given up his tricks for a time," remarked Bud.

"But only for a time," added Billee. "He'll have us in court next. Not that there's an awful lot of law out this section," he said with a grim smile, "but what there is can be mighty troublesome when you rub it the wrong way."

There was nothing more to be done now as long as the sheep men had departed. Though at that, Billee and his cowboys were not going to be caught unawares. With all Del Pinzo's talk of applying to the law, he might be "bluffing." He might seek to draw the defenders away and then rush back, getting the sheep across the stream. Once on the Diamond X range it would be hard to dislodge them.

"And it only takes a few hours of sheep on a pasture to spoil it for horses," remarked Bud.

So, fearing treachery, a guard was left at the point where the battle of the crossing had been fought. The remainder of the cowboys returned to the "fort," and from there word was sent to Mr. Merkel of what had occurred.

"So Del Pinzo will have me in court, will he?" remarked the owner of Diamond X ranch. "Well, I reckon I won't worry until I see sheep on my land."

But for all that, Mr. Merkel could not help wishing his papers had not been stolen. For though he might, eventually, prove his claim without them, it meant a delay. And during this delay the other side—the sheep men—might obtain some legal advantage that would enable them to take at least temporary possession of the land in dispute.

And, as Bud had truthfully remarked, only a short occupancy of pasture by the odorous sheep would spoil the grazing and water for sensitive cattle and horses.

For several days after the fight nothing happened. Dick and the wounded cowboys received medical treatment, and all except one were soon on the road to recovery. Poor Lanky had received a grievous wound which eventually caused his death, and he was sincerely mourned.

Meanwhile Mr. Merkel kept on with his ranch work, and the boys, visiting Happy Valley, found matters there going well. They were far enough away not to need to worry about sheep for a time. Then, too, their papers were safe and in case dispute arose as to ownership the matter could easily be settled.

During this comparatively quiet spell, part of which time was utilized by Mr. Merkel in a vain attempt to discover the missing deeds and other documents, the boy ranchers paid several visits to the camp of Professor Wright. That eager scientist was delving away after fossil bones as enthusiastically as if he had never discovered any.

"What are you on the track of now?" asked Nort.

"A Brontotherium," answered the professor.

"What did he say—a bronco?" asked Bud. "We've got some over at our place you can have for nothing," he added with a laugh. "They're not dead yet, though some of the boys who tried to ride 'em wish they were."

"A Brontotherium," explained Professor Wright, "is an extinct animal, something like the rhinoceros, but much larger—more than the size of an elephant, I hope to prove. There are indications that I may find the bones here."

"I hope you do," remarked Dick.

The boys wandered around the camp, and were about to leave the scene of the digging and excavating when Nort uttered an exclamation.

"What's the matter?" asked his brother.

"Look! There's Del Pinzo!" exclaimed Nort, and, surely enough, the figure of the wily Greaser or half-breed was seen moving among the men engaged by the professor to help him and his assistant in digging up fossil bones.

"You have that rascal again, I see, Professor," said Bud rather coldly.

"Well, he certainly is a great help," was the answer. "He has great influence over the Mexican laborers."

"Too much," grimly remarked Bud. They went away, paying no further attention to Del Pinzo though he smiled at them in what he doubtless intended for a genial manner.

"What do you make of it, Bud?" asked Nort.

"Of what?"

"Professor Wright having that rascal with him?"

"Well," remarked Bud, with as judicial an air as he could assume on short notice, "you can look at it in two ways."

"For instance?" suggested Dick, teasingly. "We're in for something good, now," he whispered to his brother, though not so low but that Bud could not hear.

"Well, either Professor Wright knows Del Pinzo is a rascal, and takes to him in spite of that, or he doesn't know it—though how he can be ignorant I can't understand," declared Bud. "If he doesn't—he's the only one who knows the game who thinks Del is any better than a common, onery horse thief!"

"Maybe something will happen, soon, to open his eyes," suggested Nort, as they rode on.

When they reached the headquarters at Diamond X they found Sheriff Hank Fowler in earnest conversation with Mr. Merkel.

"Anything doing, Dad?" asked Bud.

"Yes. I'm summoned to court to prove my title to the Spur Creek land," was the answer. "Hank has just served me with the papers."

"I'm tellin' him he don't need to worry none," said Mr. Fowler, with a genial grin. "He can easy prove his title."

"Perhaps not so easy as you think," remarked Mr. Merkel, "since my papers are missing. If I could only get them back!"

"And I think I have a plan that will get them back!" suddenly exclaimed Nort.

CHAPTER XXIII

IN DISGUISE

All eyes were turned on the lad, but he did not seem abashed.

"What's the idea?" asked Dick, who thought perhaps his brother was "joshing."

"It just occurred to me, after I saw Del Pinzo at the professor's camp," Nort said. "It may sound foolish, but it's worth trying, I think."

And when, a little later, he had explained to Mr. Merkel and Sheriff, they clapped the lad on the back heartily and said:

"Go ahead! It's worth trying!"

Nort needed several days to perfect his plans for a daring excursion into the enemy's country, so to speak. But before he had completed his arrangements Del Pinzo, through some rascally lawyers, had gotten in the first blow of the legal battle.

As Mr. Merkel had said, he was summoned to court to defend his claim to the rich grazing lands of Spur Creek. If he had had his documents this would have been comparatively easy, but with the stealing of the deeds and other papers, the task was harder.

Of course Mr. Merkel engaged a lawyer, but the first skirmish resulted in victory for the sheep men. As had been surmised, Del Pinzo did not directly appear in the matter, though he was in court consulting with the lawyers engaged by the herders. And, as might have been expected, some of the claimants to rights under the new open range law were legal citizens of the United States and, as such, entitled to take up a certain amount of land.

"But they have no right to take Mr. Merkel's land!" said the ranchman's lawyer. "We grant that they have a right to pasture sheep, or even elephants, for that matter, on land they can rightfully claim. But they can't claim land already taken up and given over to the pasture of cattle. We recognize, Your Honor, that to the Court there is no difference between a sheep and a cow."

"You are right there," admitted the Judge, "and I suppose you are prepared, Mr. Bonnett, to substantiate your client's legal claim to this land by deeds and other papers."

"Unfortunately my client's deeds are missing," Mr. Bonnett had to admit, at which admission there was a grin from Del Pinzo, so Bud thought, at least. "But if we have time we can bring the necessary papers into court. Therefore we ask for delay."

"And we oppose delay, for the reason that our sheep are suffering from lack of fodder and we have a right to pasture them on the Spur Creek lands!" cried the opposing lawyer.

"I'll grant a week's postponement," decided the Judge. "If in that time, Mr. Bonnett, you can not file proof, I'm afraid——"

He did not finish, but they all knew what he meant. He would be obliged, in strict law, though perhaps not justice, to let the sheep men come in on land that Mr. Merkel claimed under rights of former laws, when he had taken them up after a government opening.

As has been said, legal matters in this sparsely settled part of the United States were not as strictly enforced as in large cities. There the loss of deeds could be made up by other evidence. But in the west the papers were

needed and without them, even though in possession, there would be trouble to prove a claim.

"But if the sheep come, even though the court says they may, there'll be another fight!" declared the ranchman, in spite of his lawyer's efforts to keep him quiet.

It was two days after that when Nort started out of the ranch house one early evening. There had been a consultation before he left, and when he was ready to go he almost collided with Yellin' Kid, who entered.

"What's the matter with you, Greaser?" cried the Kid angrily. "What you doin' in here, anyhow?"

"Well, Kid, if you don't recognize me I guess I'm safe!" chuckled Nort.

"Nort!" shouted the Yellin' Kid. "What the——"

"Not so loud!" cautioned Nort, laughing. "How do you like my disguise?" he asked. And then, changing his voice to a whine, he begged in slangy Spanish for a cigaret (which, of course, he did not smoke) though he muttered his "thanks, *Señor*," in a manner that caused Yellin' Kid to exclaim:

"They'll never find you out! Good luck to you!"

"Adios," laughed Nort.

CHAPTER XXIV

THE BRONTOTHERIUM

There were busy times in the camp of Professor Wright, who was searching for the fossil bones of a once living Brontotherium. The scientist

felt sure he was on the right track, though one of his college assistants was openly skeptical.

"This isn't the right rock formation at all, to dig for a Brontotherium," he declared.

"So some of my helpers held the time I discovered the other gigantic fossil bones," retorted the professor. "But I proved that I was right. We shall yet find a Brontotherium—or what is left of one—you'll see!"

Bud and Dick found time to stroll, occasionally, over to the camp of the scientist, for there was much to interest them there, and they wanted to be on hand when the "great discovery," as Professor Wright referred to it, should be made.

"Do you know," remarked Bud, as he and his chum were riding over to the scene of excavating operations one day, "there's something quite satisfying in going over among so much scientific knowledge."

"Particularly when we don't have to absorb any of it ourselves, under compulsion," remarked Dick with a chuckle. "It's like visiting a school and watching the other fellows boning away."

"Yes," agreed Bud. "We don't have to open a book nor learn a lot of names as long as your arm. I wonder why they gave such long names to these prehistoric monsters, anyhow?"

"Give it up," spoke Dick shortly. "There must be a reason."

"I reckon there is, but why in the name of Tunket couldn't they call 'em something shorter? Wouldn't it sound funny if we had to call a horse a Brontosaurus?"

"I'd teach mine to come without calling if it had a name like that!" chuckled Dick. "But say, Bud, while we're over there—in the camp I mean," and he pointed to it among the distant hills, "don't mention Nort's name."

"No, dad said not to, but I don't understand it at all."

"Neither do I, but the least said the better. And if anyone over there—especially Del Pinzo—asks for Nort, we're not to even admit he isn't with us. Sort of say he'll be along presently."

"I savey!"

The boys reached the scene of the digging operations which were quite extensive, Professor Wright being liberally supplied with money from some learned society that was interested in securing for the college the largest possible collection of fossil bones of long extinct monsters.

The boys knew some of the workers, and more than a few of the young college men—some of the professors—who had been brought to the place by Mr. Wright. And it was while Bud and Dick were again talking over how foolish it seemed (to them) to use such long names in speaking of the long-dead monsters that Professor Wright heard them.

He did not happen to be busy at that particular moment, and he was a man who never neglected an opportunity of imparting knowledge. He would do this not always with discrimination, for Bud used to tell with a laugh how once he overheard Professor Wright talking most learnedly to an ignorant Greaser who had merely stopped to inspect a pile of bones.

"He was getting off the longest string of jaw-breaking Greek and Latin terms," said Bud, telling the story, "spouting away how many millions of years ago the Dinosaurs trod the earth, what they lived on, how they fought among themselves, and he was dwelling particularly on how a change of conditions wiped all these birds off the earth."

"Meaning, by birds, the Dinosaurs and the like?" asked Dick.

"Sure."

"And how did the Greaser respond to it all?" Dick wanted to know.

"Oh, he took it all in with open mouth," chuckled Bud. "Every now and then he'd out with a '*si señor*,' which encouraged Professor Wright to go on."

"And how did it end?" asked Dick.

"Oh, the prof. kept spouting away for an hour or more, showing bone after bone of some he'd dug up (this was before the present occasion) and when he was all through he leaned back with a jolly satisfied smile on his phiz.

"But say, Dick," went on Bud, "I wish yon could have seen the look on the dear old prof.'s face when the Greaser pointed to the bones and grunted out:

""Him good plenty much make soup!""

"No! Really?"

"As sure as I can throw a rope! The idea of boiling up the million-year bones to make soup! I sure thought the prof. would die! After that he didn't spout his wise stuff to any more Greasers."

"I shouldn't think he would."

But on this occasion Professor Wright had a ranch more receptive and intelligent audience. For, as I have said, overhearing Dick and Bud discussing the "jaw-breaking names," as the boys termed them, the scientist approached them with a reassuring smile on his face and said:

"You are somewhat like the old lady, told of in the book written by Professor Lucas of the American Museum of Natural History. In his introduction he speaks of the necessity for using what are termed 'big' words—that is scientific terms, and he mentions an old lady who said she wasn't so surprised at the discovery of all these strange animals, as she was at the fact that someone knew their names when they were found."

"But you don't know the names when you find them; do you?" asked Dick. "Don't you name them after they are found?"

"In a way we do, yes," answered the scientist. "But in the case of those already found—and I am searching for specimens of some extinct animals

already identified—we have settled upon names.

"As Professor Lucas remarks, the real trouble is that there are no common names for these animals. As a matter of fact, when they existed there were no people on earth to name them, or, if there were, the names given by prehistoric man were not preserved, since they wrote no histories.

"And, as a matter of fact, those who complain that these names are hard to pronounce do not stop to think that, in many cases, the names of the Dinosaurs are no harder than others. They are simply less familiar and not so often used. You wouldn't call hippopotamus a hard word; would you, boys?" he asked.

"It isn't hard to pronounce, but I'd hate to have to spell it," chuckled Bud.

"It's easy if you take it slow," declared Dick, and, then and there he spelled it.

"Well, you've been to more circuses than I have," countered Bud.

"That's it!" cried the professor, seizing on the opportunity to impart a little information. "The word hippopotamus is familiar to you—and even to small children—because it has often been used, and because you have seen circus pictures of it. Well, if we had Brontotheriums on earth now, everyone would be using the name without stopping to think how to pronounce it, and they could spell it as easily as you can spell hippopotamus. Most words of Latin or Greek derivation are easy to pronounce once you try them.

"There are other names of animals in everyday use that would 'stump' us if we stopped to think of them, but we don't. We rattle off mammoth, rhinoceros, giraffe and boa constrictor easily."

"Yes, they sound easy enough," argued Bud.

"Well, all you need to do is to apply to the extinct monsters the same principle of pronunciation that you use in saying hippopotamus, and you have done the trick," went on Professor Wright. "In fact, it is all rather simple."

"Simple," murmured Dick. "Bront—bront—brontotherium!"

"Take it by degrees," advised Professor Wright, "and remember that generally these names are made up of one or two or even more Greek or Latin words. Sometimes a Greek and Latin word is combined, but that really is not scientific.

"Now, in the case of the brontotherium, we have two Greek words which excellently describe the animal whose bones I am after. That is the description fits, as nearly as anything can to something we have never seen.

"There is a Greek word—*bronte* it is pronounced in English, and it means, in a sense, thunder. Another Greek word is *therion*, which means wild beast.

"Then bronto—bronto—therion must mean—thunder beast!" cried Dick, rather proud that he had thus pieced together some information.

"That's it!" announced Professor Wright. "You see how easy it is. Change *therion* to *therium* and you have it."

"But why did they call it a thunder beast?" Bud wanted to know.

"There doesn't seem much sense in that," admitted the scientist, "until you stop to think that paleontologists adopted the word 'thunder' as meaning something large and monstrous, as thunder is the loudest noise in the world."

"Not so bad, after all," was Dick's admission.

"I'm glad to hear you say so," commented the professor. "To go a bit farther, take the word Dinosaur."

"I know the last end of it means a big lizard," put in Bud.

"Yes, and the front of it—the prefix *dino*, means the same thing that *bronto* signifies—something large, terrible and fear-inspiring. Dino is a form of word taken from the Greek, *deinos* meaning terrible and mighty, from its root *deos*, which means fear.

"So those who first discovered these great bones, having reconstructed the animals whose skeletons they formed, gave them scientific names best fitted to describe them. Can you think of anything more aptly descriptive than 'thunder-lizard,' to indicate a beast shaped like the lizards we see to-day, and yet whose size would terrify ancient man as thunder terrified him?"

The boys were really enjoying this scientific information, dry and complicated as it must seem in the way I have written it down here. But the professor had a way of making the most dry and scientific subject seem interesting.

"What gets me, though," said Dick, "is how they know about how these big lizards and other things look when they only find a single bone, or maybe one or two."

"That is puzzling at first," admitted Professor Wright. "Perhaps I can illustrate it for you. Take, for instance, the *Dinornis*—and before we go any farther let me see if you can give me a good English name for the creature. Try it now—the *Dinornis*."

He looked expectantly at the boys.

"Dino—dino—" murmured Bud. "That must mean—why that must mean fierce or terrible, if it's anything like Dinosaur."

"I'll encourage you so far as to say you're on the right track. In other words, you are half right," said the scientist. "Suppose you take a try at it," and he turned to Dick.

"There isn't much left," laughed the lad.

"Suppose you take it this way," suggested the scientist. "Lop off just di—and assume that Bud has used that. You have left the syllable *nornis*."

"*Nornis*—*nornis*—it doesn't seem to mean anything to me," sighed Dick, for he was rather disappointed at Bud's success and his own seeming failure so far.

"I'll help you a little," offered the professor. "Instead of saying di-nornis, call it din-ornis. Did you ever hear the word *ornithology*?"

"Sure!" assented Bud. "It means—*ology* that's the science of," he was murmuring to himself. "Don't tell me now—I have it—the science or study of birds. That's what ornithology is—the study of birds."

"Correct," said the professor. "Ornis is the Greek word for bird, and when we put in front of it Di, or din, meaning fear, thunder or terror, we have a word meaning a terribly large bird, and that's just what the Dinornis is—an extinct bird of great size.

"But what I started to tell you was how we can sometimes—not always and sometimes not correctly—reconstruct from a single bone the animal that once carried it around with it. The Dinornis is a good example.

"Some years ago there was discovered the pelvic and leg bones of what was evidently an enormous extinct bird. Now, of course, our knowledge of the past is based somewhat on our knowledge of the present, and if we had but the pelvic and leg bones of, say, a crow, we could, even without ever seeing a crow, come pretty nearly drawing the picture of how large a bird it is, and of what shape to be able to use such a pelvis and such leg bones.

"So the men who reconstructed the Dinornis went at it. They set up the pelvis and leg bones and then, with plaster or some substance, and by working in proportion, they reconstructed the Dinornis, which is about the shape of the ostrich or the extinct moa of New Zealand, only larger. Here, I'll show you what I mean."

Sitting down on a pile of dirt and shale rock, excavated by some of his workers, Professor Wright, on the back of an envelope, sketched the pelvic and leg bones and then from them he drew dotted lines in the shape of a big bird like an ostrich.

"You see how it is proportionately balanced," he remarked. "A bird with that shape and size of leg would be about so tall—he could not be much taller or larger or his legs would not have been able to carry him around.

"Take, for instance, the giraffe. If you found some of their long, thin leg bones, and had nothing else, and had never seen a giraffe, what sort of a beast would you imagine had been carried around on those legs?" he asked the boys.

"Well, a giraffe is about the only kind of a beast that could logically walk on such long, thin legs," admitted Bud.

"And there you are," said the professor.

The boys were more interested than they had believed possible, and they began to look forward eagerly to the time when some of the giant bones might be uncovered.

"What gets me, though," said Dick, believing that while knowledge was "on tap," he might as well get his fill, "what I can't understand is how long ago they figure these things lived—I mean the Dinornis and Dinosaurs," he added quickly, lest the professor resent his "pets" being called "things."

"There's a good deal of guess-work about it," admitted the scientist. "The question is often asked—how long ago did such monsters live. But we are confronted with this difficulty. The least estimate put on the age of the earth is ten million years. The longest is, perhaps, six thousand million——"

"Six thousand million!" murmured Bud in an awed voice.

"And maybe more," said Professor Wright. "So you see it is pretty hard to set any estimate on just when an animal lived who may have passed away six billion years ago—it really isn't worth while. All we can say is that they lived many, many ages ago, and we are lucky if we can come upon any slight remains of them."

"Do you really think you'll find some fossil bones?" asked Dick.

"I'm sure of it!" was the answer. "Hello! That looks as if they had found something over there!" he cried, as some excitement was manifest amid a group of laboring Greasers some distance away.

The professor hurried there, followed by the boys. They saw where some men, down in a shale pit had uncovered what at first looked to be a tree-trunk.

"It is part of the hind leg of the great Brontosaurus!" cried Professor Wright, in intense excitement. "That's what it is—the Brontosaurus!"

"But you want a *Brontotherium*," insisted one of the helpers, a professor in the making.

"I don't care what I get, as long as they are fossil bones!" cried Mr. Wright. "But I shall yet find a Brontotherium here—of that I am certain. Careful now, men!"

"Say, he's really found something!" cried Dick.

But alas for the hopes of the professor! When the object was taken out it proved to be only part of the skeleton of a long dead buffalo, the bones being so encrusted with clay or mud as to appear much larger than they really were.

"Well, too bad," sighed the professor. "But better luck next time. Come again, boys."

And so the digging went on as fast as could be done, for each shovel of earth and each dislodged stone was carefully examined by the scientist or one of his scientific companions for any trace of the bones of an extinct monster.

Under the urging of Del Pinzo, the Greasers, all of whom had been engaged by him, worked hard—harder than they would have done had Del Pinzo not been there to spur them on. Professor Wright admitted this, and said it was why he was willing to pay the half-breed to oversee the laborers.

And of all who labored none was more active than a certain young Greaser, in ragged garments and with a most dirty face, who seemed to be in all parts of the excavating camp at once. He leaped down into holes, he

climbed mounds and delved there a while; he labored with pick and shovel. He was all over at all times, it seemed.

So active was he that he attracted the attention of Del Pinzo, who, strolling over to the youth remarked, in Mexican Spanish:

"I don't seem to remember you. Where are you from?"

To which, in native dialect, he was answered:

"I come in my brother's place. San Feliece he is much sick this day. I take his place."

Del Pinzo thought back rapidly. One of his workers of this name was missing, and, well—all Greasers looked alike. He turned, and the youth, with a quiet chuckle, resumed his activities.

But, as the youth labored, his eyes seemed to follow Del Pinzo more than they kept to the matters immediately in hand. Though he struck hard with his pick, and took out heaping shovelfuls, this youth ever had his eyes on the half-breed, watching and watching as Del Pinzo strolled about the camp grounds.

It was the third day of this young Greaser's appearance in the fossil excavations, and coming close to the end of the week, which period of grace had been allowed Mr. Merkel by the court. Unless the deeds were soon produced the sheep would scatter over the Spur Creek lands and this would mean the beginning of the end for the cattle men.

Suddenly the comparative quiet of the fossil camp was broken by loud yells, and there seemed much excitement in a place where Professor Wright had been examining earth and rocks as the debris was deposited from an excavation.

The ragged youth, who had said he came to take the place of his ill brother, raced over the ground toward the excited group. He found the professor gazing eagerly down into a sort of cave that had been discovered when the digging reached a certain depth.

"Look out there now! Be careful!" cautioned the scientist. "I think we have found it. Here, you look intelligent!" and he motioned to the Greaser youth whom Del Pinzo had questioned. "Get down in there and make the opening a little wider so I can see what we've come upon. But be very careful. If there are bones we don't want to break them. Perhaps you'd better tell him, Del Pinzo," suggested Professor Wright. "He probably doesn't understand my English."

Thereupon Del Pinzo loosed a string of Mexican Spanish, at which the youth nodded, and proceeded to enlarge the opening to the small underground cavern.

As the light of day was allowed to enter, Professor Wright leaped down into the hole and stood almost at the side of the youth. Then, suddenly, the scientist cried:

"I've found it! I have discovered it! The gigantic Brontotherium! Success at last!"

And as the youth stepped aside to allow the scientist to enter and gaze upon the immense fossil bones which had just been laid bare, the youth looked at Del Pinzo, hastening across the camp ground, murmured:

"I, too, have found it! Success at last!"

CHAPTER XXV

THE END OF THE SHEEP

Court had convened. It was the day set for the decision in the Spur Creek open range matter—a decision which would say whether or not sheep could be pastured on land that the owner of Diamond X had long claimed as his own.

In the open West—where there is much hard work and little play—unless a man makes the latter for himself—the opening of court, even for small matters, was an occasion for the "gathering of the clans." From far and near, those who could get away to attend the sitting of the judge, and sometimes the trial of cases, were always on hand. It was the same sort of an occasion as in the East is the circus, the cattle show or the county fair.

At court, as at the circus and fair, friends who had long been separated met again, and, not infrequently, relatives found those of whom they had long lost trace.

And so, as there was a gathering of lawyers, a judge or two, some witnesses and any number of mere hangers-on in the city where court had been convened, there were heard on all sides such greetings as:

"Well, ef thar ain't ole Bill! Put here there, Bill!"

"Horn-swoggle me ef 'tain't Nate! Well, gumsozzle me!"

Two hard and calloused hand would meet in a crack like that from a small gun and two bearded faces, seamed and wrinkled, would light up with pleasure.

Near them—all around them—similar scenes were being enacted, and, not infrequently, ancient enemies would thus come together, with none of

the kindly greetings that I have indicated. Often as not there would be the drawing of guns and an exchange of shots, more or less dangerous under any circumstances, and particularly so where there was a throng as at the opening of court.

But on this occasion all grudges seemed to have been forgotten or buried, for there was no shooting. The feeling was of the friendliest, save that an important issue was to be fought out between the sheep men on one side and the cattle men on the other.

To both sides the issue meant much, for it meant success or failure in what they elected to gain their livings by means of. So it cannot be wondered at that there were more or less serious faces as men met and inquired one of the other:

"How do you think it's going?"

"Well, you can't tell much about it," the answer might be. "These lawyers and judges——"

"That's right. They don't seem to use common sense—some of 'em."

"But what sort of a case do you s'pose Diamond X has got, anyhow?"

"Pretty good, I hear."

"Well, I hope they have. Gosh! If we're goin' t' be overrun with them onery sheep jest as we've got things runnin' nicely fer cattle—wa'al, I don't want t' live around here—that's all I got to say!" exclaimed one grizzled cowman.

"Same here!" commented some of his hearers. "Sheep's no good; never were any good; an' what's more, never will be any good!"

"That's right!" came a deep-voiced chorus.

To hear them tell it one would think that a sheep had no rights at all and that a sheep man was the worst being on earth, and yet, as a matter of fact,

many a cowman, sick of the eternal beef that he had to eat, welcomes a tender bit of roast lamb.

But such is the world!

To the cattlemen the sheep owners and herders were despised and hated of men—not fit to live within the same thousand-mile area of cattle and horses.

Of course sheep was not the direct issue. As was said, the point turned on whether the Spur Creek land came under the provisions of the open range, as defined by Congress, and once this was settled a man could pasture elephants on the land he staked out, provided he could get elephants to stay there.

But the coming of the sheep meant the going of the cattle. And that is why the courtroom was so filled with spectators. Dick was there, his bullet-wounded hand almost better. Bud was there, as was his father and many cowboys from Diamond X.

Del Pinzo, with a grin on his evil, bearded face, was there also.

"We will take up first the matter of the open range land," said the Judge. "The matter was laid over until to-day to enable the defendant to produce certain papers in court substantiating his claim to pasturage along Spur Creek. Are you ready to proceed, Mr. Bonnett?" and he looked at Mr. Merkel's lawyer.

"Your Honor," began the attorney, "we hoped to be able to settle the matter definitely to-day. I expected to show the deeds proving our claim. But, unless a certain witness whom I depended on soon arrives, we shall have to proceed to trial. If this witness were here, and if he could prove what I hoped——"

"You will never be able to prove anything!" broke in the sneering voice of Del Pinzo.

"Silence in the court!" cried Sheriff Hank Fowler, but almost as he spoke the decorum was again broken by a voice which cried in ringing tones:

"Oh, yes, we can prove everything, Del Pinzo! Here are the deeds that prove Mr. Merkel's claim to the land, and I can prove that you stole them the night of the shooting!"

"*San Diabalo!*" muttered Del Pinzo, turning quickly. "It is the brother of Feliece!"

"Not exactly," laughed the voice of the newcomer. He snatched off a wig of black, wiry hair and stood revealed as—Nort Shannon!

He tossed a bundle of papers to Mr. Merkel's lawyer, and then all eyes turned on Del Pinzo, who feverishly was examining a bundle of documents he tore from an oiled-silk bag.

"*San Diabalo!*" he cried again. "They are gone!"

"No, they are here!" mocked Nort. "I found where you had hidden the real papers, and I just took them out and substituted some of my own."

Del Pinzo glared about the court for a moment, and then made a movement.

"Catch that scoundrel!" cried the Judge. But it was too late. Del Pinzo slipped out, leaped to the back of his fleet horse and though the pursuit was soon organized, he got away.

"Where did you come from, Nort?" asked Dick, as he shook hands with his brother.

"Direct from the professor's camp. Didn't get here any too soon, either, as it happens. My horse went lame and then there was a lot of excitement when they found the Brontotherium."

"Oh, did they find another of those monsters?" asked Bud.

"Yep! The Grandfather of 'em all, I reckon!" laughed Nort. "And during the ruction I managed to get to the place where Del Pinzo had hidden the deeds he stole. I took them out and put in some worthless documents so he wouldn't suspect. Then I came on here. Now I guess they won't pasture any sheep at Spur Creek."

And they did not. With the finding of Mr. Merkel's deeds, which had been stolen, his ownership was clearly established. No one now dared claim his lands. Of course there were parts of the open range where the sheep herders could go in, but none were as choice or as much desired as the pastures of Spur Creek. And they were far enough away not to menace Diamond X.

"The application of the plaintiff for permission to take over the Spur Creek range is hereby denied," announced the Judge. And thus ended the case of the men whose cause Del Pinzo had taken up. Some of them were innocent parties to his treachery, and he had engineered the whole scheme to enrich himself eventually. For these innocent victims sorrow was expressed. But even sorrow would not induce a cattleman to allow sheep on his ranch.

And so, a few days later the sheep which had been held in readiness south of Spur Creek were driven back into Mexico.

"Well, Nort, suppose you tell us how it all happened," suggested Bud, when matters at Diamond X were about normal again. "How did you come to disguise yourself like a Greaser, go off to the professor's camp and get the deeds where Del Pinzo had hidden them? Tell us."

"It isn't much of a story," began Nort, modestly enough. "In the first place, you know about as much of the beginning of it as I do. Del Pinzo heard about the government opening the range lands, and he knew the deeds to Spur Creek must be here. So he organized a robbery and carried it out, drawing us away from the place by a lot of shooting. Professor Wright, as of course you know, had nothing to do with it. His coming was just a coincidence.

"Those mysterious lone riders were sent by Del Pinzo to see how things were going, and that rocket signaling was, as we guessed, communication from one of Del Pinzo's gang to another. Then, when that Greaser had the deeds safely hidden, as he thought, he gave the signal for the sheep to start for Spur Creek."

"But how in the name of Zip Foster did you know where he had the deeds hidden?" cried Bud.

"I didn't," answered Nort. "I simply guessed that he had taken them, or had some one take them for him, and I reasoned he would keep them near him, in the professor's camp. So, with your dad's permission, Bud, I disguised like a Greaser and went to work in the fossil camp. I had to kidnap one of the regular Greasers, and pass myself off as his brother, which I did. By the way," he remarked to Slim, "we can let Feliece go now."

"All right," chuckled Slim, who was one of the few in the secret. "He didn't mind being a prisoner here, for he got well paid and had plenty of grub."

"After I established myself at the camp," went on Nort, "and even the professor didn't recognize me, I made it my business secretly to keep on Del Pinzo's trail until I located where he had hidden the deeds, in one of the many excavations made in searching for fossil bones.

"Then, when the Brontotherium was really found there was enough excitement so that I could sneak over to the hiding place, take out the right papers and stick in some dummies I had all ready. Then I sent word to Mr. Bonnett, and came on as soon as I could with the deeds. Zeb Tauth, the janitor whom the professor brought with him as a sort of personal aid, helped me out in that. He was a good scout, Zeb was, though he doesn't care much about fossils. He says he's anxious to get back to his furnace and ash cans."

"Shades of Zip Foster!" chuckled Bud, as the explanation was concluded. "It couldn't have been slicker if you'd practiced it for a year! I'll never forget Del Pinzo's face as he opened his oiled-silk package and realized that he had been fooled. Oh, Zip Foster!"

"So it's all over now," commented Dick.

"Well, it was a mighty good ending," said Mr. Merkel, "and I'm much obliged to you boy ranchers. You helped a lot. I'd like to catch Del Pinzo, however."

But the wily half-breed Greaser disappeared, though it might be feared he would bob up again in the lives of the boy ranchers. For they were destined to have other adventures.

"But we're through for a time," said Bud, as, with his cousins, he rode the trail that led to home.

Nell met them near the horse corral.

"You're just in time," she said.

"For what?" asked Dick.

"Pie!" answered Nell with a laugh. "Mother and I have baked some for you."

"Whoopee!" yelled the boy ranchers, and as they race for the kitchen we will take leave of them for a time.

THE END

THE BOY RANCHERS SERIES
BY WILLARD F. BAKER

12mo. Cloth. Illustrated. Jacket in full colors.

Stories of the great west, with cattle ranches as a setting, related in such a style as to captivate the hearts of all boys.

1. THE BOY RANCHERS

or Solving the Mystery at Diamond X

Two eastern boys visit their cousin. They become involved in an exciting mystery.

2. THE BOY RANCHERS IN CAMP

or The Water Fight at Diamond X

Returning for a visit, the two eastern lads learn with delight, that they are to become boy ranchers.

3. THE BOY RANCHERS ON THE TRAIL

or The Diamond X After Cattle Rustlers

Our boy heroes take the trail after Del Pinzo and his outlaws.

4. THE BOY RANCHERS AMONG THE INDIANS

or Trailing the Yaquis

Rosemary and Floyd are captured by the Yaqui Indians.

5. THE BOY RANCHERS AT SPUR CREEK

or Fighting the Sheep Herders

Dangerous struggle against desperadoes for land rights.

6. THE BOY RANCHERS IN THE DESERT

or Diamond X and the Lost Mine

One night a strange old miner almost dead from hunger and hardship arrived at the bunk house. The boys cared for him and he told them of the

lost desert mine.

7. THE BOY RANCHERS ON ROARING RIVER
or Diamond X and the Chinese Smugglers

The boy ranchers help capture Delton's gang who were engaged in smuggling Chinese across the border.

8. THE BOY RANCHERS IN DEATH VALLEY
or Diamond X and the Poison Mystery

The boy ranchers track mysterious Death into his cave.

CUPPLES & LEON COMPANY, Publishers. New York.

THE BASEBALL JOE SERIES
BY LESTER CHADWICK

12mo. Illustrated. Price per volume, \$.65, postpaid

1. BASEBALL JOE OF THE SILVER STARS
or The Rivals of Riverside

2. BASEBALL JOE ON THE SCHOOL NINE
or Pitching for the Blue Banner

3. BASEBALL JOE AT YALE
or Pitching for the College Championship

4. BASEBALL JOE IN THE CENTRAL LEAGUE
or Making Good as a Professional Pitcher

5. BASEBALL JOE IN THE BIG LEAGUE
or A Young Pitcher's Hardest Struggles
6. BASEBALL JOE ON THE GIANTS
or Making Good as a Twirler in the Metropolis
7. BASEBALL JOE IN THE WORLD SERIES
or Pitching for the Championship
8. BASEBALL JOE AROUND THE WORLD
or Pitching on a Grand Tour
9. BASEBALL JOE HOME RUN KING
or The Greatest Pitcher and Batter on Record
10. BASEBALL JOE SAVING THE LEAGUE
or Breaking Up a Great Conspiracy
11. BASEBALL JOE CAPTAIN OF THE TEAM
or Bitter Struggles on the Diamond
12. BASEBALL JOE CHAMPION OF THE LEAGUE
or The Record that was Worth While
13. BASEBALL JOE CLUB OWNER
or Putting the Home Town on the Map
14. BASEBALL JOE PITCHING WIZARD
or Triumphs Off and On the Diamond

CUPPLES & LEON COMPANY, Publishers. New York.

THE JEWEL SERIES

BY AMES THOMPSON

12mo. Cloth. Illustrated. Jacket in colors.

A series of stories brimming with hardy adventure, vivid and accurate in detail, and with a good foundation of probability. They take the reader realistically to the scene of action. Besides being lively and full of real situations, they are written in a straight-forward way very attractive to boy readers.

1. THE ADVENTURE BOYS AND THE VALLEY OF DIAMONDS

Malcolm Edwards and his son Ralph are adventurers with ample means for following up their interest in jewel clues. In this book they form a party of five, including Jimmy Stone and Bret Hartson, boys of Ralph's age, and a shrewd level-headed sailor named Stanley Greene. They find a valley of diamonds in the heart of Africa.

2. THE ADVENTURE BOYS AND THE RIVER OF EMERALDS

The five adventurers, staying at a hotel in San Francisco, find that Pedro the elevator man has an interesting story of a hidden "river of emeralds" in Peru, to tell. With him as guide, they set out to find it, escape various traps set for them by jealous Peruvians, and are much amused by Pedro all through the experience.

3. THE ADVENTURE BOYS AND THE LAGOON OF PEARLS

This time the group starts out on a cruise simply for pleasure, but their adventuresome spirits lead them into the thick of things on a South Sea cannibal island.

CUPPLES & LEON COMPANY, PUBLISHERS. New York.

THE BOMBA BOOKS
BY ROY ROCKWOOD

12mo. Cloth. Illustrated. With colored jacket.

Bomba lived far back in the jungles of the Amazon with a half-demented naturalist who told the lad nothing of his past. The jungle boy was a lover of birds, and hunted animals with a bow and arrow and his trusty machete. He had a primitive education in some things, and his daring adventures will be followed with breathless interest by thousands.

1. BOMBA THE JUNGLE BOY *or The Old Naturalist's Secret*

In the depth of the jungle Bomba lives a life replete with thrilling situations. Once he saves the lives of two American rubber hunters who ask him who he is, and how he had come into the jungle.

2. BOMBA THE JUNGLE BOY AT THE MOVING MOUNTAIN *or The Mystery of the Caves of Fire*

Bomba travels through the jungle, encountering wild beasts and hostile natives. At last he trails the old man of the burning mountain to his cave and learns more concerning himself.

3. BOMBA THE JUNGLE BOY AT THE GIANT CATARACT *or Chief Nasconora and His Captives*

Among the Pilati Indians he finds some white captives, and an aged opera singer, first to give Bomba real news of his forebears.

4. BOMBA THE JUNGLE BOY ON JAGUAR ISLAND *or Adrift on the River of Mystery*

Jaguar Island was a spot as dangerous as it was mysterious and Bomba was warned to keep away. But the plucky boy sallied forth.

5. BOMBA THE JUNGLE BOY IN THE ABANDONED CITY *or A Treasure Ten Thousand Years Old*

Years ago this great city had sunk out of sight beneath the trees of the jungle. A wily half-breed thought to carry away its treasure.

6. BOMBA THE JUNGLE BOY ON TERROR TRAIL *or The Mysterious Men from the Sky*

Bomba strikes out through the vast Amazonian jungles and soon finds himself on the dreaded Terror Trail.

CUPPLES & LEON COMPANY, Publishers. New York.

*** END OF THE PROJECT GUTENBERG EBOOK THE BOY
RANCHERS AT SPUR CREEK; OR, FIGHTING THE SHEEP HERDERS

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.